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| DATE FILED: <u>12/9/16</u> |

UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORK

PATRICIA VENNER

16 Civ. 5634 (CM)

(In the space above enter the full name(s) of the plaintiff(s).)

**AMENDED  
COMPLAINT**

-against-

NEW YORK CITY, OFFICER MILLER  
OFFICER VAHAGN KIRMOYAN,  
7<sup>th</sup> PCT POLICE DEPT.

Jury Trial: ☐ Yes ☐ No  
(check one)

REFUSED TO PROVIDE A FIRST NAME  
FOR OFFICER MILLER  
CORPORATION COUNSEL  
SERVED, 100 CHURCH STREET  
NEW YORK N.Y. 10007

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

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SDNY PROSECUTOR  
2016 DEC -9 PM 4:01  
S.D. C.F. N.Y.

**I. Parties in this complaint:**

- A. List your name, address and telephone number. If you are presently in custody, include your identification number and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name PATRICIA VENNER  
Street Address P.O. BOX 767  
County, City NEW YORK N.Y. 10002  
State & Zip Code \_\_\_\_\_  
Telephone Number (212) 300-7358

- B. List all defendants. You should state the full name of the defendant, even if that defendant is a government agency, an organization, a corporation, or an individual. Include the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name OFFICER MELLER  
 Street Address 7th PCT. POLICE DEPT.  
 County, City NEW YORK NY 10002  
 State & Zip Code \_\_\_\_\_  
 Telephone Number \_\_\_\_\_

Defendant No. 2 Name OFFICER VAHAGN KRMLOYAN  
 Street Address 7th PCT. POLICE DEPT.  
 County, City NEW YORK N.Y.  
 State & Zip Code 10002  
 Telephone Number \_\_\_\_\_

Defendant No. 3 Name 7th PCT. POLICE DEPT.  
 Street Address \_\_\_\_\_  
 County, City \_\_\_\_\_  
 State & Zip Code \_\_\_\_\_  
 Telephone Number \_\_\_\_\_

Defendant No. 4 Name \_\_\_\_\_  
 Street Address \_\_\_\_\_  
 County, City \_\_\_\_\_  
 State & Zip Code \_\_\_\_\_  
 Telephone Number \_\_\_\_\_

## II. Basis for Jurisdiction:

Federal courts are courts of limited jurisdiction. Only two types of cases can be heard in federal court: cases involving a federal question and cases involving diversity of citizenship of the parties. Under 28 U.S.C. § 1331, a case involving the United States Constitution or federal laws or treaties is a federal question case. Under 28 U.S.C. § 1332, a case in which a citizen of one state sues a citizen of another state and the amount in damages is more than \$75,000 is a diversity of citizenship case.

A. What is the basis for federal court jurisdiction? *(check all that apply)*

☒ Federal Questions

☐ Diversity of Citizenship

B. If the basis for jurisdiction is Federal Question, what federal Constitutional, statutory or treaty right is at issue? 28 U.S.C. § 1331, 28 U.S.C. § 1443, VIOLATION OF

PENAL LAW SEC. 210.45 (MAKING FALSE STATEMENTS IN A WRITTEN INSTRUMENT,

C. If the basis for jurisdiction is Diversity of Citizenship, what is the state of citizenship of each party?

Plaintiff(s) state(s) of citizenship \_\_\_\_\_

Defendant(s) state(s) of citizenship \_\_\_\_\_

### III. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. Where did the events giving rise to your claim(s) occur? INSIDE CO-OP BUILDING  
HALLWAY LOCATION 81 COLUMBIA ST. N.Y.

B. What date and approximate time did the events giving rise to your claim(s) occur? ON  
SEPTEMBER 14, 2013, ABOUT 10:15 PM

C. Facts: PLAINTIFF WAS SITTING IN SIDE THE BEDROOM WORKING ON  
PAPERS WHEN SHE HEARD LOUD BANGS ON THE FRONT DOOR GOT UP, LOOKED  
SAW SOMEONE HAND REACHING INSIDE PULLING ON MY SISTER'S TOP AFTER  
SHE OPENED THE DOOR, WENT TO INVESTIGATE TOOK THE DOOR FROM HER  
HAND. LOOKED, SAW MS. REYS, PERSON SAID TO BE LIVING IN NEXT DOOR APT,  
STANDING INSIDE THE DOORWAY HOLDING A 12" KNIFE OVER HER HEAD WITH  
A ANGRY LOOK, FIXED ON PLAINTIFF, WHO WANT FOR A STICK, LOOKED AGAIN  
SAW MR. REYS HAND IT OF TO SOMEONE. PLAINTIFF PUT DOWN THE STICK, NEXT  
TO THE DOOR, TOLD REYS NOT TO COME OUT, SECURITY CAME UP ABOUT TWO  
MINUTES LATER. REYS EMERGED INTO THE HALLWAY, PLAINTIFF CAME OUT  
MS. REYS CAME TOWARD PLAINTIFF WHO PUT UP HER HANDS. SECURITY, RUSHED  
REYS, PINNING HER AGAINST THE HALLWAY WALL, TRIED HOLDING HER BACK, BUT,  
SHE REACHED OVER SECURITY'S (JANE DOE) ARMS, PUNCHED PLAINTIFF IN THE  
WITH A CLOSED FIST TO THE LEFT JAW, PLAINTIFF RETURNED THE PUNCH  
DEFENDING HERSELF, WAS TREATMENT WAS GIVEN IN KELL. (SEE ATTACHED)

What  
happened  
to you?

Who did  
what?

Was anyone  
else  
involved?

Who else  
saw what  
happened?

### IV. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. INJURED JAW, TREATMENT IN 7th PCT  
CELL, HARSHIP, HARASSMENT, HELD OVER 24 HOURS, DEPRIVED  
TIME UNJUSTLY OUT OF PLAINTIFF'S LIFE, FALSELY PLANTED STICK  
ALLEGED EVIDENCE, SHE WAS MADE INTO A CRIMINAL WHEN SHE  
WAS NOT ONE, DENIED THE RIGHT TO MAKE A CALL TO HER PCT, ONLY  
ONE MINUTE, MENTAL STRESS, FROM FALSE CLAIMS, UNJUST  
CLAIMS OF FALSE WRITTING

## ATTACHED (PAGE 3 (c))

AFTER PLAINTIFF DEFENDED HERSELF AND SECURITY APPEARED BOTH SHE AND REYS WENT INSIDE OF THE APARTMENTS. SHE LEAVING REYS WITH SECURITY, ABOUT FIVE MINUTES LATER THE DOOR BELL RANG. PLAINTIFF ASKED WHO WAS IT THEY STATED "POLICE" SURPRISED, SHE OPENED THE DOOR TO OFFICER MILLER THE FIRST WORDS FROM HIS MOUTH "WHO HIT YOU" ASKING REYS, MILLER, NEVER QUESTIONED PLAINTIFF AS TO WHAT HAPPENED, VIOLATION OF EQUAL PROTECTION OF THE LAW, REYS SHOWED NO JUSTIFICATION AS TO WHY SHE FIRST ASSAULTED HER, AND THREATEN HER WITH A 12" KNIFE, MILLER NEVER REYS ANY QUESTIONS IN FRONT OF PLAINTIFF. ONLY, "WHO HIT YOU" AFTER SHE OPENED THE DOOR, MILLER TOLD PLAINTIFF TO "STEP OUT HERE" (INTO THE HALLWAY), WHEN SHE DID, HE PLACED HER INTO HANDCUFF. SHE TOLD MILLER SHE WANTED TO TALK TO HIM IN PRIVATE AND SAID TO HIM. SHE WAS AN AUXILIARY POLICE OFFICER AND WANTED TO CALL HER P.O. PCT. OFFICER HE WALKED AWAY WITHOUT ONE WORD, AND INTO THE APT. WHERE REYS WAS, HE CAME OUT FIRST, THEN REYS STATING "I WANT HER ARRESTED" PLAINTIFF WAS TAKEN TO LOWER EAST SIDE 7<sup>th</sup> PCT, STILL ASKING MILLER, TO ALLOWED HER TO CALL HER PCT. P.O. OFFICER AS SHE WAS TOLD TO DO, BUT MILLER VIOLATING HER RIGHTS, ARTICLE XIV, EQUAL PROTECTION OF THE LAW, DENIED HER ANY MEANS TO THE LAW, SHE HAD NO EQUAL PROTECTION. ONCE THE TWO OFFICERS AND PLAINTIFF ARRIVED AT THE 7<sup>th</sup> PCT. SHE TOLD THE DESK SGT. SHE WAS AN AUXILIARY POLICE AND WANTED TO MAKE A CALL TO HER PCT. HE REFUSED



"  
STATING "I DON'T BELIEVE YOU" ARTICLE XIV DENY EQUAL  
PROTECTION OF THE LAWS DEPRIVE OF LIFE. ARTICLE VIII  
CRUEL AND UNUSUAL PUNISHMENT INFLICTED, BY BOTH  
OFFICER MILLER, AND DESK PCT. SGT. JOHN DOE, NO STATE  
SHALL MAKE OR ENFORCE ANY LAW WHICH SHALL ABRIDGE  
THE PRIVILEGES OR IMMUNITIES OF CITIZENS OF THE U.S.,  
ABOUT 2:30 AM PLAINTIFF WAS TRANSPORTED TO 100 CENTRE  
STREET HOLDING CELL WHERE SHE BECAME DEHYDRATED  
AFTER MANY HOURS WITHOUT WATER AND ASKED JANE DOE FOR A  
BOTTLE OF WATER (SECURITY GUARD) THINKING SHE WAS NOT  
A CRIMINAL BUT A CITIZEN, WHO WAS BEING FALSELY  
TREATED AS ONE, AFTER SHE WAS FIRST ASSAULTED BY RAYS,  
CAUSED DEFAMATION BY COMPUTER, HELD OVER 26 HOURS,  
DEPRIVED OF LIFE AND LIBERTY IN A CRUEL WAY, FALSE ALLEGED  
EVIDENCE THAT WAS PLANTED, A STICK BEING USED, A  
FALSE WRITTEN REPORT, WHY SHOULD SHE PAY FOR THE SINS OF  
OTHERS SHE IS NOT FAMILIAR WITH THAT OF BEING IN THE  
LIFE OF AN "IMMATE" BUT, WRONGFULLY PLACED IN THAT SETTING  
BY THE TWO OFFICERS FALSE CLAIMS OF A BLEEDING NOSE NO  
EVIDENCE OF BLOOD FROM REYS NOSE. NO TISSUE, TOWEL, NO HELP  
TO STOP FALSE WRITTEN WORDS "BLEEDING TO HER NOSE" BECAUSE  
THERE WAS NONE, PLAINTIFF DON'T KNOW WHAT HAPPEN TO  
RAYS AFTER MILLER WENT INTO THE APT. SECONDS LATER  
BEHIND HER BOTH WERE NOT IN SIGHT, AFTER HOURS OF  
BEING HELD IN 100 CENTRE HOLDING CELL UNTIL 10:30 PM  
SHE WAS CALL BY CRIMIAL COURT PROSECUTOR. WHO  
STATED BEFORE APPEARING IN COURT WITH PLAINTIFF, THAT,

SHE WOULD TRY TO GET THE CHARGES LOWER, SHE PRESENTED NO DEFENSE TO THE ALLEGED CHARGES AFTERWARD, SERVED HER WITH AN ORDER OF PROTECTION, SHE KNEW SHE WAS BEING FALSLY ACCUSED AND SAID TO THE JUDGE SHE WAS NOT AFTER REYS, WHO FIRST PUNCHED HER IN THE FACE AND THREATEN HER WITH A 12" KNIFE, PLAINTIFF WAS RELEASED (R/O/R) ABOUT 12:30 AM, SEPTEMBER 16, 2013, PLAINTIFF, WHO IS NOT A CRIMINAL, WRONGFULLY ACCUSED BY THE TWO OFFICERS, FOUND HER OWN ATTORNEY WHO CAN WORK FOR HER, AND NOT FALSLY FRAME ALLEGED CLAIMS OF EVIDENCE AGAINST HER, OCTOBER 23, 2013, PLAINTIFF AND HER ATTORNEY APPEARED BEFORE HON. JUDGE JOHNSON ON THE ALLEGATIONS, AFTER STATEMENTS OF COURT'S PROSECUTOR HER ATTORNEY STATED "WHERE IS YOUR DEPOSITION" HIS ANSWER, HE DID NOT HAVE ONE, JUDGE JOHNSON GAVE THE PROSECUTOR UNTIL DECEMBER 20, 2013 TO HAVE IT'S DEPOSITION, ON DECEMBER 20, 2013 PLAINTIFF APPEARED THE JUDGE ASKED THE PROSECUTOR IF THERE WAS A DEPOSITION, HIS REPLY THERE WAS NONE FILED, HON. JUDGE JOHNSON DECISION SHE WAS DISMISSING THE CLAIMS AND THE CASE WOULD BE SEAL THE TWO OFFICERS FAILED TO DEFEND THEIR FALSE ALLEGATIONS AGINST PLAINTIFF, THE COURT DISMISS AND SEAL THE CASE. DECEMBER 20, 2013.

*Patricia Venner*

**V. Relief:**

State what you want the Court to do for you and the amount of monetary compensation, if any, you are seeking, and the basis for such compensation. PLAINTIFF SEEK JUST COMPENSATION FOR THE INTENTIONAL WRONGFUL ACTS OF THE TWO OFFICERS AGAINST HER AND THE MENTAL STRESS, HARASSMENT OF CASTING FALSE BLAME UPON HER WITH THE INTENT TO COMMIT HARM AND DID COMMIT SAID HARM. REMOVING HER RIGHTS TO EQUAL PROTECTION OF THE LAW, SHE HAD FALSE INTENTIONAL CLAIMS OF EVIDENCE PLANTED AGAINST HER, TO GROW INTO A MUCH HIGHER DEGREE OF FALSE CHARGES, A TROUGH ORDEAL FOR AN INNOCENT PERSON TO BE PUT THROUGH, SHE INTRODUCED TO A HIGH DEGREE OF DEHYDRATION, AFTER LONG HOURS WITHOUT WATER. NOW, SINCE 10-14-2013, TO 10-16-2013 ALL DUE THE TWO OFFICERS FALSE WRITTEN WORDS, BUT FAILED TO DEFEND THEIR CLAIMS THE LAW WAS NOT BEING ENFORCED BY THE OFFICERS BUT, MISREPRESENTED. ARTICLE V, VIIT CRUEL UNUSUAL PUNISHMENTS, SHE PRAYS AWARD OF \$600,000, A WILLEFUL WRONG DONE.

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 30 day of NOVEMBER, 2016.

Signature of Plaintiff Patricia Vener  
Mailing Address P.O. BOX 767  
NEW YORK NY 10002  
  
Telephone Number (212) 300-7358  
Fax Number (if you have one) \_\_\_\_\_

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint. Prisoners must also provide their inmate numbers, present place of confinement, and address.

For Prisoners:

I declare under penalty of perjury that on this \_\_\_\_\_ day of \_\_\_\_\_, 2016, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff: \_\_\_\_\_  
Inmate Number \_\_\_\_\_

## Personal Injury Claim Form

Claim must be filed *in person or by registered or certified mail within 90 days of the occurrence* at the NYC Comptroller's Office, 1 Centre Street, Room 1225, New York, New York 10007. It must be *notarized*. If claim is not resolved within 1 year and 90 days of the occurrence, you must start legal action to preserve your rights.

TYPE OR PRINT

I am filing: ☐ On behalf of myself.

☐ On behalf of someone else. If on someone else's behalf, please provide the following information.

|                               |  |
|-------------------------------|--|
| Last Name:                    |  |
| First Name:                   |  |
| Relationship to the claimant: |  |

### Claimant Information

|                       |                                                                                                |
|-----------------------|------------------------------------------------------------------------------------------------|
| *Last Name:           | Patricia                                                                                       |
| *First Name:          | Venue                                                                                          |
| Address:              | [REDACTED]                                                                                     |
| Address 2:            | [REDACTED]                                                                                     |
| City:                 | [REDACTED]                                                                                     |
| State:                | [REDACTED]                                                                                     |
| Zip Code:             | [REDACTED]                                                                                     |
| Country:              | [REDACTED]                                                                                     |
| Date of Birth:        | Format: MM/DD/YYYY                                                                             |
| Soc. Sec. #           | [REDACTED]                                                                                     |
| HICN:<br>(Medicare #) |                                                                                                |
| Date of Death:        | Format: MM/DD/YYYY                                                                             |
| Phone:                | (212) 300 7356                                                                                 |
| Email Address:        |                                                                                                |
| Occupation:           |                                                                                                |
| City Employee?        | <input type="radio"/> Yes <input type="radio"/> No <input checked="" type="radio"/> NA         |
| Gender                | <input type="radio"/> Male <input checked="" type="radio"/> Female <input type="radio"/> Other |

☐ Attorney is filing.

### Attorney Information (If claimant is represented by attorney)

|                     |  |
|---------------------|--|
| Firm or Last Name:  |  |
| Firm or First Name: |  |
| Address:            |  |
| Address 2:          |  |
| City:               |  |
| State:              |  |
| Zip Code:           |  |
| Tax ID:             |  |
| Phone #:            |  |
| Email Address:      |  |

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BUREAU OF THE CLERK

## Personal Injury Claim Form

Claim must be filed in person or by registered or certified mail within 90 days of the occurrence at the NYC Comptroller's Office, 1 Centre Street, Room 1225, New York, New York 10007. It must be notarized. If claim is not resolved within 1 year and 90 days of the occurrence, you must start legal action to preserve your rights.

TYPE OR PRINT

I am filing: ☐ On behalf of myself.

☐ On behalf of someone else. If on someone else's behalf, please provide the following information.

|                               |  |
|-------------------------------|--|
| Last Name:                    |  |
| First Name:                   |  |
| Relationship to the claimant: |  |

### Claimant Information

|                       |                    |
|-----------------------|--------------------|
| *Last Name:           | Patricia           |
| *First Name:          | Venue              |
| Address:              | [REDACTED]         |
| Address 2:            | [REDACTED]         |
| City:                 | [REDACTED]         |
| State:                | [REDACTED]         |
| Zip Code:             | [REDACTED]         |
| Country:              | [REDACTED]         |
| Date of Birth:        | Format: MM/DD/YYYY |
| Soc. Sec. #           | [REDACTED]         |
| HICN:<br>(Medicare #) |                    |
| Date of Death:        | Format: MM/DD/YYYY |
| Phone:                | (212) 300 7356     |
| Email Address:        |                    |
| Occupation:           |                    |

City Employee? ☐ Yes ☐ No ☒ NA

Gender ☐ Male ☒ Female ☐ Other

☐ Attorney is filing.

### Attorney Information (If claimant is represented by attorney)

|                     |  |
|---------------------|--|
| Firm or Last Name:  |  |
| Firm or First Name: |  |
| Address:            |  |
| Address 2:          |  |
| City:               |  |
| State:              |  |
| Zip Code:           |  |
| Tax ID:             |  |
| Phone #:            |  |
| Email Address:      |  |

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2013 DEC 12 PM 3:29



Form Version: NYC-COMPT-BLA-PI1-M

## Personal Injury Claim Form

Claim must be filed *in person or by registered or certified mail within 90 days of the occurrence* at the NYC Comptroller's Office, 1 Centre Street, Room 1225, New York, New York 10007. It must be *notarized*. If claim is not resolved within *1 year and 90 days of the occurrence*, you must start legal action to preserve your rights.

TYPE OR PRINT

I am filing: ☐ On behalf of myself.
☒ On behalf of someone else. If on someone else's behalf, please provide the following information.

Last Name:

First Name:

Relationship to the claimant:

### Claimant Information

\*Last Name:

Patricio

\*First Name:

Venner

Address:

Address 2:

City:

State:

Zip Code:

Country:

Date of Birth:

Format: MM/DD/YYYY

Soc. Sec. #

HICN:

(Medicare #)

Date of Death:

Format: MM/DD/YYYY

Phone:

(212) 300 7356

Email Address:

Occupation:

City Employee? ☐ Yes ☐ No ☒ N/AGender ☐ Male ☒ Female ☐ Other☐ Attorney is filing.

### Attorney Information (If claimant is represented by attorney)

Firm or Last Name:

Firm or First Name:

Address:

Address 2:

City:

State:

Zip Code:

Tax ID:

Phone #:

Email Address:

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2013 DEC 12 PM 3:29



John C. Liu

1 Centre Street  
New York, NY 10007

## The time and place where the claim arose

\*Date of Incident: 9-14-13 Format: MM/DD/YYYY

Time of Incident: 10:15 PM Format: HH:MM AM/PM

\*Location of Incident:

81 COLUMBIA ST  
HALLWAY, INSIDE OF  
BUILDING SECOND FL.

Address:

Address 2:

City:

State:

Borough:

\*Manner in which claim arose:

Attach extra sheet(s) if more room is needed.

Claimant was put under arrest by two 7<sup>th</sup> pct. Police officers on September 14, 2013, held about 26, two hours over the 24 hours, she was without water and food, claimant asked for water and was told by correction the only water was from a dirty reel sink, used for people washing after using the toilet. The evidence used by these two officers, was intentionally planted against claimant, that was false as to its use and the officer saw no evidence of blood as stated in its "Report" from person's noise, because there was none, person alleged she was punched by claimant, but was the person who kicked the door, pulled a 12" Knit on claimant, then first person that punched claimant with a closed fist to the left side of her face. Officer Vahagn Komoyan #. 21142 and partner John Doe arrested claimant. (Jacqueline Fleves) planted evidence.

The items of damage or injuries claimed are (include dollar amounts):

Attach extra sheet(s) if more room is needed.

Suffered hardship, harassment, stress, held long hours, that false evidence intentionally planted by the officers against her, held over 24 (Twenty Four) hours, lying on its report, making false statements of being witness to bleeding nose. The claimant dehydrated had no clean water, caused stress to her, caused her harassment, hardship from falsified evidence build by the two officers, held long hours in cold cell, she was made to be degraded in status, Reputation injury on false evidence.

\* Denotes required field(s).

Evidence Page 2 of 5

John C. Liu

## The time and place where the claim arose

\*Date of Incident: 9-14-13 Format: MM/DD/YYYY  
 Time of Incident: 10:15 PM Format: HH:MM AM/PM

\*Location of Incident:

81 COLUMBIA ST  
 HALLWAY, INSIDE OF  
 BUILDING SECOND FL.

Address:

Address 2:

City:

State:

Borough:

\*Manner in which claim arose:

Attach extra sheet(s) if more room is needed.

Claimant was put under arrest by two 7<sup>th</sup> pct. Police officers on September 14, 2013, held about 26, two hours over the 24 hours. She was without water and food. Claimant asked for water and was told by correction the only water was from a dirty red sink, used for people washing after using the toilets. The evidence used by these two officers, was intentionally planted against claimant, that was false as to its use and the officer saw no evidence of blood as stated in its "Report" from person's noise, because there was none. Person alleged she was punched by claimant, but was the person who kicked the door, pulled a 12" Knif on claimant, then first person that punched claimant with a closed fist to the left side of her face. Officer Vahagn Kermoyan #. 21142 and partner John Doe arrested claimant (Jacqueline Reyes) planted evidence.

The items of damage or injuries claimed are (include dollar amounts):

Attach extra sheet(s) if more room is needed.

Suffered hardship, harassment, stress, held long hours, that false evidence intentionally planted by the officers against her, held over 24 (Twenty Four) hours, lying on its report, making false statements of being witness to bleeding nose. The claimant dehydrated had no clean water, caused stress to her, caused her harassment, hardship from falsified evidence built by the two officers. held long hours in cold cell, she was made to be degraded in status, Reputation injury on false evidence.

\* Denotes required field(s).

John C. Liu

1 Centre Street  
New York, NY 10007

## The time and place where the claim arose

\*Date of Incident:

9-14-13

Format: MM/DD/YYYY

Time of Incident:

10:15 PM

Format: HH:MM AM/PM

\*Location of Incident:

81 COLUMBIA ST

HALLWAY, INSIDE OF  
BUILDING SECOND FL.

Address:

Address 2:

City:

State:

Borough:

\*Manner in which  
claim arose:Attach extra sheet(s)  
if more room is  
needed.

Claimant was put under arrest by two 7<sup>th</sup> pct. Police officers on September 14, 2013, held about 26, two hours over the 24 hours, she was without water and food, claimant asked for water and was told by correction the only water was from a dirty cell sink, used for people washing after using the toilets. The evidence used by these two officers, was intentionally planted against claimant, that was false as to its use and the officer saw no evidence of blood as stated in its "Report" from person's noise, because there was none, person alleged she was punched by claimant, but was the person who kicked the door, pulled a 12" Knift on claimant, then first person that punched claimant with a closed fist to the left side of her face, Officer Vahagn Kamoyan #. 21142 and partner John Doe arrested claimant (Jacqueline Hayes) planted evidence.

The items of  
damage or injuries  
claimed are (include  
dollar amounts):Attach extra sheet(s)  
if more room is  
needed.

Suffered hardship, harassment, stress, held long hours, that false evidence intentionally planted by the officers against her, held over 24 (Twenty Four) hours, lying on its report, making false statements of being witness to bleeding nose. The claimant dehydrated had no clean water, caused stress to her, caused her harassment, hardship from falsified evidence build by the two officers, held long hours in cold cell, she was made to be degraded in status, Reputation injury on false evidence.

\* Denotes required field(s).

New York City, New York

John C. Liu

## Medical Information

1st Treatment Date:

9/14/13

Format: MM/DD/YYYY

Hospital/Name:

7 Pct Call hospital / treated in cell

Address:

Address 2:

City:

State:

Zip Code:

Date Treated in

Emergency Room:

N/A

Format: MM/DD/YYYY

Was claimant taken to hospital by an ambulance?

☐ Yes ☒ No ☐ NA

## Employment Information (If claiming lost wages)

Employer's Name:

Address

Address 2:

City:

State:

Zip Code:

Work Days Lost:

Amount Earned

Weekly:

## Treating Physician Information

Last Name:

treated in cell

First Name:

Address:

Address 2:

City:

State:

Zip Code:

New York City Council

John C. Liu

## Medical Information

|                                                                                        |                                       |                    |
|----------------------------------------------------------------------------------------|---------------------------------------|--------------------|
| 1st Treatment Date:                                                                    | 9/14/13                               | Format: MM/DD/YYYY |
| Hospital/Name:                                                                         | 7 PCT Call Hospital / treated in cell |                    |
| Address:                                                                               |                                       |                    |
| Address 2:                                                                             |                                       |                    |
| City:                                                                                  | N/A                                   |                    |
| State:                                                                                 |                                       |                    |
| Zip Code:                                                                              |                                       |                    |
| Date Treated in<br>Emergency Room:                                                     | N/A                                   | Format: MM/DD/YYYY |
| Was claimant taken to hospital by an ambulance?                                        |                                       |                    |
| <input type="radio"/> Yes <input checked="" type="radio"/> No <input type="radio"/> NA |                                       |                    |

## Employment Information (If claiming lost wages)

|                          |     |
|--------------------------|-----|
| Employer's Name:         |     |
| Address                  |     |
| Address 2:               | N/A |
| City:                    |     |
| State:                   |     |
| Zip Code:                |     |
| Work Days Lost:          |     |
| Amount Earned<br>Weekly: |     |

## Treating Physician Information

|             |                 |
|-------------|-----------------|
| Last Name:  | treated in cell |
| First Name: |                 |
| Address:    |                 |
| Address 2:  |                 |
| City:       |                 |
| State:      |                 |
| Zip Code:   |                 |



New York City Comptroller

John C. Liu

## Medical Information

|                                                                                        |                                       |                    |
|----------------------------------------------------------------------------------------|---------------------------------------|--------------------|
| 1st Treatment Date:                                                                    | 9/14/13                               | Format: MM/DD/YYYY |
| Hospital/Name:                                                                         | 7 Pct Cell Hospital / treated in cell |                    |
| Address:                                                                               |                                       |                    |
| Address 2:                                                                             |                                       |                    |
| City:                                                                                  | N/A                                   |                    |
| State:                                                                                 |                                       |                    |
| Zip Code:                                                                              |                                       |                    |
| Date Treated in<br>Emergency Room:                                                     | N/A                                   | Format: MM/DD/YYYY |
| Was claimant taken to hospital by an ambulance?                                        |                                       |                    |
| <input type="radio"/> Yes <input checked="" type="radio"/> No <input type="radio"/> NA |                                       |                    |

## Employment Information (If claiming lost wages)

|                          |     |
|--------------------------|-----|
| Employer's Name:         |     |
| Address                  |     |
| Address 2:               | N/A |
| City:                    |     |
| State:                   |     |
| Zip Code:                |     |
| Work Days Lost:          |     |
| Amount Earned<br>Weekly: |     |

## Treating Physician Information

|             |                 |
|-------------|-----------------|
| Last Name:  | treated in cell |
| First Name: |                 |
| Address:    |                 |
| Address 2:  |                 |
| City:       |                 |
| State:      |                 |
| Zip Code:   |                 |



**Witness 1 Information**

|             |            |
|-------------|------------|
| Last Name:  | Spencer    |
| First Name: | Brenda     |
| Address:    | [REDACTED] |
| Address 2:  | [REDACTED] |
| City:       | [REDACTED] |
| State:      |            |
| Zip Code:   | [REDACTED] |

**Witness 4 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    |     |
| Address 2:  | N/A |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

**Witness 2 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    |     |
| Address 2:  | N/A |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

**Witness 5 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    |     |
| Address 2:  | N/A |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

**Witness 3 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    | N/A |
| Address 2:  |     |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

**Witness 6 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    | N/A |
| Address 2:  |     |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

Denotes required field(s).

**Witness 1 Information**

|             |            |
|-------------|------------|
| Last Name:  | Spencer    |
| First Name: | Brenda     |
| Address:    | [REDACTED] |
| Address 2:  | [REDACTED] |
| City:       | [REDACTED] |
| State:      | [REDACTED] |
| Zip Code:   | [REDACTED] |

**Witness 4 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    |     |
| Address 2:  | N/A |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

**Witness 2 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    |     |
| Address 2:  | N/A |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

**Witness 5 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    |     |
| Address 2:  | N/A |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

**Witness 3 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    | N/A |
| Address 2:  |     |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

**Witness 6 Information**

|             |     |
|-------------|-----|
| Last Name:  |     |
| First Name: |     |
| Address:    | N/A |
| Address 2:  |     |
| City:       |     |
| State:      |     |
| Zip Code:   |     |

Denotes required field(s).

**Witness 1 Information**

Last Name:  
First Name:  
Address:  
Address 2:  
City:  
State:  
Zip Code:

|            |
|------------|
| SPENCER    |
| Brenda     |
| [REDACTED] |
| [REDACTED] |
| [REDACTED] |
| [REDACTED] |
| [REDACTED] |

**Witness 4 Information**

Last Name:  
First Name:  
Address:  
Address 2:  
City:  
State:  
Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |
|     |
|     |
|     |

**Witness 2 Information**

Last Name:  
First Name:  
Address:  
Address 2:  
City:  
State:  
Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |
|     |
|     |
|     |

**Witness 5 Information**

Last Name:  
First Name:  
Address:  
Address 2:  
City:  
State:  
Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |
|     |
|     |
|     |

**Witness 3 Information**

Last Name:  
First Name:  
Address:  
Address 2:  
City:  
State:  
Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |
|     |
|     |
|     |

**Witness 6 Information**

Last Name:  
First Name:  
Address:  
Address 2:  
City:  
State:  
Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |
|     |
|     |
|     |

John C. Tim

Complete if claim involves a NYC vehicle

## Owner of vehicle claimant was traveling in

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
|     |
|     |
|     |
|     |

## Non-City vehicle driver

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
|     |
|     |
|     |
|     |

## Insurance Information

Insurance Company  
Name:

Address

Address 2:

City:

State:

Zip Code:

Policy #:

Phone #:

|     |
|-----|
|     |
|     |
| N/A |
|     |
|     |
|     |
|     |
|     |

## Non-City vehicle information

Make, Model, Year  
of Vehicle:

Plate #:

VIN #:

|     |
|-----|
|     |
|     |
| N/A |
|     |

## City vehicle information

Plate #:

|  |
|--|
|  |
|--|

City Driver Last  
Name:City Driver First  
Name:

|  |
|--|
|  |
|  |

Description of  
claimant:

- ☐ Driver      ☐ Passenger  
☐ Pedestrian    ☐ Bicyclist  
☐ Motorcyclist   ☐ Other

\*Total Amount  
Claimed:

|  |
|--|
|  |
|--|

Format: Do not include "\$" or ".".

Date

December 11, 2013

Signature of Claimant

Patricia Venner

State of New York  
County of King

ADRIAN SHARPER  
 Notary Public, State of New York  
 No. 01586241428  
 Qualified in Kings County  
 Commission Expires May 23, 2015

I, PATRICIA VENNER, being duly sworn depose and say that I have read the foregoing  
 NOTICE OF CLAIM and know the contents thereof; that same is true to the best of my own knowledge, except as to the matter here stated  
 to be alleged upon information and belief, and as to those matters, I believe them to be true.

Sworn before me this day December 12, 2013Signature of  
Claimant

Patricia Venner

Signature of notary

Adrian Sharper

John C. Liu

Complete if claim involves a NYC vehicle

## Owner of vehicle claimant was traveling in

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |
|     |
|     |
|     |

## Non-City vehicle driver

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |
|     |
|     |
|     |

## Insurance Information

Insurance Company  
Name:

Address

Address 2:

City:

State:

Zip Code:

Policy #:

Phone #:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |
|     |
|     |
|     |

## Non-City vehicle information

Make, Model, Year  
of Vehicle:

Plate #:

VIN #:

|     |
|-----|
|     |
|     |
| N/A |
| N/A |

## City vehicle information

Plate #:

|  |
|--|
|  |
|--|

City Driver Last  
Name:City Driver First  
Name:

|  |
|--|
|  |
|  |

Description of  
claimant:

- ☐ Driver      ☐ Passenger  
☐ Pedestrian      ☐ Bicyclist  
☐ Motorcyclist      ☐ Other

\*Total Amount  
Claimed:

|  |
|--|
|  |
|--|

Format: Do not include "\$" or ".".

December 11, 2013

Date

Patricia Venner

Signature of Claimant

State of New York  
County of Kings

ADRIAN SHARPER  
 Notary Public, State of New York  
 No. 01816241428  
 Qualified in Kings County  
 Commission Expires May 23, 2015

I, PATRICIA VENNER, being duly sworn depose and say that I have read the foregoing NOTICE OF CLAIM and know the contents thereof; that same is true to the best of my own knowledge, except as to the matter here stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

Sworn before me this day December 12, 2013Signature of  
Claimant

Patricia Venner

Signature of notary

Adrian Sharper



John C. Liu

Complete if claim involves a NYC vehicle

## Owner of vehicle claimant was traveling in

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

|     |
|-----|
|     |
|     |
|     |
| N/A |
|     |
|     |
|     |

## Non-City vehicle driver

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

|     |
|-----|
|     |
|     |
| N/A |
|     |
|     |
|     |
|     |

## Insurance Information

Insurance Company  
Name:

Address

Address 2:

City:

State:

Zip Code:

Policy #:

Phone #:

|     |
|-----|
|     |
|     |
|     |
| N/A |
|     |
|     |
|     |
|     |

## Non-City vehicle information

Make, Model, Year  
of Vehicle:

Plate #:

VIN #:

|     |
|-----|
|     |
| N/A |
|     |

## City vehicle information

Plate #:

|  |
|--|
|  |
|--|

City Driver Last  
Name:City Driver First  
Name:

|  |
|--|
|  |
|  |

Description of  
claimant:

- ☐ Driver      ☐ Passenger  
☐ Pedestrian    ☐ Bicyclist  
☐ Motorcyclist   ☐ Other

\*Total Amount  
Claimed:

|  |
|--|
|  |
|--|

Format: Do not include "\$" or ".".

December 11, 2013

Patricia Venier

Date

Signature of Claimant

State of New York  
County of King

ADRIAN SHARPER  
 Notary Public, State of New York  
 No. 01SH6241428  
 Qualified in Kings County  
 Commission Expires May 23, 2015

I, PATRICIA VENIER, being duly sworn depose and say that I have read the foregoing  
 NOTICE OF CLAIM and know the contents thereof; that same is true to the best of my own knowledge, except as to the matter here stated  
 to be alleged upon information and belief, and as to those matters, I believe them to be true.

Sworn before me this day December 12, 2013Signature of  
Claimant

Patricia Venier

Signature of notary

Adrian Sharper

[Print in **black** ink all areas in bold letters. This summons **must** be served with a complaint.]

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X

PATRICIA VENNER ✓

[your name(s)] Plaintiff(s)

- against -

NEW YORK CITY, AND 7<sup>th</sup> PCT POLICE

DEPT. OFFICER MILLER, KRM OYAN

[name(s) of party being sued] Defendant(s)

-----X

To the Person(s) Named as Defendant(s) above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff(s) herein and to serve a copy of your answer on the plaintiff(s) at the address indicated below within 20 days after service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: JUNE 30, 2014  
[date of summons]

NEW YORK  
COUNTY CLERK'S OFFICE

JUL - 1 2014

NOT COMPARED  
WITH COPY FILE

Defendant(s) NEW YORK CITY AND

7<sup>th</sup> PCT. POLICE DEPT.  
OFFICERS, MILLER, KRM OYAN

[address(es) of defendant(s)]

Venue: Plaintiff(s) designate(s) New York County as the place of trial. The basis of this designation is: [check box that applies]

- ☒ Plaintiff(s) residence in New York County  
☐ Defendant(s) residence in New York County  
☐ Other [See CPLR Article 5]: \_\_\_\_\_

201311031948

SUMMONS

2014-022906

Index Number

100682/14

Date Index Number purchased

JUNE 30, 2014

Patricia Venner  
[sign your name]

PATRICIA VENNER  
[print your name]

[your address(es), telephone number(s)]

[Print in **black** ink all areas in bold letters . Both pages *must* be completed. This summons **cannot** be used for divorce actions.]

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

SUMMONS WITH NOTICE

PATRICIA VENNER

Index Number

100682/14

[your name(s)]

Plaintiff(s)

- against -

Date Index Number

purchased \_\_\_\_\_, 200\_\_

NEW YORK CITY AND 7<sup>th</sup> PCT

POLICE DEPT. OFFICERS MILLER, KRMOYAN  
[name(s) of party being sued] Defendant(s)

To the Person(s) Named as Defendant(s) above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on the plaintiff(s) at the address set forth below, and to do so within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer or appear, a judgment will be entered against you by default for the relief demanded below.

Dated: JUNE 30, 20014  
[date of summons]

Patricia Venner  
[sign your name(s)]

PATRICIA VENNER  
[print your name(s)]

JUL - 1 2014

NOT COMPARED  
WITH COPY FILE

[your address(es), telephone number(s)]

Defendant(s) NEW YORK CITY AND  
7<sup>th</sup> PCT POLICE DEPT.  
OFFICERS MILLER, KRMOYAN

[address(es) of party being sued]

SUPPLEMENT

Notice: The nature of this action is [briefly describe the nature of your case against the defendant(s), such as, breach of contract, negligence]:

INTENTIONAL PLANTED FALSE EVIDENCE, KNOWINGLY MAKING FALSE STATEMENTS IN POLICE REPORT, FALSELY ACCUSED OF FIRST ASSAULTED ON OTHER PERSON, HELD IN JAIL OVER 24 HOURS, (26 HOURS) WITHOUT A WARRANT REMOVED A STICK FROM OUR APART, TORT CLAIMS

The relief sought is [briefly describe the kind of relief you are asking for, such as, money damages of \$25,000] PLAINTIFF ASKING RELIEF OF \$ 500,000 FOR INJURIES AND DAMAGES CAUSED TO MYSELF AFTER FALSE EVIDENCE, FALSE REPORTS PLANTED AND INTENTIONALLY MADE AGAINST HER HOLDING HER IN A JAIL CELL OVER TWENTY FOUR HOURS ABOUT 26 HOURS.

Should defendant(s) fail to appear herein, judgment will be entered by default for the sum of \$ 500,000 [amount of money demanded], with interest from the date of 9-14-13 [date from which interest on the amount demanded is claimed] and the costs of this action.

Venue:

Plaintiff(s) designate New York County as the place of trial. The basis of this designation is [check box that applies]:

- ☒ Plaintiff(s) residence in New York County
- ☐ Defendant(s) residence in New York County
- ☐ Other [See CPLR Article 5]: \_\_\_\_\_

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NY

PATRICIA VENNER

Index No. 100682 /2014

Plaintiff,

-Against-

COMPLAINT

NEW YORK CITY AND 7<sup>th</sup> PCT. POLICE  
DEPT.: OFFICERS MILLER, KRMoyan  
Defendant,

NEW YORK  
COUNTY C  
JUL - 1 2014

TO THE SUPREME COURT OF THE STATE OF NEW YORK

NOT COMPARED  
WITH COPY FILE

The complaint of the plaintiff PATRICIA VENNER, respectfully  
shows and alleges as follows:

PLAINTIFF WAS PUT UNDER ARREST BY TWO 7<sup>th</sup> PCT.  
POLICE OFFICERS ON SEPTEMBER 14<sup>th</sup> 2013 ABOUT 10:15  
PM. HELD OVER 24 HOURS, ABOUT 26 HOURS ON FALSE  
EVIDENCE PLANTED BY BOTH OFFICERS, MILLER AND KRMoyan,  
WITHOUT A WARRANT, MILLER, REMOVED A STICK FROM OUR  
APARTMENT, INTENTIONALLY PLANTED IT AS FALSE EVIDENCE  
AGAINST PLAINTIFF, AS TO IT USE, TO BOOST HIS FALSE  
REPORT. THE OFFICERS KNOWINGLY CAUSED INJURIES  
TO PLAINTIFF BY FALSLY STATING IN IT'S REPORT SHE  
FIRST ASSAULTED A PERSON CAUSING A NOSE BLEED BUT,  
BOTH OFFICERS SAW NO EVIDENCE OF BLOOD AS  
STATED IN A PLANTED FALSE REPORT LIED AGAINST  
PLAINTIFF. IN FACT THERE WAS NOTHING SHOWING  
BLOOD ANYWHERE. THE OTHER PERSON PULLED A 12"



KNIFE ON PLAINTIFF, PUNCHED HER IN THE FACE  
FIRST WITH A CLOSED FIST TO HER LEFT JAW.  
TWO OFFICERS FORMED THERE PLAN TO PLANT A  
FALSE REPORT AGAINST PLAINTIFF, LOCKING HER  
UP OVER 24 HOURS, MAKING FALSE STATEMENTS  
KNOWINGLY WITH INTENT TO DECEIVE AND CAUSED HER  
INJURIES, PLAINTIFF SUFFERED HARDSHIP, HARASSMENT,  
LONG HOURS WITH OUT CLEAN WATER, PLAINTIFF  
BECAME DEHYDRATED DURING THE TWENTY SIX HOURS OF BEING  
LOCKED IN A CELL, SHE ASKED CORRECTION OFFICER, FOR WATER  
AND WAS TOLD THE ONLY WATER THAT WAS THERE, WAS FROM A  
DIRTY CELL SINK, USED FOR PEOPLE WASHING AFTER. USING  
THE TOILET, PLAINTIFF HAD NO CLEAN WATER UNTIL 28  
HOURS LATER, ALL DONE BECAUSE SHE WAS INTENTIONALLY  
LIED UPON AND FALSE EVIDENCE WAS PLANTED AGAINST  
HER. SHE WAS CAUSED STRESS, HARASSMENT, ~~DEFAMATION~~ BY  
COMPUTER WITH INTENT TO HARM PLAINTIFF WITH PLANTED  
FALSE EVIDENCE THAT, CAUSED DAMAGE, SHE WAS MADE  
TO BE DEGRADED IN STATUS, HER REPUTATION INJURED, BY THE  
FALSE STATEMENTS MADE, INTENTIONALLY AGAINST HER WITH-  
OUT ANY EVIDENCE ALLEGED BY THE TWO OFFICERS, VIOLATION  
OF HER RIGHTS ARTICLE IV THE RIGHTS OF THE PEOPLE  
TO BE SECURE IN THEIR PERSONS, HOUSES, THE OFFICERS

HAD NO EVIDENCE TO SUPPORT THEIR CLAIMS OF  
SOMEONE BEING HIT IN THE NOSE, OFFICERS SAW NO BLOOD,  
OR A STICK BEING USED AGAINST SOMEONE. PLAINTIFF  
WAS MADE TO LOSE THE JOB SHE HAD, THEN THE WRONG OF  
BEING LOCKED IN A COLD CELL, BECAME DEHYDRATED, NO  
FOOD, LONG WAITING HOURS WELL OVER TWENTY-FOUR DUE  
INTENTIONALLY MAKING A FALSE REPORT THAT, CAUSED  
HARM TO MYSELF AND REPUTATION DEGRADED IN STATUS,  
ON FALSELY PLANTED ALLEGED EVIDENCE. THE LAW WAS NOT  
BEING ENFORCED BY THE OFFICERS BUT, MISREPRESENTED  
WITH GREAT INTENT TO DO MUCH HARM, AGAINST THE  
PLAINTIFF WITH DISREGARD FOR THE TRUTH. ARTICLE V.  
ONLY TO BOOST A FALSE ARREST, BEING BOOST WITH  
FALSE ALLEGATIONS IN A REPORT.

Dated: JUNE 30, 2014

Patricia Venner  
Plaintiff

VERIFICATION

PATRICIA VENNER, being duly sworn, deposes and says:

I am the plaintiff in the above-entitled action. I have read the foregoing complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on the information and belief and as to those matters I believe them to be true.

Patricia Venner  
Patricia Venner  
Signature

PATRICIA V

PATRICIA VENNER  
Print Name

Sworn to before me this  
day of JUL 01 2014

Anna Dong  
Notary Public

ANNA DONG  
Notary Public, State of New York  
Reg. No. 041006228919  
Qualified in New York County  
Commission Expires Sept. 27, 2016

[Serve a copy on plaintiff/plaintiff's attorney. Then file original, with proof of service, in the Trial Support Office, Room ~~4504~~ 119.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index Number

PATRICIA VENNEN

100682 / 14

Plaintiff

- against -

NOTICE OF APPEARANCE

NEW YORK CITY, 7<sup>th</sup> DISTRICT POLICE DEPT.

Defendant

OFFICERS, MILLER, KIRMDYAN

Sir / Madam:

PLEASE TAKE NOTICE that the undersigned ~~Defendant~~ <sup>PLAINTIFF</sup> hereby appears in the above entitled action and demands that a copy of the Verified Complaint and all other papers in this action be served upon the Defendant at the address stated below:

Dated: 10/21, 2004

Patricia Vennen  
Defendant, Pro Se [sign your name]

PLAINTIFF

PATRICIA VENNEN

[print your name]

(212) 300-7358

81 Columbia

(OLD ADDRESS)

P.O. Box 767

(NEW ADDRESS)

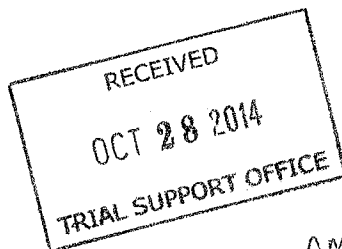
New York NY 10002

[your address and telephone number]

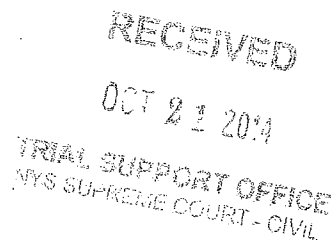
To: Plaintiff / Attorney for Plaintiff

PRO SE

[name, address, telephone number]

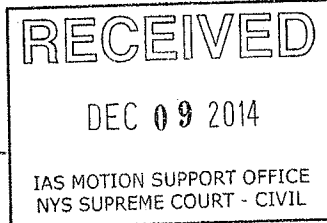


AMENDED



4-08

SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK



PATRICIA VENNER,

Plaintiff

-VS-

NEW YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER, MILLER, KRMOYAN,

Defendants

REPLY TO PERMITTING

AUTHORIZATIONS

Index No.  
100682/2014

Reply to The City Of New York's request for authorizations permitting the "City" to be reopen and review the false lies made against myself will be to hurtful, knowing that those intentional and planted lies made against myself is open once again for her to think about, setting over 24 hours in a cell without Clean Water, No Food, Cold without Heat, all done on the intentional lies of the above stated officers making a false report using a stick as false evidence taken from the apartment without a warrent, to boose willful false report to have myself arrested and locked up.

The Crimal Court, 100 Centre st. has sealed the false allegations and there it should stay. "LOCKED AWAY."

DATED: DECEMBER 5, 2014

CC: Alexa Espinal  
Investigator/Paralegal

Zachary W. Cater  
Corporation Counsel

*Patricia Venner*  
*Patricia Venner*



SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK

CITY OF N.Y. LAW DEPT.  
OFFICE OF CORP. COUNSEL  
COMMUNICATIONS UNIT

2015 APR -7 PM 12:05  
THIRD ANSWER

PATRICIA VENNER,

Plaintiff

-VS-

NEW YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER, MILLER, KRMOYAN,

Defendants

REPLY TO PERMITTING

AUTHORIZATIONS  
Index No.  
100682/201.

2014 DEC -9 PM 3:19

CITY OF N.Y. LAW DEPT.  
OFFICE OF CORP. COUNSEL  
COMMUNICATIONS UNIT

Reply: to The City Of New York's request for authorizations permitting the "City" to be reopen and review the false lies made against myself will be to hurtful, knowing that those intentional and planted lies made against myself is open once again for her to think about, setting over 24 hours in a cell without Clean Water, No Food, Cold without Heat, all done on the intentional lies of the above stated officers making a false report using a stick as false evidence taken from the apartment without a warrent, to boose willful false report to have myself arrested and locked up.

The Crimal Court, 100 Centre st. has sealed the false allegations and there it should stay. "LOCKED AWAY."

DATED: MARCH 30, 2015

CC: Alexa Espinal  
Investigator/Paralegal

Zachary W. Cater  
Corporation Counsel

CHRISTIN SPONELLI

*Patricia Venner*

P.O. BOX 767  
NEW YORK NY  
10002

NS/CS

2014-023906

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK**

VENNER Patricia

**INDIVIDUAL ASSIGNMENT PART** 62

**STIPULATION**

INDEX NO. 100682/14

MOTION CALENDAR NO.

DATE 7/16/15

NYC 57th Precinct  
Police Dept officer Miller, KRAMOVAN

IT IS HEREBY STIPULATED AND AGREED by and between the below-named attorney(s) as follows:

adjourned to 10/8/15 @ 2:00pm  
- 80 Centre St.  
- Rm. 103.

FOR APPEARANCES

Date: 7/16/15

City by

Attorney for Plaintiff

Winkler (Nicholas Scheffel)

Attorney for Defendant

So Ordered.

Attorney for Defendant

ENTER: \_\_\_\_\_

J.S.C.

SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK

CITY OF NEW YORK DEPT.  
POLICE

2015 JUL 28 PM 1:39

PATRICIA VENNER,

Plaintiff

REPLY TO PERMITTING  
AUTHORIZATIONS

INDEX NO. 100682/2014

-VS-

NEW YORK  
COUNTY CLERK'S OFFICE

NEW YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER, MILLER, KRMAYAN,

Defendants

JUL 28 2015

NOT COMPARED  
WITH COPY FILE

Reply to The City Of New York's request for authorizations permitting the "City" to be reopen and review the false lies made against myself will be to hurtful, knowing that those intentional and planted lies made against myself is open once again for her to think about, setting over 24 hours in a cell without Clean Water, when asked for water, correction officer stated the only water for myself to drink was from a dirty sink used by all, to hand wash after using the toilet, she had no food, cell was cold without heat, all done on the intentional lies of the above stated officers who planted a stick as false evidence, the same as that used by another officer in, T.V. news The false act to boost their report to have myself arrested and locked up, the stick was inside apartment with door locked no invite nor, warrant to claim any lies to help these two officers commit false statements in written instrument against herself that, she would go after elderly person with a stick both officers would have used their guns against knife threatening person, both never questioned myself as to what had happened, I was placed into handcuff and lead away to a lock cell.

CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

-against-

Patricia Venner

Defendant.

MISDEMEANOR

NEW YORK  
COUNTY CLERK'S OFFICE

JUL 28 2015

NOT COMPARED  
WITH COPY FILE

Police Officer Vahagn Karmoyan, Shield 21142 of the 7th Precinct, states as follows:

*The defendant is charged with:*

- |                |                                                            |
|----------------|------------------------------------------------------------|
| 1 PL 120.00(1) | Assault in the Third Degree<br>(defendant #1: 1 count)     |
| 2 PL 120.00(2) | Assault in the Third Degree<br>(defendant #1: 1 count)     |
| 3 PL 120.15    | Menacing in the Third Degree<br>(defendant #1: 1 count)    |
| 4 PL 240.26(1) | Harassment in the Second Degree<br>(defendant #1: 1 count) |

On or about September 14, 2013 at about 10:00 P.M., inside 81 Columbia Street in the County and State of New York, the defendant, with intent to cause physical injury to another person, caused such injury to another person; the defendant recklessly caused physical injury to another person; the defendant, by physical menace, intentionally placed and attempted to place another person in fear of death, imminent serious physical injury, and physical injury; the defendant, with intent to harass, annoy and alarm another, subjected that person to physical contact and attempted and threatened to do the same.

*The factual basis for these charges are as follows:*

I am informed by Jacqueline Reyes, of an address known to the District Attorney's Office, that she observed the defendant strike her about the face approximately one time with a closed fist, causing a laceration and bleeding to her nose and bruising to her face.

I am further informed by Ms. Reyes that she observed the defendant advance toward her while waving a stick in her hand in a threatening manner. I heard the defendant state in substance, I thought she had a knife so I came at her with a stick and held it in my hand. I recovered a stick from the defendant's apartment.

C. A.

2525131

Page 2 of 2

CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

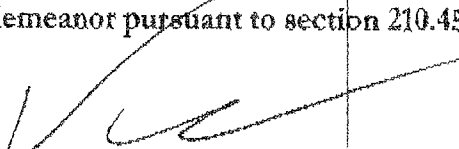
-against-

MISDEMEANOR

Patricia Venner

Defendant.

False statements made in this written instrument are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes.

  
Police Officer Vahagn Kimoyan

Date

9/15/2013

Time

0845



SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK

CITY OF N.Y. LAW DEPT.  
OFFICE OF CORP. COUNSEL  
COMMUNICATIONS UNIT

2014 AUG -7 PM 1:22

PATRICIA VENNER,

Plaintiff

-VS-

NEW YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER, MILLER, KRMOYAN,

Defendants

REPLY TO ANSWER OF  
DEFENDENTS

Index No.  
100682/2014

**FILED**

AUG -7 2014

COUNTY CLERK'S OFFICE  
NEW YORK

1. Plaintiff denied all allegations made by the defendants she in no way took act in, or had knowledge of the risks and dangers in opening the door to the police, she believed they were there to asked questions related what, happen that caused them to come to the apartment, instead after opening the door plaintiff was asked to step in the hall no questions asked but, she was put into handcuffs, and taken to the 7th. pct. after she I.D. herself, to them.
2. Plaintiff thought she was using safty, when she heard the wrods the "Police" when asking who was it, she carted of to 7th's pct jail, held about(4) four hours then held at booking jail about another 22 hours all without water or food, this was not an accident, but the intentional acts of two officers to make a false report and boost it with lies and planted false alleged evidence states against her.
3. The allegations were not in good faith, but intentional made to hurt and boost the defendants's own wrongful "Report" the defendants known or should such false "Report" would have

caused injuries to the plaintiff, being locked up about(26) twenty six hours from 10;30pm unital 12:30am September 16 2013, the police locked plaintiff in jail on September 14th 2013, all on planted false allged evidence of a stick and lies of seeing blood, removing the stick from the apartment without a warrant Miller, had no good reason but, lying with intentional false statement that the person,was assaulted by the plaintiff first.

4. The intentional planting of false evidence that was not in good faith as stated by defendant, but hurtful, and to injured unjustly, the intentional statement of a blooby nose, the same hold ture, holding plaintiff over the twenty four(24), hours, no water, add to the words of Mental cruelty due to the false claims of the officers violated the rights of the plaintiff, that put her into a false plan to add lies, it was no good faith done here, she became dehydrated and no clean water to drink nothing but, dirty water from a dirty sink used after using the toilets, correction officers stated was the only water to drink, this was not "Good Faith". U.S. CONSTITUTION ARTICLE I., Plaintiff have certain natural and unalienable rights, among which are those of enjoying and defending life and liberty, and pursuing and obtaining safty, and protecting property, when she was assaulted.

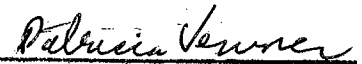
5. The plaintiff assumption to opening the door did solely caused her injuries and damages to the two officers who wanted to only inflate their false report to have her arrested, on inflated false charges, there was nothing in their "Report" that contained the truth, she not even allowed to make a phone call to her job, giving them details as to what happen, pursuant to

2C;33-4, plaintiff was being harassed and falsely charged with  
planted alleged evidence and lies of blood when there was non.

6. No one showed up for Court but the plaintiff to defend  
the false lies alleged against her,, the defendant did not appear  
for Criminal Court 100 Centre st. NY, NY before Judge Johnson, to  
give false testimony of how the plaintiff assaulted this  
person first or caused her a nose bleed or needed a stick to use  
against this person all lies, the defendant non appearance was due  
to the Judge finding out the truth of lies being told before her  
by a false "Report" committed by the two officers. A municipality  
may be held accountable for injurious acts performed in its  
governmental capacity when they constitute active wrongdoing.  
Visidor Corporation v. Borough of Cliffside Park, 48 N.J. 214, 225  
A.2d 105 (1966) certiorari denied 386 U.S. 972. 87 S.Ct. 1166, 18  
L.Ed. 2d. 132.

7. The Criminal Court sealed the case files, and that is where  
wrongdoing and lies should stay.

Wherefore, the plaintiff demand award as stated in her  
claim before the Court for injuries she had to endure on false  
intentional charges.

  
PATRICIA VENNER

ZACHARY W. CATER  
Corporation Counsel  
100 Church St.  
New York, New York 10007

0682/2014

VENNER, PATRICIA  
CITY-OTHER TORTS  
NERVO, FRANK P. (DCM)

NEW YORK CITY  
CITY CASES  
ACTIVE

PRE-NOTE

quested appearance not found

*J. Nervo  
80 Centre St  
Room 307*

SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK

PATRICIA VENNER

Plaintiff,

-vs-

NEW YORK CITY AND 7th PCT POLICE DEPT.  
OFFICER MILLER, KRMOYAN,  
DEFENDANT.

NOTION OF MOTION FOR  
TRIAL AND OPPOSITION TO  
DEFENDANT'S MOTION TO  
DISMISS

Index No.  
100682/2014

Please Take Notice that upon thr attached affirmation of  
Patricia Venner affirmed and papers herein will move for Trial.

1. Plaintiff, Pro Se submitting the Court's REQUEST FOR  
DOCUMENTS, "BILL OF PARTICULARS" plaintiff has no e-mail address  
but, filed copies in person on April 7, 2015. Exhibit A.

2. The defendant was provided with an answering "BILL OF  
"PARTICULARS and provided on June 4, 2015, where to obtain all  
copies of everthing that went before The Criminal Court of The  
City Of New York the defendant could not file a Deposition as  
requested by The Criminal Court Exhibit B. (All documents filed by  
all the defendant.). New York City And (The City Of New York) 7th  
PCT Police Dept. Officer Miller, Krmoyan. Plaintiff will move this  
Court in room 130 of The Supreme Court, 60 Centre Street, New  
York, New York 10007, on the 25th day of September 2015 at 9;30  
a.m. for an order pursuant to Rule. §3017(a) CPLR, Rule (22NYCRR  
202.12)., granting this Order for Trial.

COUNTY, New York  
DATE: SEPTEMBER 11, 2015

PATRICIA VENNER  
P.O. BOX 767  
NEW YORK, NEW YORK  
10002

TO; ZACHARY W. CARTER/NICHOLAS SCHAEFER  
Corporation Counsels  
100 Church Street, 4th fl.  
New York, New York 10007

RECEIVED  
SEP 15 2015  
NEW YORK  
COUNTY CLERK'S OFFICE

SEP 15 PM 3:09

|                                         |                                          |
|-----------------------------------------|------------------------------------------|
| SUPREME COURT<br>STATE OF NEW YORK      |                                          |
| APPROVE                                 |                                          |
| J.A.S. MOTION<br>SUPPORT OFFICE         |                                          |
| <input checked="" type="checkbox"/> MOT | <input checked="" type="checkbox"/> EX-M |
| 9-15-15                                 |                                          |
| CLERK'S<br>INITIALS                     |                                          |

SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK

---

NEW YORK COUNTY CLERK  
JULIA A. GIBLIN  
12/09/16 PM 3:09

PATRICIA VENNER,

Plaintiff

AFFIRMATION

-VS-

Index No. 100682/2015

NEW YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER, MILLER, KRMOYAN,

Defendants

---

STATE OF NEW YORK  
COUNTY OF NEW YORK

PATRICIA VENNER, makes the following affirmation under the penalties of perjury;

I, Patricia Venner am plaintiff in the above-entitled action and respectfully move this Court to issue an order; that this be set for trial.

The reason why I am entitled to the relief I seek is the following:

The defendant had already answer the complaint and provided with more then enought time to state its' case but failed to do so. The plaintiff has provided the defendant with information where these same Documents, copies can be obtained no difference from the ones that were sealed by Criminal Court judge Hon. judge Johnson 100 Centre Street New York N.Y. Exhibit(b).

The defendant was provided with copies of answers to the "Bill Of Particulars", still no answer, Exhibit(a) the defendant made false claims of not receiving an answer, violation of Rule 3.1 (Meritorious Claims, Rule 3.3(4), the Notion Of Motion to dismissing the wrong that was done to the plaintiff was not



made in good faith that the defendant need to unseal hurtful false claims made against her, by reason of the fact that the defendant could not produce a Deposition for the Criminal Court.

Corperation Counsel was provided with the full set of documents contained in Count's files but, failed to defend the claims made against both officers.

Wherefore, plaintiff seek an order for trial for false planting of alleged evidence, being held over 26 hours on false charges.

State of New York  
County of New York

Sworn to before me this  
15<sup>th</sup> day of September 2015

X *Palmer*

*Frankie Almanzar*

FRANKIE ALMANZAR  
Notary Public, State of New York  
Reg. No. 04/A1.6287906  
Qualified in New York County  
Commission Expires Sept. 9, 2015

DATED: September 11, 2015

A

Index #: 100682/2014

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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

---

PATRICIA VANNER,

Plaintiff(s),

- against -

NEW YORK CITY AND 7TH PCT. POLICE DEPT. OFFICER MILLER,  
KRMOYAN,

Defendant(s).

---

**COMBINED DEMAND FOR  
BILL OF PARTICULARS & DISCOVERY**

---

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF NEW  
YORK S/H/A 7TH PCT. POLICE DEPT., P. O. VAHAGN KRMOYAN S/H/A  
KRMOYAN, 100 Church Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)

(212) 356-2680/2683

All Other Matters (by county of venue)

(718) 590-3487 (EBT's-3971) (Bronx)

(718) 222-2000 (EBT's-2069) (Kings)

(212) 788-0646 (EBT's-0628) (New York)

(718) 206-4731 (EBT's (718) 206-4703) (Queens)

(718) 447-5983 (EBT's-5985) (Richmond)

(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #:

2014-023906

and indicate the County in which the action is pending in all papers,  
correspondence and other communications with respect thereto.

2016-12-09  
FILED  
CLERK OF COURT  
COUNTY OF NEW YORK

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

----- X  
PATRICIA VENNER,

Plaintiff(s),

**COMBINED DEMAND FOR  
VERIFIED BILL OF  
PARTICULARS & DISCOVERY**

-against-

NEW YORK CITY AND 7TH PCT. POLICE DEPT. OFFICER  
MILLER, KRMOYAN,

Defendant(s).  
----- X

**DEMAND FOR VERIFIED BILL OF PARTICULARS**

**PLEASE TAKE NOTICE** that pursuant to CPLR 3041, plaintiff(s) is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. The exact date and time of the act or occurrence. **9-14-13**
2. The specific location of the act or occurrence with reference to addresses, landmarks, or other identifying points of reference, including the direction and distance therefrom. If the occurrence took place inside a premise, state specifically the location within the premise and also include the block and lot of the premises. **81 COLUMBIA ST NEW YORK NY 10002**
3. State the injuries claimed, if any. **INTENTIONAL PERSONAL INJURIES**
4. State those injuries claimed to be permanent. **MENTAL SUFFERING**
5. If applicable, set forth the length of time it is alleged the plaintiff(s) was confined to:
  - (a) Hospital(s): **N/A**
  - (b) Bed: **N/A**
  - (c) House. **3 DAYS**
6. If applicable, set forth the amount claimed as special damages for:
  - (a) Physician(s) services: **N/A**
  - (b) Nurses services: **N/A**
  - (c) Hospital expenses: **N/A**
  - (d) Drugs and medical supplies: **N/A**
  - (e) X-rays and diagnostic tests. **N/A**

For each of the foregoing elements of damages please state the name and address(es) of the provider(s) and the dates of treatment. If any of the foregoing elements of damages have been repaid to the plaintiff(s) or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff(s). **N/A**

7. If applicable, state the total amount of all other special damages not specified in items above; and please state the **N/A**
  - (a) name and address of each service provider: **N/A**
  - (b) each date of the service: **N/A**

- (c) amount of the expense for each provider; **N/A**
- (d) amount of any expense paid by a third-party (including any payment made to reimburse plaintiff); **N/A**
- (e) name and address of the third-party paying any expense; and **N/A**
- (f) amount of any unreimbursed expense paid by plaintiff(s) personally to each provider. **N/A**

8. State the occupation of plaintiff(s) at the time of the incident; and please state the:

- (a) name and address of any employer for 5 years prior to alleged incident and up to the time of trial; **N/A**
- (b) length of time totally disabled from work; **N/A**
- (c) length of time partially disabled from work; **N/A**
- (d) amount claimed for lost earnings, if any; **N/A**
  - i. if a loss of earnings claim is alleged, please state the yearly gross earnings for each year during 5 years prior to alleged incident and up to the time of trial; and **N/A**
- (e) number of days absent from work as a result of injuries sustained from the incident. **N/A**

9. State the (a) name and address of any school attended by plaintiff(s) for 5 years prior to alleged incident and up to the time of trial; and (b) the number of days lost from school as a result of injuries sustained from incident. **N/A**

10. State the home address of plaintiff(s) for a period of 5 years prior to the alleged incident to the present. **81 COLUMBIA ST NEW YORK NY 10002**

11. State any other name used by plaintiff(s) and the time period when the name was used. **N/A**

**12/29/43** 12. State the date of birth and social security number of plaintiff(s) (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to determine whether plaintiff(s) is (are) Medicaid recipient(s) for purposes of determining whether a Medicaid lien may attach to any judgment or settlement obtained against the defendant(s). **N/A**

13. State whether plaintiff(s) is (are) Medicare recipient(s). If plaintiff is or was a Medicare recipient please provide their Medicare identification number and social security number (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to verify that plaintiff(s) is (are) Medicare recipient(s) for purposes of defendant(s) meeting its (their) Medicare reporting obligations. **N/A**

14. If plaintiff(s) has ever been convicted of a crime (including any guilty plea), please state (a) the NYSID number of plaintiff; (b) the dates of every conviction; (c) whether the conviction was state or federal; and (d) the county where each conviction occurred. **NONE**

15. If the complaint alleges loss of services, set forth the pecuniary loss, if any, alleged in the complaint. Enumerate the damages for: **AUXILIARY POLICE**

- (a) Loss of services; **10/3/13**
- (b) Consortium; **N/A**
- (c) Other expenses. **N/A**

16. State those injuries arising from the use or operation of a motor vehicle which are claimed to be serious, as defined in Insurance Law § 5102 (d), if any. **N/A**

17. If property damage is claimed, please state (a) all property damaged; (b) the fair market value of each item at the time it was damaged; (c) the cost of repairing each item; (d) the cost of replacing each item; (e) the date each item was acquired; (f) the purchase cost of each item; (g) the amount(s) provided by a third-party to reimburse damage; (h) the name and address of any third-party which reimbursed damage; and (i) amount of any unreimbursed payment made by plaintiff(s) to replace or repair a damaged item.

18. State the manner in which it is claimed the accident occurred. **N/A**

19. State separately the acts or omissions constituting the alleged negligence of each of the answering defendant(s), if any. **WRITING FALSE REPORT, PLANTING FALSE ALLEGED EVIDENCE INTENTIONALLY DESTROYING HER REPUTATION**

20. State separately the acts of each of the answering defendant(s) constituting the intentional wrongs claimed, if any. **FALSE WRITTEN WORD IN REPORT, PLANTING FALSE EVIDENCE.** 21. State the names of the employee(s) or agents of the answering defendant(s) who are alleged to have committed the acts set forth in the items above. **OFFICERS, VAHAGN KRMOYAN, MILLER.**

22. Describe any alleged dangerous and defective condition and or the object or instrumentality complained of, as well as the nature of the condition alleged. **NO CLEAN WATER, OR FOOD, SLEEP ON BENCH** 23. State whether any repairs were made prior to the happening of the alleged accident.

24. If it is alleged that repairs were made prior to the happening of the accident, state when, where, and by whom, the repairs were made. **N/A**

25. State whether actual or constructive notice is claimed or whether it is alleged that defendant created the condition complained of. **N/A**

26. If actual notice is claimed, then set forth the following: **N/A**

(a) The names of the employees, agents and/or servants of the defendant(s) to whom it will be alleged said actual notice was given: **N/A**

(b) By whom will it be claimed that said actual notice was given on each occasion aforesaid; **N/A**

(c) The date or dates of each said notice: **N/A**

(d) The place said actual notice was given.

27. If constructive notice is claimed, state the length of time said condition is alleged to have existed prior to the happening of the alleged occurrence. **N/A**

28. If prior written notice is claimed, specify the nature of such notice. **N/A**

29. If prior written notice is claimed, then set forth the following: **N/A**

(a) The name(s) of the entity, agency, employees, agents and/or servants of the defendant(s) to whom it will be alleged said prior written notice was given: **N/A**

(b) By whom will it be claimed that said prior written notice was given on each occasion aforesaid; **N/A**

(c) The date or dates of each said notice;

(d) The place said notice was given.

30. In any action where plaintiff(s) claim the violation of any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes, ordinances, rules or regulations alleged to have been violated by the answering defendant(s). **PENAL LAW SEC. 210.45**

31. If applicable, describe in what respects defendant(s) failed to provide plaintiff(s) with a safe place to work. **N/A**

32. If applicable, state whether plaintiff(s) will allege that this defendant(s) was a party to a contract. If yes; **N/A**

(a) State the parties to the contract;

(b) State the contract number.

**N/A** 33. If applicable, set forth each and every item of construction, excavation or demolition work which the plaintiff(s) will allege was not so constructed, shored, equipped, guarded, arranged, operated and conducted as to provide reasonable and adequate safety; setting forth the manner in which the construction, shoring, equipping, guarding, arranging, operating and/or conducting of the construction, excavating, or demolition work is alleged to have caused the plaintiff(s) alleged injury.

34. If applicable, state whether the plaintiff(s) will allege that this defendant(s) exercised control over the work being performed at the job site. If yes, state the nature and extent of the control allegedly exercised and the exact manner in which said control was exercised.

35. If applicable, state those injuries claimed to be "grave", as defined in the Workers' Compensation Law § 11.



### ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges defamation, the following items are additionally demanded:

36. Whether the alleged defamatory statement was communicated orally or in a writing. **YES.**
37. With respect to each of the answering defendant(s), the particular words complained of and allegedly communicated. **PLADNTIFF. FIRST ASSULTED OTHER PERSON WITH A PUNCH**
38. The name(s) and address(es) of any person(s) it is alleged heard or received the defamatory statement(s). **BRENDA SPENCER 81 COLUMBIA ST. NEW YORK**
39. If it is alleged that the defamatory statement(s) were communicated in a writing, set forth the date(s), nature, and content of the writing. **POLICE REPORT. STATEMENTS TO PLAINTIFF=**
40. If it is alleged that any defamatory statement was published, set forth the date(s), nature and name of the media or publication and each republication of the alleged defamatory statement. **9/14,15, 2013**
41. The circumstances, acts, and/or omissions which evince defendant(s) knowledge of the falsity, or reckless disregard of the truth, or malice, with respect to the statement(s) allegedly made. **MELLER, BANG ON APARTMENT DOOR THAT WAS CLOSED ASKING SISTER FOR A "STICK"**

### ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges police misconduct, the following items are additionally demanded:

42. State the criminal court file and docket number of the criminal proceeding. **UK.**
43. State the (a) the specific charges; (b) the disposition of each charge; and (c) the date of said disposition. **MISDEMEANOR 12, 20, 13**
44. State the date and time taken into custody. **9/14/13, 10:15 PM**
45. State the date of arraignment. **9/16/13 1200 AM**
46. State the date and time released from incarceration.
47. State the name, address, and phone number of attorney(s) who represented plaintiff(s) in the criminal proceedings. **N/A**
48. State the amount claimed for legal fees, if any. **500,**
49. State the NYSID number of plaintiff(s). **N/A**
50. For each criminal proceeding, including arraignment, please state the (a) the type of proceeding; (b) the date(s) of the proceeding; (c) the name of reporter who transcribed the proceeding; and (d) the name of Judge who presided over the proceeding. **N/A**  
**JUDGE JOHNSON, CRIMINAL COURT OF THE CITY OF NEW YORK, MISDEMEANOR, 9/16/13, 10/13/13, 12/20/13**

### ALLEGED EXPOSURE TO LEAD-BASED PAINT

**N/A** Where applicable, in addition to the foregoing, if plaintiff(s) allege damages as a result of exposure to lead-based paint, the following items are additionally demanded:

51. The day, month, and year of initial exposure;
52. The day, month and year when exposure terminated;
53. The address(es), including apartment numbers, of every premises where it is alleged that plaintiff(s) were exposed to lead-based paint;
54. The highest recorded blood lead level for plaintiff(s) and the date of the diagnosis;
55. The date of the initial diagnosis;
56. Whether it is claimed that plaintiff(s) sustained any cognitive injuries or learning disabilities as a result of any alleged exposure and if so, state the nature of the disability, when any such disability was diagnosed, the school and current grade level of plaintiff(s) and whether plaintiff(s) have been placed in any special classes.

### ALLEGED ACTION FOR WRONGFUL DEATH

**N/A** Where applicable, in addition to the foregoing, if plaintiff(s) allege wrongful death, the following items are additionally demanded:

- 57. State the amount claimed as pecuniary loss, specifying the loss of parental guidance by each person dependant upon support of the decedent.
- 58. State the names, addresses, ages, and relationships to the decedent of all persons to whose support it is claimed the decedent contributed.
- 59. State the nature and purpose of the support contributed as to each person supported, including how and when support was given.
- 60. State the date, place and cause of death.
- 61. State the length of time the decedent remained conscious of the injuries sustained.
- 62. State the total amounts claimed as special damages for:
  - (a) Funeral and burial expenses;
  - (b) Administration expenses;
  - (c) Any other damages claimed.

**N/A ALLEGED NEGLIGENT EMERGENCY MEDICAL RESPONSE**

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent emergency medical response, the following items are additionally demanded:

- 63. The exact dates and times of the claimed acts or occurrences.
- N/A** 64. The specific locations of the claimed acts and/or occurrences with reference to addresses, landmarks, or other identifying points of reference. If the claimed acts and/or occurrences took place inside a premise, state specifically the location within the premise and/or the department(s), as applicable, of said premises.
- 65. The specific time when the need for medical attention was first noticed by the plaintiff in distress, or by another person.
- 66. If a call for emergency assistance was made, indicate:
  - (a) the time at which the call was placed.
  - NA** (b) the person who placed the call and, if other than the patient, his or her relationship to the patient.
  - (c) the description or report of injury or emergency given.
  - (d) if more than one call was made to 911.
  - (e) what the caller was told by the operator.
- 67. If more than one call was made to 911, indicate:
  - (a) the total number of calls made to 911.
  - N/A** (b) the time of each respective subsequent call,
  - (c) the person or people who made each respective subsequent call (if different from the first call).
  - (d) if the description of the injury or emergency changed after the first call to 911, indicate what the change was, why the description changed, when the change in condition was first noticed prior to it being reported to 911, and when the change was reported to 911
  - (e) what the caller was told by the operator during each respective call.
- 68. Indicate if 911 had been contacted earlier in the day of the incident for the same or similar condition. If so, indicate the person or persons who made the call, and when they made it. Describe what the person or persons were told by the operator.  
**N/A**
- 69. Indicate what time emergency personnel first arrived. Also indicate, if known, the respective names and ranks of emergency personnel who arrived on the scene. If known, indicate if the personnel were from the FDNY or the NYPD. If the

personnel were not from either of those two agencies, identify, if known, the agency or hospital the personnel were from.

70. Indicate, if known, what time any additional and/or subsequent emergency personnel arrived after the initial emergency personnel. Indicate if such additional personnel were from the FDNY or the NYPD. If the additional personnel were not from those two agencies, identify the agency or agencies the personnel were from. Indicate the names and ranks of any additional emergency personnel who arrived. Describe any actions taken, and treatment provided by additional emergency personnel on-scene, or, if applicable, en route to a hospital.

N/A

71. State whether a claim is made that the answering defendant ignored or misdiagnosed complaints, signs, or symptoms of the patient plaintiff.

- (a) If such a claim is made, state specifically by name or description all complaints, signs, and symptoms that the answering defendant(s) ignored or misdiagnosed.

N/A

- (b) State what injury is claimed as the result of the answering defendant ignoring or misdiagnosing the complaints, signs, and symptoms.

- (c) State specifically at what point during treatment the complaints, signs, and symptoms were ignored or misdiagnosed.

- (d) State what the misdiagnosis of the complaints, signs, and symptoms was.

N/A

72. Describe the treatment, if any, provided by each of the arriving emergency personnel. Indicate, with specific time(s) and location(s):

- (a) if the patient was intubated.

- (i) If it is claimed that intubation was improper, describe how and why the intubation was improper, and the affect such alleged improper intubation had on the patient's condition, illness, or injury.

- (ii) If it is claimed that the patient should have been, but was not intubated, describe the affect such alleged lack of intubation had on the patient's condition, illness, or injury.

- (iii) If it is claimed that there was a delay in the patient being intubated, state the length of the delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.

- (b) if an intravenous line was started.

N/A

- (i) If it is claimed that an intravenous line was improper, describe how and why the intravenous line was improper.

and the affect such alleged improper use had on the patient's condition, illness, or injury.

(c) if a defibrillator was required or used.

(i) If it is claimed that a defibrillator was improperly used, describe how and why the use was improper, and the affect such alleged improper use had on the patient's condition, illness, or injury.

N/A

(ii) If it is claimed that a defibrillator should have been, but was not used, explain the affect such alleged lack of use had on the patient's condition, illness, or injury.

(iii) If it is claimed that there was a delay in using a defibrillator, state the length of delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.

(d) if oxygen was required or given.

(i) if it is claimed that oxygen should have been given and was not, explain why oxygenation was required, as well as the affect that the alleged lack of oxygenation had on the patient's condition, illness, or injury.

N/A

(ii) if it is claimed that oxygenation was improper, explain how it was improper, and the affect that such alleged improper oxygenation had on the patient's condition, illness, or injury.

(iii) if it is claimed that there was a delay in oxygenation of the patient, state the length of delay, and the affect such alleged delay had on the patient's condition, illness, or injury.

(e) if any medication was improperly administered, contraindicated, administered in an improper dosage or improper manner.

N/A

(i) State the name and description of each drug or medication improperly administered. Describe the manner in which the drug or medication was improperly administered. State the injury claimed as a result of the improperly administered drug or medication. State specifically at what point the drugs were administered improperly.

(ii) State the name and description of each drug or medication administered in an improper dosage. Indicate what the improper dosage was. State the injury claimed as a result of the improper dosage. State specifically at what point during treatment the drugs were administered in an improper dosage.

- (iii) State the name and description of each drug or medication claimed to be contraindicated. State in what way it is claimed that each such drug or medication was contraindicated. State the injuries claimed as a result of the administering of the contraindicated drug or medication. State specifically at what point during treatment the contraindicated drug or medication was administered.

N/A

73. Indicate if the plaintiff was transported to a hospital. Specify who transported the plaintiff to the hospital. Indicate if the plaintiff requested to be taken to a specific hospital. Identify the hospital to which the plaintiff was taken. Indicate what time the plaintiff was transported from the scene to the hospital and with whom if anyone she was accompanied by.

N/A

74. If it is claimed that emergency personnel lacked equipment to adequately provide aid, describe the equipment alleged to have been missing, and why such equipment is believed to have been missing. Describe how the alleged lack of equipment affected the patient's condition, injury, or illness.

75. State whether a claim is made as to defective equipment.

- (a) If such a claim is made, identify the equipment and state the nature of the defect.

N/A

- (b) If notice of such a defect is a prerequisite to liability, state whether actual or constructive notice is claimed.

- (c) If constructive notice is claimed, state how long the condition existed.

76. State separately the acts or omissions constituting the alleged negligence and/or medical malpractice of each of the named defendants.

77. **INTENTIONAL MAKING FALSE REPORT FALSE EVIDENCE**  
State the manner in which it is claimed the alleged injury arose.

78. **PLANTING FALSE ALLEGED EVIDENCE TO ARREST**  
State separately the acts of each of the named defendants constituting the intentional wrongs claimed, if any.

79. **KNOWING COMMITTING WRONGFUL FALSE ACTS**  
State the names of the employee(s) or agents of the answering defendant who are alleged to have committed the acts set forth in the paragraphs above.

80. **KRMOYAN AND MILLER 7<sup>TH</sup> PCT. POLICE DEPT.**  
If it is claimed that the answering defendant violated any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes, ordinances, rules or regulations alleged to have been violated by the answering defendant, as well as any statute, ordinance, rule, order, requirement or regulation claimed to have been violated by each of the named defendants.

**PENAL LAW SEC. 210.45, U.S. CONSTITUTION**

**ARTICLE I (1), PENAL LAW 500-d, OFFICERS HAD NO WARRANT FOR SEIZURE OF A STICK TO PLANT, CONSTITUTION ARTICLE I (7)**

81. State all injuries claimed as the result of the alleged negligence of the answering defendant herein, and state specifically which of the above injuries are claimed to be permanent in nature. **HARASSMENT, DEHYDRATION, HELD 26**

**HOURS, FALSELY ACCUSED WITH PLANTED ALLEGED EVIDENCE**  
 82. For actions other than for wrongful death, state the length of time the plaintiff was confined to each of the following by virtue of the acts or omissions of the answering defendant(s) herein. **OVER (26) TWENTY SIX HOURS**

(a) Hospital, listing separately each period of hospitalization with the name and address of each hospital.

**N/A** (b) Home.

(c) Bed.

83. Set forth the amount claimed as special damages for:

- (a) Physician(s) services;  
 (b) Nurses services;  
 (c) Hospital expenses;  
**N/A** (d) Drugs and medical supplies and/or equipment;  
 (e) X-rays and diagnostic tests;  
 (f) Rehabilitative and/or therapy services;  
 (g) Home health services;  
 (h) Any other expenses claimed.

84. For each of the foregoing elements of damages please state the name and address(es) of the provider(s), pharmacies, the dates of treatment and/or dates of use and list of prescriptions/medications filled. If any of the foregoing elements of damages have been repaid to the plaintiff or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff.

85. Set forth:

**N/A** (a) Occupation of plaintiff at the time of the occurrence;  
 (b) Whether plaintiff was self-employed, and, if so, state the address of her place of employment and the nature of the business or occupation in which she was engaged immediately prior to the occurrence.

- (c) Name and address of plaintiff's employer, if any;  
 (d) Average weekly, monthly and/or annual gross earnings;  
**N/A** (e) State separately, the length of time totally and/or partially disabled;  
 (f) Amount claimed for lost earnings, if any;  
 (g) Number of days lost from work;  
 (h) Number of days lost from school;  
 (i) Name and address of school attended by plaintiff at the time of the date of

accident.

86. Provide plaintiff's present residence address and plaintiff's residence address at time of the occurrence.

87. List all other names used by plaintiff.

**N/A**

88. List plaintiff's date of birth and social security number.



**DEMAND FOR DISCOVERY & INSPECTION**

**PLEASE TAKE FURTHER NOTICE** that within 30 days following service of this demand you are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control; but, in any event, no later than forty-five days before trial.

**GENERAL DEMANDS**7<sup>TH</sup> PCT

1. If the City of New York is a named defendant, please identify the agency(s) involved.
2. For each person you believe may have been a witness to the incident which caused an injury, state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties. **BRENDA SPENCE 81 COLUMBIA ST NY**
3. For each person you believe may have been a witness to the condition which allegedly caused an injury, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties. **SAME AS STATED # 1, 2**
4. For each person you believe may be a witness to an injury alleged in this lawsuit, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties. **UK.**
5. For each expert witness whom you expect to call at trial, please state the (a) name of the expert; (b) business address of the expert; (c) qualifications of the expert; (d) curriculum vitae of the expert; (e) subject matter in reasonable detail that the expert is expected to testify; (f) substance of the facts and opinions on which each expert is expected to testify; and (g) a summary of the grounds for each opinion.
6. If any sum has been paid or promised to plaintiff(s) by any person claimed to be liable (within the meaning of § 15-108, General Obligations Law) for any of the injuries (or damages) alleged in the complaint, please set forth the name(s) and address(es) of the person(s), corporation(s), insurance company(s), or other entity(s) making such payment or promise and state the amount(s) which have been, or will be, with reasonable certainty received by plaintiff(s). **N/A**
7. For each person you believe may have provided an oral or written statement about the incident, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties. **UK.**
8. Furnish a copy of each document you believe may have been prepared by the answering defendant(s) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation, including any statement made by any person identified in response to Item 6 above, and any note, memorandum or recording of any oral statement. **N/A**
9. Furnish the sum and substance of any unrecorded oral statement you believe may have been given by each defendant (or employee, or former employee, of a defendant) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation. **UK.**

N/A 10. Provide a copy of any (a) any insurance claim arising out of the incident alleged in this lawsuit; (b) any workers' compensation claim arising out of the incident alleged in this lawsuit; (c) any pension claim arising out of the incident alleged in this lawsuit; (d) any no-fault claim arising out of the incident alleged in this lawsuit; and (e) any other claim seeking redress for the incident alleged in the lawsuit.

N/A 11. Furnish a copy of any Freedom of Information Law request made to the answering defendant(s) and any response thereto, which you intend to use for any purpose in this litigation.

N/A 12. Furnish copies of any subpoenas served on any party, or any other individual or entity concerning this litigation.

N/A 13. Provide a copy of any transcript of testimony involving the incident alleged in the lawsuit (including (but not limited to) any examinations under oath, transcript or materials related to a Department of Motor Vehicle hearing, departmental hearing, and criminal proceeding).

N/A 14. Provide a signed copy of any hearing held pursuant to General Municipal Law § 50-h.

N/A 15. Please furnish a copy of each accident report, if any, made by, or on behalf of your client(s) concerning the occurrence of the injuries (or damages) alleged in the complaint.

N/A 16. Furnish a copy of any written notice, Big Apple Corporation map or other document giving notice of an allegedly defective or dangerous condition at the place where the injuries (or damages) alleged in the complaint occurred, prior to the occurrence thereof.

X/A 17. Furnish a reasonably clear copy of each photograph and or each video depicting the place where the injuries (or damages) alleged in the complaint occurred.

X/A 18. If plaintiff intends on utilizing any physical evidence at trial, please (a) provide a photograph of the physical evidence; and (b) make the physical evidence available for inspection.

N/A 19. In any action for injuries, including death, allegedly sustained by a spouse, child or other family member of a plaintiff, please furnish a copy of each marriage, birth and death certificate, as applicable.

N/A 20. In any representative action, please furnish a copy of the court order appointing the representative.

N/A 21. With respect to any earnings (or profits) claimed to have been lost as a result of the injuries (or damages) alleged in the complaint, please furnish a copy of each state and each federal income tax return including any W-2 statements, together with attachments, filed by, or on behalf of, plaintiff(s) for the year in which the said injuries (or damages) occurred and for each of the two preceding years, and for all years in which continuing losses are claimed.

N/A 22. In any action for wrongful death, please furnish a copy of the federal estate tax return filed for decedent's estate, and a copy of each state and each federal income tax return, including W-2 statements, filed by, or on behalf of the decedent for each of the two years before death.

N/A 23. Furnish a copy of each medical provider's report and medical bills, including pharmaceutical bills and bills for durable medical goods, with ICD-codes, referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **after** the occurrence of the injuries alleged in the complaint, or any treatment reasonably related thereto.

N/A 24. Furnish a copy of each medical provider's report referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **before** the occurrence of the injuries alleged in the complaint and reasonably related thereto.

N/A 25. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to (a) obtain each document referring to any treatment of plaintiff(s) (including psychological treatment) for any injury alleged in this lawsuit; and (b) speak with any medical provider which provided any treatment to plaintiff(s). This demand includes treatment which is reasonably related to any injury alleged in this lawsuit. Please utilize form located New York State Unified Court System webpage located at [www.nycourts.gov](http://www.nycourts.gov).

N/A 26. In any action by or on behalf of a student, please furnish duly executed authorizations permitting the Office of the Corporation Counsel to examine and copy the school, attendance and health records of the plaintiff(s) on file at the school(s) attended at the time of the occurrence and thereafter.

N/A 27. If plaintiff received workers' compensation benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the workers' compensation file; and (b) a copy of the worker's compensation file.

N/A 28. If plaintiff received no fault benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the no fault file; (b) a copy of the no fault file.

N/A 29. If plaintiff alleges economic loss, please provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records on file at the last employer.

N/A 30. State whether plaintiff is currently receiving, has applied for or is eligible for Social Security Disability payments. If plaintiff is currently receiving Social Security Disability payments, please identify when eligibility began and identify his/her SSDI number and the medical condition on which basis coverage was awarded. If plaintiff has received Social Security Disability payments at any point in the past, please identify the period or periods of time when plaintiff was eligible and identify his/her SSDI number and medical condition on which basis coverage was awarded.

N/A 31. If, in your response to the prior request, you indicated plaintiff has ever applied for or been eligible for Social Security Disability payments, please provide (a) copies of all social security disability records, including any determination and decision; and (b) a duly executed authorization (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain Social Security disability records from the Social Security Administration.

N/A 32. Identify all health care benefits, including but not limited to private health insurance carriers and public health care programs (e.g., Medicaid), plaintiff has received or which plaintiff will become eligible to receive as a result of injuries allegedly related to the subject accident/incident and provide copies of plaintiff's identification cards for all identified health care programs.

N/A 33. State whether plaintiff is or has ever been a Medicare recipient and, if so, provide plaintiff's Medicare Health Insurance Claim Number ("HICN") and a copy of his/her HICN card. If no card is available, please provide the date eligibility began. If plaintiff has received Medicare coverage at some point in the past and no HICN card is available, please identify the period or periods of time when plaintiff was eligible.

N/A 34. Furnish the name and address of the attorney(s) who have appeared in this action.

N/A 35. Furnish the names of the parties, the court, and the index number of each other action, if any, commenced by or on behalf of plaintiff(s) concerning any of the injuries (or damages) alleged in the complaint.

#### DEMANDS FOR COLLATERAL SOURCE INFORMATION

N/A 36. Entities that have provided payments for medical treatment. Identify by name, address and policy number, any source that has provided payments to plaintiff, or to plaintiff's spouse, domestic partner, or parent for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

N/A 37. Entities that have provided payments on account of disability. Identify by name, address and policy number, any source that has provided payments to plaintiff, by reason of plaintiff's partial or total inability to work. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

38. Entities from which plaintiff is eligible to receive medical coverage. Identify by name, address and policy number, any source from which plaintiff is eligible to receive medical coverage for the

injuries received in this accident whether or not plaintiff has actually applied for such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

39. Entities from which plaintiff is eligible to receive disability benefits. Identify any source by name, address and policy number, any source from which plaintiff would be eligible to receive payments in the event of plaintiff's partial or total inability to work, whether or not plaintiff has applied for or received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

40. Entities to which plaintiff has applied for medical benefits. Identify any source by name, address and policy number, any source to which plaintiff, or plaintiff's spouse, domestic partner, or parent, has submitted claims or applied for benefits for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident whether or not such benefits were received. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

41. Entities to which an application for disability benefits has been made. Identify any source by name, address and policy number, any entity to which an application has been made for payments by reason of partial or total inability to work, whether or not plaintiff has received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

42. Entities to which plaintiff has paid premiums to obtain medical or disability coverage. Identify any entity by name, address and policy number to which plaintiff, or plaintiff's spouse, domestic partner, or parent paid premiums to obtain medical or disability coverage for two years prior to the incident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for proof of such payment of premiums.

#### ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) allege police misconduct, the following items are additionally demanded:

43. Provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records pertaining to all criminal proceedings related to the incident alleged in this lawsuit. Please provide a separate authorization for each entity which maintains these records (including (but not limited to) the Office of the District Attorney, the New York City Police Department, and criminal court).

44. Provide copies of records pertaining to all criminal proceedings related to the incident alleged in the lawsuit, including (but not limited to) transcripts, certificates of disposition, police records, criminal records, District Attorney records, and photographs, including copies of any photographs of the plaintiff(s) taken by the defendant(s) at the time of the arrest.

45. If entitlement to reimbursement for legal fees is claimed, please provide copies of any bills incurred.

46. Provide the name, address, and phone number of any attorney representing plaintiff(s) concerning the criminal charges related to the incident alleged in this lawsuit.

#### ALLEGED PROPERTY DAMAGE

Where applicable, in addition to the foregoing, if plaintiff(s) allege property damage, the following items are additionally demanded:

47. For each item of property damaged:

- Photograph(s) and or videotapes depicting the items alleged to have been damaged, prior to damage;

- Photograph(s) and or videotapes depicting items alleged to have been damaged, subsequent to damage;

- Original purchase receipts, cancelled checks, and/or charge slips for items alleged to have been damaged;



N/A (d) Appraisals, warranties, etc. pertaining to the items alleged to have been damaged.

48. True and accurate copies of any and all insurance agreements held by plaintiff on day of said incident and pertaining to property damage and/or loss.

49. True and accurate copies of any and all notices of loss or claims made on the above policies pertaining to the damage alleged in the complaint.

#### ALLEGED NEGLIGENT SUPERVISION

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent supervision, the following items are additionally demanded:

N/A 50. For every individual who allegedly failed to provide adequate supervision, please state (a) the name of the individual; (b) the address and phone number of the individual; (c) the name of the entity who employs the individual; (d) the title of the individual; (e) the date that the individual failed to provide adequate supervision; and (f) the time that the individual failed to provide adequate supervision. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each individual. This demand includes all individuals, even if employed by any of the parties.

51. Identify the name or names of the person(s) it is alleged received inadequate supervision.

N/A 52. Provide the name(s) of any person(s) plaintiff will claim assaulted him/her with reference to the claim being asserted against the answering defendant(s).

53. If the person(s) identified in above have not yet appeared in this action, please provide copies of all documents, including but not limited to, affidavits of service and correspondence, which reflect any attempt to obtain jurisdiction over the individual(s).

N/A 54. Provide copies of any documents filed with or against any governmental agency(s) concerning the actions of any person(s) whom plaintiff(s) alleges caused the damages alleged in the complaint, including any criminal complaints filed and the disposition thereof.

N/A 55. For each individual you believe may have provided an oral or written statement concerning the supervision of any person involved in the incident, state (a) the name of any individual who provided a statement; and (b) the address and phone number of any individual who provided a statement. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have provided a statement. This demand includes all individuals, even if employed by any of the parties.

#### ALLEGED PREMISES LIABILITY

N/A Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) failed to properly maintain a premises, the following items are additionally demanded:

N/A 56. If it is alleged that the answering defendant owned the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) ownership of the premises.

N/A 57. If it is alleged that the answering defendant(s) leased the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) tenancy.

58. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

N/A 59. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

#### MOTOR VEHICLE ACCIDENTS

N/A Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

- N/A
60. Provide a copy of the title for the vehicle being operated by plaintiff.
61. Provide a copy of plaintiff's drivers license.
62. Provide a copy of the registration for the vehicle in which plaintiff(s) was located when the incident occurred.
63. Provide a copy of any (a) repair record (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident; and (b) maintenance records (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident.
64. Provide a copy of any recall notice received regarding the vehicle in which plaintiff(s) was located when the incident occurred.
65. Provide photographs taken of the vehicle(s) involved in the accident taken:
- (a) Before the accident;
  - (b) After the accident.
- N/A
66. Provide any estimates to repair the vehicle involved in this accident.
67. Provide any records or receipts for towing of the vehicle involved in this accident.
68. Provide a copy of the MV-104 filed by, or on behalf of, the plaintiff as a result of this accident.
69. Provide a copy of any accident report provided to any insurance company regarding this accident.
70. Provide any notes or memorandum describing this accident.
71. Provide a copy of any transcript of any Department of Motor Vehicle hearing taken with respect to this accident.
72. Provide the date, location, name of defendant or respondent, and name of Judicial Hearing Officer who presided over, any Department of Motor Vehicle hearing taken with respect to this accident.
73. Provide a copy of any insurance policy (including any umbrella or excess policy) covering the vehicle in which plaintiff(s) was located at the time of the incident.
74. Provide a copy of the no-fault file pertaining to plaintiff(s).

#### ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) defamed plaintiff(s), the following items are additionally demanded:

75. Provide a copy of any writing, publication (including any re-publications), and broadcast containing the alleged defamatory statement(s). **SEALED BY JUDGE JOHNSON**
76. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate the untruthfulness of the alleged defamatory statement(s). **SEALED**
77. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate defendant(s) malice or reckless disregard for the truth. **SEALED**
78. Provide the name of any individual who you believe has information concerning the untruthfulness of the alleged defamatory statement(s) or whether the statements were made with malice or reckless disregard for the truth, stating (a) the name of the individual(s); and (b) the address and phone number of the individuals. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person. This demand includes all individuals, even if employed by any of the parties. **7<sup>TH</sup> PCT. POLICE DEPT.**
79. Provide copies of any documents, bills, invoices or writings which plaintiff(s) intend to use to prove any alleged special damages.

**DOCUMENTS SEALED BY JUDGE JOHNSON  
CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK**



**ALLEGED LEAD-BASED PAINT**

**N/A** Where applicable, in addition to the foregoing, if plaintiff(s) alleges injuries as a result of exposure to lead-based paint, the following items are additionally demanded:

80. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain birth and prenatal records of plaintiff(s); the authorization must include the name and address of the hospital or facility where plaintiff(s) was born and the date of birth of plaintiff(s).

81. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of any medical provider who provided prenatal care; the authorization must include the name and addresses of each medical provider and the dates of treatment.

82. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of all (a) health providers who have rendered pediatric care (including treatment for any of the injuries currently alleged) to plaintiff(s); and (b) health care providers that screened blood of plaintiff(s). The authorizations must contain the name and address of each medical provider as well as the dates of treatment or testing.

83. Provide duly executed authorizations enabling defendant(s) to obtain the records of any and all schools, and/or day care centers attended by the plaintiff(s) to date; the authorizations must include the name(s) and address(es) of the schools and the dates of attendance.

84. Provide the name and address of the academic institution most recently attended by the infant plaintiff's natural mother and a duly executed authorization allowing that institution to release its records to the defendant(s). If the infant plaintiff's mother is not the custodial parent, please provide the same information with respect to any adult acting as the infant plaintiff's guardian or caretaker.

85. If the infant plaintiff has any siblings, please provide the following for each such sibling:

(a) Name, date of birth and current address;

(b) Names and addresses of any and all schools, pre-schools or day-care centers attended, and duly executed authorizations allowing those institutions to release their records to the defendant(s).

86. For each infant plaintiff, provide the name, date of birth and last known address of the biological father.

87. Provide copies of any photographs, movies, or videotapes depicting the premises.

88. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

89. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

**DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S))**

**PLEASE TAKE FURTHER NOTICE** that within 30 days following service of this demand, all other parties (excluding plaintiff(s)) are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control; but, in any event, no later than forty-five days before trial.

**GENERAL DEMANDS TO PARTIES (EXCLUDING PLAINTIFF(S))**

- N/A 1. Provide copies of complete contents of insurance policies in effect on the date of occurrence, including all endorsements, terms, and conditions, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.
- N/A 2. Provide copies of all excess and umbrella insurance policies in effect on date of occurrence, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.
- N/A 3. Provide copies of all certificates of insurance in effect on the date of occurrence, including but not limited to, any which name this defendant, or any of its agencies, as an insured or as an additionally insured.
- N/A 4. Copies of all contracts, sub-contracts, leases, franchises, and indemnification agreements in effect on date of occurrence.
- N/A 5. Provide copies of any documents, records or photographs relating to any repairs made to the location, premises or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.
- N/A 6. Provide copies of any documents, records or logs relating to any maintenance (including cleaning, altering, and shoveling) performed at, or to, the location, premises, or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.
- N/A 7. Copies of all accident reports kept in the regular course of business regarding the occurrence complained of in plaintiff's complaint.
- N/A 8. Provide a copy of plaintiff(s) Bill of Particulars and any discovery items previously exchanged, (including but not limited to: deposition transcripts and reports of physical examinations conducted of the plaintiff), and served upon or by defendant(s) or third-party defendant(s).

**DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING ALLEGED ROADWAY, SIDEWALK, AND CONSTRUCTION ACCIDENTS**

N/A Where applicable, in addition to the foregoing, in any action alleging defective roadway, sidewalk, or construction, the following items are additionally demanded:

9. Provide copies of all applications for permits, cut forms, opening tickets, work tickets, and paving orders.
10. Provide copies of all drawings, schematics, blueprints, strip maps, diagrams of underground facilities and of street hardware, including manhole covers, castings, and gratings.
11. Provide copies of all daily, weekly, and/or monthly progress reports, job progress photographs, and photographs of roadway color coding for entire period of construction.
12. Provide copies of all maintenance, inspection and repair records for the entire period of construction.

**DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING MOTOR VEHICLE ACCIDENTS**

N/A Where applicable, in addition to the foregoing, in any action in which it is alleged that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

13. Provide a copy of the title for any vehicle involved in the incident.
14. Provide a copy of the driver's license for the applicable driver involved in the incident.
15. Provide a copy of the registration for the applicable vehicle involved in the incident.
16. Provide the following records for the applicable vehicle involved in the incident for a two-year period prior to the alleged incident: (a) repair records (including logs, bills, and receipts); and (b) maintenance records (including logs, bills, and receipts).

17. Provide a copy of any recall notice received regarding any vehicle involved in the incident.

18. Provide photographs of the vehicle involved in the accident taken:

(a) before the accident;

(b) after the accident.

N/A

19. Provide any estimates to repair the vehicle involved in this accident.

20. Provide any records or receipts for towing of the vehicle involved in this accident.

21. Provide a copy of any MV-104 related to the incident.

22. Provide a copy of any Department of Motor Vehicle hearing related to the incident; and provide (a) the date, location, name of the parties, and name of Judicial Hearing Officer who presided over any Department of Motor Vehicle hearing.

23. Provide a copy of any accident report provided to any insurance company regarding this accident.

N/A

24. Provide any notes or memorandum describing this accident.

25. Provide a copy of any insurance policy, including any umbrella or excess policies, covering the vehicle defendant or third-party plaintiff was operating at the time of this accident.

26. Provide a copy of any no-fault file pertaining to plaintiff(s) related to the incident.

**ADDITIONAL DEMANDS TO ANY THIRD-PARTY PLAINTIFF WHO HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

N/A

**PLEASE TAKE FURTHER NOTICE** that within 30 days following service of this demand, any third party-plaintiff who has an action against a party represented by the Corporation Counsel, it is requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control; but, in any event, no later than forty-five days before trial.

N/A

27. Provide a copy of any document (with all attachments) previously exchanged by the parties (including pleadings, bills of particulars, deposition transcripts, medical records, correspondence, motions, discovery responses, etc.).

28. Provide a copy of all court orders and stipulations issued in the litigation.

**DEMAND FOR VERIFIED BILL OF PARTICULARS TO ANY THIRD-PARTY PLAINTIFF WHO HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

N/A

**PLEASE TAKE NOTICE** that pursuant to CPLR 3041, any third party-plaintiff who has an action against a party represented by the Corporation Counsel is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. State separately the alleged negligence of any party represented by the Corporation Counsel, if applicable.

2. State separately the alleged intentional wrongs committed by any party represented by the Corporation Counsel, if applicable.

3. State the name of any employee or agent of any party represented by the Corporation Counsel alleged to have committed any act which contributed to an injury.

N/A 4. State (a) whether any repair was made to the accident location prior to the happening of the alleged accident; (b) when any repair was made; (c) where any repair was made; (d) who made any repair; and (e) what repairs were made.

N/A 5. State (a) whether any party represented by the Corporation Counsel had notice of an alleged defective condition which contributed to an injury; (b) which party had notice; (c) whether the party had actual notice of a condition; (d) whether the party had constructive notice of a condition; and (e) whether it is alleged that the party created the condition.

N/A 6. If actual notice is claimed, please state (a) the name of any individual(s) who had actual notice; (b) the job title of any individual(s) who had actual notice; (c) the employer of any individual(s) who had actual notice; and (d) the address and phone number of any individual(s) who had actual notice. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have had actual notice. This demand includes all individuals, even if employed by any of the parties.

N/A 7. If constructive notice of a condition is claimed, please state the alleged condition and the length of time said condition is alleged to have existed prior to the happening of the alleged incident.

8. If third-party plaintiff(s) claims the violation of any statute, ordinance, rule, order, regulation, or directive, please state separately all such statutes, ordinances, rules, regulations, and directives alleged to have been violated by any party represented by the Corporation Counsel.

N/A 9. If applicable, please state whether any party represented by the Corporation Counsel was a party to a contract; and please state the:

(c) parties to the contract;

(d) contract number.

N/A 10. If applicable, please state any item of construction, excavation, and demolition work which was not so constructed, shored, equipped, guarded, arranged, operated, and conducted as to provide reasonable and adequate safety; and please state (a) the manner in which the work caused an alleged injury; and (b) if applicable, the control exercised by any party represented by the Corporation Counsel and the exact manner in which said control was exercised.

Dated: New York, New York  
October \_\_\_\_\_, 2014

Yours, etc.

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW

YORK, THE CITY OF NEW YORK S/H/A 7TH

PCT. POLICE DEPT., P. O. VAHAGN

KRMOYAN S/H/A KRMOYAN,

100 Church Street

New York, New York 10007

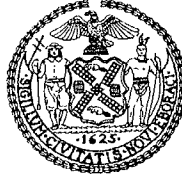
TO:

PATRICIA VENNER

Plaintiff Pro Se

81 COLUMBIA STREET, APT. 2A

NEW YORK, NY 10002



**The City of New York  
LAW DEPARTMENT  
Office of the Corporation Counsel  
Tort Division  
Medicare Compliance and Recovery  
Unit  
100 Church Street, 4<sup>th</sup> Floor  
New York, NY 10007-2668**

[Medicare@law.nyc.gov](mailto:Medicare@law.nyc.gov)

**ZACHARY W. CARTER**  
*Corporation Counsel*

October 31, 2014

**PATRICIA VENNER**  
81 COLUMBIA STREET, APT. 2A  
NEW YORK, NY 10002

**Case Name:** PATRICIA VENNER v. NEW  
YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER MILLER, KRMOYAN  
**Index:** 100682/2014  
**Law Department No:** 2014-023906

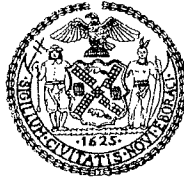
Dear Counselor:

It is important that you provide us with certain personal identifying information about each plaintiff, that we need in order to identify whether each of your clients is a Medicare beneficiary, via an electronic query to the Center for Medicare and Medicaid Services (CMS). Specifically, we need each plaintiff's date of birth and Social Security number or Health Insurance Claim Number (HICN), also known as the Medicare number.

Although this disclosure is voluntary, federal law mandates that self-insured liability entities, such as the City of New York, report settlements with Medicare recipients to CMS and ensure that Medicare's financial interests in obtaining reimbursement from plaintiffs are fully protected. There is a \$1,000-per-day penalty assessed against any insurer who fails to report a settlement to Medicare and the insurer is obligated to ascertain whether a plaintiff is, in fact, a Medicare recipient. To conclusively determine whether your client is a Medicare beneficiary, your client's name, gender, date of birth, and social security number must be submitted to CMS's automatic query system. *See* Section 111 of the Medicare & Medicaid SCHIP Extension Act of 2007, 42 U.S.C. §1395y. Thus, courts have held that plaintiff's production of his or her Social Security Number is required. Smith v. Sound Breeze of Groton Condo. Assoc., 2011 Conn. Super. LEXIS 194 (Conn. Super. Ct. February 3, 2011); Hackley v. Garofano, 2010 Conn. Super LEXIS 1669 (Conn. Super. Ct. July 1, 2010). *See also*, Seger v. Tank Connection, LLC, 2010 U.S. Dist LEXIS 49013 (D. Neb. June 1, 2010) ("Collection of the SSNs for the purposes of coordinating

*No Medical  
Claim*





met 31, 14

**ZACHARY W. CARTER**  
*Corporation Counsel*

**The City of New York**  
**LAW DEPARTMENT**  
100 CHURCH STREET  
NEW YORK, NEW YORK 10007

Dear Counsel:

If you would like to have this case considered for possible early settlement by the Early Intervention Unit of the Tort Division, the following items (as applicable) should be forwarded to the attention of Ms. Diane Studdard, New York City Law Department, Tort Division, 100 Church Street, New York, New York 10007:

**IN ALL CASES COPIES OF THE FOLLOWING ITEMS MUST BE PROVIDED:**

1. Notice of Claim.
2. 50-h transcript.
3. Verified Complaint and Answer.
4. Aided Card, if prepared.
5. UF18 - City Involved Accident Report, if prepared.
6. All medical and hospital records, including (ambulance call report) first treatment, emergency room record, operative and radiology reports, treating physician(s) reports, physical therapy records, etc.
7. Photographs (duplicates, color or laser copies preferred) of the location and of injuries, if scarring is claimed.
8. Proof of any special damages claimed.
9. Any other item(s) that you believe pertinent to an early resolution of your case.
10. Social Security number and any other Medicare information – see attached notice

**ALLEGED TRIP AND FALL ON A SIDEWALK OR ROADWAY**

- N/A
1. Most recently dated Big Apple map.
  2. Permits, cut forms, contracts, if available.
  3. Any other documents that the plaintiff will rely upon to prove prior written notice, if not a Big Apple Map.

**MOTOR VEHICLE ACCIDENT CASES**

- N/A
1. Police Accident Report.
  2. MV-104 filed by or on behalf of the plaintiff.
  3. Agency incident/accident report, if prepared.
  4. DMV hearing transcript, if available.
  5. Photographs of the vehicle, before and after the accident.
  6. Available insurance coverage for the vehicle involved in the accident.
  7. Plaintiff's No-fault records.
  8. Repair bills and/or estimates.



9. If the accident involves a traffic light or stop sign, any documentation that the plaintiff will rely upon to prove notice.

**ALLEGED PREMISES LIABILITY**

1. Copies of any documents that plaintiff will rely on to establish ownership of the premises.
2. Prior complaints.
3. Accident/incident reports.

N/A

**BOARD/DEPARTMENT OF EDUCATION CASES**

1. Accident and/or incident report and attachments, if any.
2. Custodian reports.
3. Teacher(s) statements/reports.
4. Witness statements.
5. Copies of any documents filed with or against any governmental agency concerning the incident.

N/A

**ALLEGED POLICE MISCONDUCT**

1. Any police reports in your possession.
2. Arrest report and photographs.
3. Certified copy of the disposition of any criminal proceedings.
4. Witness statements.
5. Complaint report and any follow-up reports.
6. If entitlement to reimbursement of legal fees is claimed, copies of any bills incurred.

✓

**ALLEGED PROPERTY DAMAGE**

1. Photographs (duplicates, color or laser copies preferred) depicting the items alleged to have been damaged, prior and subsequent to the damage.
2. Original purchase receipts, cancelled checks, and/or charge slips for the items alleged to have been damaged.
3. Appraisals, warranties, etc.
4. Copies of any insurance agreements pertaining to property damages and/or loss.

N/A

Please be advised that all of the above materials must be sent in order to have your case considered for possible early settlement - incomplete packages cannot be considered. Within two to three months after receipt of the above materials, you will be contacted to discuss the case further. ***Counsel appearing at the conference must have settlement authority and be prepared to establish liability and damages.*** If you have any questions regarding this procedure, you may contact Ms. Diane Studdard at (212) 356-3283.

Very truly yours,

Diane Studdard

B

On september 15,2013 about 11;30 pm the plaintiff appeared before Judge Johnson of the Criminal Court, 100 Centre St. N.Y. to answer for the false evidence alleged against her, there was no bail and she was released on H.O.R. to return again on October 21,2013, she appeared with her own attorney,who requested that the prosecutor provided him with a "Deposition" for there was non.

Judge Johnson reschedule the trial for december 21,2013 stating to the prosecutor to have a "Deposition" by that date or allegations would be dismiss. The date came,plaintiff showed up however, no "Deposition" the prosecutor stated he had non,nor, aw was any officer.

Judge Johnson. closed the case and sealed the false alligations that brought the unjust report made,"Locked Away" where hurtful things should stay.

1. Plaintiff was given a time and date to appear in room 103 location 80 Centre st. N.Y. at 2:15, date June 4, 2015, to schedule her case before the "Judge,"

Plaintiff meet with N.Y.C. counsel for the City "Nicholas" and another Representative for the City who suggested the City and plaintiff see the "Judge" on June 9, 2015 and given a DCM form.

June 9, 2015 N.Y.C. counsel "Nicholas" meet with plaintiff only he stated both were waiting to see the Judge, about 3:30 pm counsel and plaintiff went to the Judge's location waited again, about half hour, someone ahead of the City and myself, turn came up, who I was lead to be the "Judge" turn out to be his Law Clerk, we could not completed the meeting we rushed from the Court Room by a court officer, was told to return on June 16, 2015

Plaintiff felted being prejudiced by the Order" after giving N.Y.C. counsel on June 4, 2015 where he can obtain copies of the same information that, was Sealed by Judge Johnson, the office of the controller 1 Centre st NY, N.Y.C, counsel "Nicholas" stated he would look into it" Copies of arrest allegations is attached.

Dated: July 21, 2015

Sincerely,  
Patricia Kenner

Fax:

Sep. 15 2013 08:50am P001

Page 1 of 2

CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

-against-

MISDEMEANOR

Patricia Venner

Defendant.

Police Officer Vahagn Krmoyan, Shield 21142 of the 7th Precinct, states as follows:

*The defendant is charged with:*

- |                |                                                            |
|----------------|------------------------------------------------------------|
| 1 PL 120.00(1) | Assault in the Third Degree<br>(defendant #1: 1 count)     |
| 2 PL 120.00(2) | Assault in the Third Degree<br>(defendant #1: 1 count)     |
| 3 PL 120.15    | Menacing in the Third Degree<br>(defendant #1: 1 count)    |
| 4 PL 240.26(1) | Harassment in the Second Degree<br>(defendant #1: 1 count) |

On or about September 14, 2013 at about 10:00 P.M., inside 81 Columbia Street in the County and State of New York, the defendant, with intent to cause physical injury to another person, caused such injury to another person; the defendant recklessly caused physical injury to another person; the defendant, by physical menace, intentionally placed and attempted to place another person in fear of death, imminent serious physical injury, and physical injury; the defendant, with intent to harass, annoy and alarm another, subjected that person to physical contact and attempted and threatened to do the same.

*The factual basis for these charges are as follows:*

I am informed by Jacqueline Reyes, of an address known to the District Attorney's Office, that she observed the defendant strike her about the face approximately one time with a closed fist, causing a laceration and bleeding to her nose and bruising to her face.

I am further informed by Ms. Reyes that she observed the defendant advance toward her while waving a stick in her hand in a threatening manner. I heard the defendant state in substance, I thought she had a knife so I came at her with a stick and held it in my hand. I recovered a stick from the defendant's apartment.

A.

Page 2 of 2

CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

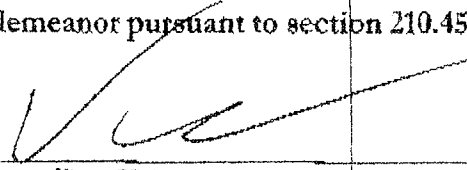
-against-

MISDEMEANOR

Patricia Venner

Defendant.

False statements made in this written instrument are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes.

  
Police Officer Vahagn Kimoyan

9/15/2013  
Date

0845  
Time



On september 15,2013 about 11;30 pm the plaintiff appeared before Judge Johnson of the Criminal Court, 100 Centre St. N.Y. to answer for the false evidence alleged against her, there was no bail and she was released on H.O.R. to return again on October 21,2013, she appeared with her own attorney,who requested that the prosecutor provided him with a "Deposition" for there was non.

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Patricia Venner

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Sep 15 2013 08:50am P001

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CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

MISDEMEANOR

-against-

Patricia Venner

Defendant.

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I am further informed by Ms. Reyes that she observed the defendant advance toward her while waving a stick in her hand in a threatening manner. I heard the defendant state in substance, I thought she had a knife so I came at her with a stick and held it in my hand. I recovered a stick from the defendant's apartment.

*W. A.*

Page 2 of 2

CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

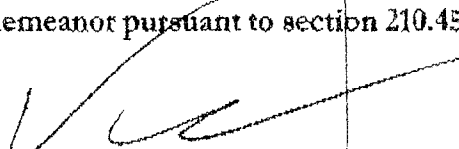
-against-

MISDEMEANOR

Patricia Venner

Defendant.

False statements made in this written instrument are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes.

  
Police Officer Vahagn Krimoyan

9/18/2013  
Date

0845  
Time

## NOTE OF ISSUE

For use of Clerk

Calendar No. (if any) \_\_\_\_\_

Index No. 100682/2014SUPREME COURT Court, OF NEW YORK County, N.Y.**PATRICIA VENNER**

Plaintiff(s)

against

**NEW YORK CITY, 7<sup>th</sup> PCT.****POLICE DEPT. OFFICERS****MILLER, KIRHOYAN**

Defendant(s)

Name of Judge assigned \_\_\_\_\_

NOTICE FOR TRIAL

- ☒ Trial by jury demanded
- ☐ Of all issues
- ☐ Of issues specified below
- ☐ Or attached hereto
- ☐ Trial without jury

Filed by attorney for PATRICIA VENNERDate summons served OCTOBER 2, 2014

Date service completed \_\_\_\_\_

Date issue joined \_\_\_\_\_

NATURE OF ACTION OR SPECIAL PROCEEDING

- ☒ Tort ☐ Motor vehicle negligence
- ☐ Medical malpractice
- ☐ Other tort
- ☐ Contract
- ☐ Contested matrimonial
- ☐ Uncontested matrimonial
- ☐ Tax certiorari
- ☐ Condemnation
- ☐ Other (not itemized above) specify \_\_\_\_\_
- ☐ This action is brought as a class action

Amount demanded \$ 500,000 CROther relief DEEM JUST PROPER

Special preference claimed under \_\_\_\_\_

Insurance carrier (s), if known: \_\_\_\_\_

Attorney (s) for Plaintiff (s)

Office &amp; P.O. Address:

PATRICIA VENNER PRO SEP.O. BoxNEW YORK NY 10002

Phone No.: \_\_\_\_\_

Attorney (s) for Defendant (s)

Office &amp; P.O. Address:

CITY OF NEW YORK100 CHURCH STNEW YORK NY 10007

Phone No.: \_\_\_\_\_

NOTE: Clerk will not accept this note of issue unless accompanied by a certificate of readiness.

For Clerk's Use  
 N.I. served on:

|                                                                                                                   | <u>Completed</u> | <u>Waived</u> | <u>Not required</u> |
|-------------------------------------------------------------------------------------------------------------------|------------------|---------------|---------------------|
| 1. All pleadings served .....                                                                                     | 8-7-14           |               |                     |
| 2. Bill of particulars served .....                                                                               | 4-14-15          |               |                     |
| 3. Physical examinations completed .....                                                                          |                  |               | ✓                   |
| 4. Medical reports exchanged .....                                                                                |                  |               | ✓                   |
| 5. Appraisal reports exchanged .....                                                                              |                  |               | ✓                   |
| 6. Compliance with the Rules in matrimonial actions (22 NYCRR 202.16) .....                                       |                  |               | ✓                   |
| 7. Discovery proceedings now known to be necessary completed .....                                                |                  |               | ✓                   |
| 8. There are no outstanding requests for discovery                                                                |                  |               |                     |
| 9. There has been a reasonable opportunity to complete the foregoing proceedings                                  | 6-4-15           |               |                     |
| 10. There has been compliance with any order issued pursuant to the Precalendar Rules (22 NYCRR 202.12).          |                  |               |                     |
| 11. If a medical malpractice action, there has been compliance with any order issued pursuant to 22 NYCRR 202.56. |                  |               |                     |
| 12. The case is ready for trial.                                                                                  |                  |               |                     |

Dated: 9-02-15

Patricia Verma  
 Signature - type name below  
 Attorney(s) for:  
 Office & P.O. Address:  
 Phone No.:

State of New York, County of

ss.: State of New York, County of

ss.:

being duly sworn, deposes and says; that deponent is not a party to the action, is over 18 years of age and resides at

being duly sworn, deposes and says; that deponent is not a party to the action, is over 18 years of age and resides at

That on the day of deponent served within note of issue and certificate of readiness on

That on the day of deponent served the within note of issue and certificate of readiness on

attorney (s) for herein, at the attorney's office at

attorney (s) for at

during the attorney's absense from said office (a) by then and there leaving a true copy of the same with

the address designated by said attorney (s) for the purpose by depositing a true copy of same enclosed in a postpaid properly addressed wrapper, in-post office- official depository under the exclusive care and custody of the United States Postal Service within New York State.

the attorney's clerk; partner; person having charge of said office. (b) and said office being closed, by depositing a true copy of same, enclosed in a sealed wrapper directed to said attorney (s), in the office letter drop box.

Sworn to before me on

Sworn to before me on

Admission of Service

Due service of a note of issue and certificate of readiness, of which the within is a copy,

admitted



## REQUEST FOR JUDICIAL INTERVENTION

UCS-840 (3/2011)

Supreme COURT, COUNTY OF NEW YORKIndex No: 100682/14 Date Index Issued: JULY 1, 2014

CAPTION: Enter the complete case caption. Do not use et al or et ano. If more space is required, attach a caption rider sheet.

PATRICIA VENNER

PLAINTIFF,

NEW YORK CITY, 7<sup>th</sup> PCT. POLICE DEPT. OFFICERSMILLER, KRMoyan DEFENDANT. Plaintiff(s)/Petitioner(s)

-against-

NEW YORK CITY, 7<sup>th</sup> PCT. POLICE DEPT.  
MILLER, KRMoyan

DEFENDANT.

For Court Clerk Use Only:

IAS Entry Date

Judge Assigned

RJI Date

## NATURE OF ACTION OR PROCEEDING:

Check ONE box only and specify where indicated.

## MATRIMONIAL

- ☐ Contested  
☐ Uncontested

NOTE: For all Matrimonial actions where the parties have children under the age of 18, complete and attach the MATRIMONIAL RJI Addendum.

## TORTS

- ☐ Asbestos  
☐ Breast Implant  
☐ Environmental: \_\_\_\_\_ (specify)

- ☐ Medical, Dental, or Podiatric Malpractice  
☐ Motor Vehicle  
☐ Products Liability: \_\_\_\_\_ (specify)

- ☐ Other Negligence: \_\_\_\_\_ (specify)

- ☐ Other Professional Malpractice: \_\_\_\_\_ (specify)

- ☒ Other Tort: INTENTIONAL WRONGFUL ACTS (specify)

## OTHER MATTERS

- ☐ Certificate of Incorporation/Dissolution [see NOTE under Commercial]  
☐ Emergency Medical Treatment  
☐ Habeas Corpus  
☐ Local Court Appeal  
☐ Mechanic's Lien  
☐ Name Change  
☐ Pistol Permit Revocation Hearing  
☐ Sale or Finance of Religious/Not-for-Profit Property  
☐ Other: \_\_\_\_\_ (specify)

## COMMERCIAL

- ☐ Business Entity (including corporations, partnerships, LLCs, etc.)  
☐ Contract  
☐ Insurance (where insurer is a party, except arbitration)  
☐ UCC (including sales, negotiable instruments)  
☐ Other Commercial: \_\_\_\_\_ (specify)

NOTE: For Commercial Division assignment requests [22 NYCRR § 202.70(d)], complete and attach the COMMERCIAL DIV RJI Addendum.

## REAL PROPERTY: How many properties does the application include?

- ☐ Condemnation  
☐ Foreclosure

Property Address: \_\_\_\_\_ Street Address \_\_\_\_\_ City \_\_\_\_\_ State \_\_\_\_\_ Zip \_\_\_\_\_

NOTE: For Foreclosure actions involving a one- to four-family, owner-occupied, residential property, or an owner-occupied condominium, complete and attach the FORECLOSURE RJI Addendum.

- ☐ Tax Certiorari - Section: \_\_\_\_\_ Block: \_\_\_\_\_ Lot: \_\_\_\_\_  
☐ Other Real Property: \_\_\_\_\_ (specify)

## SPECIAL PROCEEDINGS

- ☐ CPLR Article 75 (Arbitration) [see NOTE under Commercial]  
☐ CPLR Article 78 (Body or Officer)  
☐ Election Law  
☐ MHL Article 9.60 (Kendra's Law)  
☐ MHL Article 10 (Sex Offender Confinement-Initial)  
☐ MHL Article 10 (Sex Offender Confinement-Review)  
☐ MHL Article 81 (Guardianship)  
☐ Other Mental Hygiene: \_\_\_\_\_ (specify)  
☐ Other Special Proceeding: \_\_\_\_\_ (specify)

## STATUS OF ACTION OR PROCEEDING:

Answer YES or NO for EVERY question AND enter additional information where indicated.

YES NO

Has a summons and complaint or summons w/notice been filed?

☒If yes, date filed: 7-1-14

Is this action/proceeding being filed post-judgment?

☐

If yes, judgment date: \_\_\_\_\_

A.

## JUDICIAL INTERVENTION

Check ONE box only AND enter additional information where indicated

☐ Compromise☐ Note of Issue and/or Certificate of Readiness☐ Notice of Medical, Dental, or Podiatric Malpractice

Date Issue Joined:

☐ Notice of MotionRelief Sought: \$500,000 DAMAGES

Return Date: \_\_\_\_\_

☐ Notice of Petition

Relief Sought: \_\_\_\_\_

Return Date: \_\_\_\_\_

☐ Order to Show Cause

Relief Sought: \_\_\_\_\_

Return Date: \_\_\_\_\_

☐ Other Ex Parte Application

Relief Sought: \_\_\_\_\_

☐ Poor Person Application☒ Request for Preliminary Conference☐ Residential Mortgage Foreclosure Settlement Conference☐ Writ of Habeas Corpus☐ Other (specify): \_\_\_\_\_

## RELATED CASES:

List any related actions. For Matrimonial actions, include any related criminal and/or Family Court cases.

If additional space is required, complete and attach the RJJ Addendum. If none, leave blank.

| Case Title                    | Index/Case No. | Court | Judge (if assigned) | Relationship to Instant Case |
|-------------------------------|----------------|-------|---------------------|------------------------------|
| TORT ACT<br>U.S. CONSTITUTION |                |       |                     |                              |
|                               |                |       |                     |                              |
|                               |                |       |                     |                              |

## PARTIES:

If additional space is required, complete and attach the RJJ Addendum.

For parties without an attorney, check Un-Rep. box AND enter party address, phone number and e-mail address in Attorneys' space.

| Un-Rep                              | Parties:                                                                                                                    | Attorneys:                                                                                                                                                                                                            | Issue Joined (Y/N)                   | Insurance Carrier(s) |
|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------|----------------------|
| <input checked="" type="checkbox"/> | Last Name: <b>VENNER</b><br>First Name: _____<br>Primary Role: <b>PATRICIA, PLAINTIFF</b><br>Secondary Role (if any): _____ | Last Name: <b>PRO SE</b><br>First Name: _____<br>Firm Name: _____<br>Street Address: <b>81 COLUMBIA ST</b> City: <b>NEW YORK</b> State: <b>NY</b> Zip: <b>10002</b><br>Phone: _____ Fax: _____ e-mail: _____          | <input checked="" type="radio"/> YES |                      |
| <input type="checkbox"/>            | Last Name: <b>NEW YORK CITY</b><br>First Name: _____<br>Primary Role: <b>DEFENDANT</b><br>Secondary Role (if any): _____    | Last Name: <b>CITY OF NEW YORK</b><br>First Name: _____<br>Firm Name: _____<br>Street Address: <b>100 CHURCH ST</b> City: <b>NEW YORK</b> State: <b>NY</b> Zip: <b>10007</b><br>Phone: _____ Fax: _____ e-mail: _____ | <input checked="" type="radio"/> YES |                      |
| <input type="checkbox"/>            | Last Name: <b>OFFICER, MILLER</b><br>First Name: _____<br>Primary Role: <b>DEFENDANT</b><br>Secondary Role (if any): _____  | Last Name: _____<br>First Name: _____<br>Firm Name: _____<br>Street Address: <b>100 CHURCH ST</b> City: <b>NEW YORK</b> State: <b>NY</b> Zip: <b>10007</b><br>Phone: _____ Fax: _____ e-mail: _____                   | <input checked="" type="radio"/> YES |                      |
| <input type="checkbox"/>            | Last Name: <b>OFFICER, KRMOMAN</b><br>First Name: _____<br>Primary Role: <b>DEFENDANT</b><br>Secondary Role (if any): _____ | Last Name: _____<br>First Name: _____<br>Firm Name: _____<br>Street Address: <b>100 CHURCH ST</b> City: <b>NEW YORK</b> State: <b>NY</b> Zip: <b>10007</b><br>Phone: _____ Fax: _____ e-mail: _____                   | <input checked="" type="radio"/> YES |                      |

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: AUGUST 20, 2014PRO SE

ATTORNEY REGISTRATION NUMBER

Patricia Venner

SIGNATURE

PATRICIA VENNER

PRINT OR TYPE NAME

Print Form

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index No. 100682/19  
Calendar No. \_\_\_\_\_

PATRICIA VENNER

Plaintiff(s)

Honorable \_\_\_\_\_

-against-

NEW YORK CITY, 7<sup>th</sup> PCT POLICE DEPT,  
OFFICES, MILLER, KRMoyan

Defendant(s)

REQUEST FOR  
PRELIMINARY CONFERENCE

The undersigned request a preliminary conference.

PATRICIA VENNER

The names, address and telephone numbers of all attorneys appearing in the action are as follows:

PRO - SE

Attorney(s) for Plaintiff  
Post office Address & Tel. No.

NEW YORK CITY

Attorney(s) for Defendants  
Post Office Address & Tel. No.

100 CHURCH ST  
NEW YORK

Attorney(s) for  
Post Office Address & Tel. No.

Attorney(s) for UNKNOWN / CITY OF  
Post Office Address & Tel. No. NEW YORK CITY  
NEW YORK

Dated: AUGUST 20, 2014

Attorney(s) for Plaintiff PRO SE

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
PATRICIA VENNER,

Plaintiff,

-against-

NEW YORK CITY AND 7TH PCT. POLICE DEPT.  
OFFICER MILLER, KRMOYAN,

Defendants.  
-----X

**AFFIRMATION IN  
OPPOSITION AND REPLY**

Index No.: 100682/2014

File No.: 2014-023906

1. **NICHOLAS SCHAEFER**, an attorney admitted to practice law in the State of New York and an Assistant Corporation Counsel of the City of New York, affirms the truth of the following under the penalties of perjury pursuant to CPLR § 2106 upon information and belief based upon the records maintained in this office:

2. This reply affirmation is submitted in further support of the motion of Defendants, THE CITY OF NEW YORK (hereinafter “the City”) and P.O. VAHAGN KRMOYAN S/H/A KRMOYAN (hereinafter “Officer Krmoyan”), for an Order pursuant to CPLR § 3126 dismissing PATRICIA VENNER’s (hereinafter “Plaintiff”) Complaint for refusing to provide necessary discovery. This affirmation is also submitted in opposition to Plaintiff’s cross-motion to place this matter on the trial calendar.

3. In their underlying motion, the Defendants made a *prima facie* showing that, despite their good faith efforts, Plaintiff has refused to provide a Bill of Particulars or a § 160.50 unsealing authorization. In her cross-motion and opposition, Plaintiff makes several assertions: i) that Plaintiff has already provided the records that the City would obtain with the unsealing authorization; ii) that Plaintiff already provided the City with a Bill of Particulars; and iii) that this matter is ready for trial. Plaintiff’s contentions are unavailing and fail to actually address the

arguments set forth by the Defendants in their underlying motion. Additionally, Plaintiff's purported Bill of Particulars again reiterates her refusal to allow the Defendants access to the criminal records relating to the arrest for which she is suing, undermining her position and adding further support to the City's argument that her Complaint be dismissed. See Exhibit A, annexed to Plaintiff's Cross-Motion and Opposition.

#### **PRELIMINARY STATEMENT**

4. Plaintiff persists in her erroneous assertion that she has provided all of the necessary discovery, obviating the need for an unsealing authorization. Although Plaintiff appears to have provided a copy of the accusatory instrument, an order of protection, and a document memorializing an appearance date for the underlying criminal proceeding to the Comptroller, this discovery exchange is insufficient. As demonstrated by the response from the New York City Police department annexed to the underlying motion as Exhibit G, the Defendants are unable to secure copies of Plaintiff's Arrest Report and Complaint Report for the subject incident without an unsealing authorization pursuant to CPL § 160.50.

5. Moreover, Plaintiff claims that she has, in fact, provided a Bill of Particulars, referring to Exhibit A annexed to her cross-motion and opposition. However, that Exhibit is a series of various handwritten notes on a copy of the Defendants' Combined Demands and not a satisfactory Bill of Particulars.

6. Even assuming *arguendo* that Plaintiff's purported Bill of Particulars is sufficient – which it is not – the Defendants are still entitled to dismissal of Plaintiff's Complaint. Plaintiff has unambiguously expressed her position in multiple discovery exchanges, verbally to the undersigned, and to this Court: she will not provide an unsealing authorization, nor does she believe any discovery is appropriate prior to trial. It is respectfully submitted that this position is

tantamount to discontinuance, and that the Defendants will be massively prejudiced without this Court's intercession. Despite Plaintiff's assertions to the contrary, this matter is obviously not ready for trial as the Defendants have been prevented from obtaining fundamental discovery and have not had the opportunity to depose Plaintiff.

### ARGUMENT

#### **I. PLAINTIFF'S COMPLAINT SHOULD BE DISMISSED BECAUSE PLAINTIFF REFUSES TO PROVIDE NECESSARY DISCOVERY.**

7. Here, the City has repeatedly contacted Plaintiff to obtain a response to its demands, including, but not limited to, 160.50 unsealing authorizations and a bill of particulars. Plaintiff is impermissibly attempting to use CPL § 160.50 as both a sword and a shield, thus placing the Defendants in an impossible, intolerable, unjust and nondefensible litigation posture. See Koump v. Smith, 25 N.Y.2d 287, 294 (1969). Analogously, the First Department has held that a plaintiff may not use the Fifth Amendment privilege against self-incrimination in order to deny defendants information material and necessary to their defense. Batista v. City of New York, 15 A.D.3d 304, 306 (1st Dep't 2005). In Batista, the First Department advised that should a plaintiff continue to invoke such a privilege while pursuing a civil litigation, "he does so at the risk of having his complaint dismissed." Id. (citations omitted). A plaintiff cannot claim affirmative relief while simultaneously refusing to disclose information bearing upon his right to maintain his action. See Maxie v. Gimbel Bros., Inc., 102 Misc.2d 296, 302-304 (N.Y. Sup. Ct. 1979); citing Prink v. Rockefeller Center, 48 N.Y.2d 309 (1979).

8. It is axiomatic that the records surrounding Plaintiff's arrest, including the arrest report, are essential for the Defendants to litigate Plaintiff's claims for false arrest, false imprisonment, and malicious prosecution. Accordingly this Court has observed that suppressing the criminal record is inappropriate in a derivative civil suit:



*“...Plaintiff may not continue to enforce a right to suppress the criminal record while simultaneously continuing to prosecute a civil claim for damages arising out of the same incident and identical facts. The purpose of the statute is to protect her from public odium arising out of the disclosure of her arrest. The commencement of this action, and the resultant public trial and record, would actually negate the purpose of the statutory protection...”*

See Maxie v. Gimbel Bros., Inc., 102 Misc.2d 296, 302-304 (N.Y. Sup. Ct. 1979). Indeed, the privilege conferred by CPL § 160.50 is waived when the criminal defendant later institutes a civil action to recover damages for false arrest and malicious prosecution. See Best v. 2170 5th Ave. Corp., 60 A.D.3d 405 (1st Dep’t 2009); see also Gebbie v. Gertz Div. of Allied Stores, Inc., 94 A.D.2d 165 (2d Dep’t 1983). Plaintiff’s implied waiver of CPL § 160.50 stems from Plaintiff having placed probable cause in issue. See Ragland v. New York City Hous. Auth., 201 A.D.2d 7, 12 (2d Dep’t 1994); see also In re Claim of Weigand, 197 A.D.2d 791, 792 (3d Dep’t 1992) (holding that when a plaintiff commences a civil action and places the information protected by 160.50 at issue, the confidentiality privilege is waived); citing Wright v. Snow, 175 A.D.2d 451 (3d Dep’t 1991) lv dismissed 79 N.Y.2d 822.

9. While Plaintiff is entitled to continue to claim her statutory privilege to keep the record sealed, she may not continue to prosecute a claim for damages via a civil cause of action. Fairness requires that the Defendants have access to all material which may be necessary to a proper defense of the action, including those records currently sealed via CPL § 160.50. See Maxie v. Gimbel Bros., Inc., 102 Misc.2d 296, 303 (N.Y. Sup. Ct. 1979) (citations omitted). Here, there is no question that Plaintiff refuses to provide an unsealing authorization, and as such, she cannot proceed with her civil action. Accordingly, due to her willful failure to comply, or participate in discovery, her Complaint should be dismissed.

**II. IN THE ALTERNATIVE, THIS COURT SHOULD COMPEL PLAINTIFF TO PROVIDE UNSEALING AUTHORIZATIONS AND A BILL OF PARTICULARS.**

10. In the instant case, Plaintiff alleges that she was falsely arrested and unlawfully imprisoned as a result of the alleged negligence and/or intentionally tortious acts of the New York City Police Department. As indicated, without unsealing authorizations, the Defendants cannot obtain the relevant records, and will be unable to properly defend this action. Furthermore, no meaningful discovery can take place without the unsealing authorizations, a bill of particulars, or a response to the City's combined demands. Likewise, until receipt of the outstanding discovery, the City is unable to evaluate the case for possible settlement or engage in substantive motion practice.

11. In the context of civil litigation, it is unjust to allow the CPL § 160.50 privilege to place defendant in an impossible and indefensible position. Gebbie v. Gertz, 94 A.D. 2d 165 (2d Dep't 1983). Indeed, "that privilege, which is intended to protect an accused, may not be used by him as a sword to gain an advantage in a civil action." Taylor v. New York City Transit Auth., 131 A.D.2d 460, 462 (2d Dep't 1987). This is because, "where a party puts into issue in a civil action elements common both to the civil action and to a criminal prosecution, that party waives the privilege conferred by CPL 160.50." Id. (internal citations omitted); see also Kalogris v. Roberts, 185 A.D.2d 335 (2d Dep't 1992). Therefore, in the interests of justice, the City respectfully requests that Plaintiff be directed to respond to Defendants' demands and to provide authorizations to unseal the New York City Police Department and Criminal Court records within 30 days.

**III. PLAINTIFF'S CROSS-MOTION TO PLACE THE MATTER ON THE TRIAL CALENDAR SHOULD BE DENIED AS NO DISCOVERY HAS TAKEN PLACE.**

12. Plaintiff also cross-moves to have the matter placed on the trial calendar. This is inappropriate. Not only is discovery incomplete, discovery has in fact not yet commenced. There has yet to be a preliminary conference or case scheduling order issued in the instant matter, and the Defendants have not yet had the opportunity to depose the Plaintiff. Rather, Plaintiff has prevented the Defendants from even accessing critical discovery. Clearly, as Plaintiff has prevented discovery from even beginning, this matter is in no way ready for trial and Plaintiff's motion should be denied.

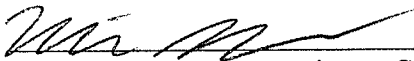
**CONCLUSION**

13. Plaintiff has been very clear in her refusal to provide an unsealing authorization. On that basis alone, the Defendants are entitled to dismissal of Plaintiff's Complaint. Plaintiff may not proceed with civil litigation arising out of her arrest while refusing to provide an unsealing authorization. Therefore, this Court should dismiss Plaintiff's Complaint in its entirety, or in the alternative, compel Plaintiff to provide all unsealing authorizations within thirty (30) days. Moreover, the Defendants are entitled to depose Plaintiff and engage in discovery prior to Plaintiff filing note of issue and proceeding to trial. No discovery has taken place on this case, Plaintiff has expressed a desire to obstruct any discovery from proceeding, and this matter is woefully unready for the trial calendar. Therefore, Plaintiff's motion should be rejected in its entirety.

**WHEREFORE**, it is respectfully requested that Defendants' motion be granted in all respects, that Plaintiff's cross-motion for trial be denied, and for such other and further relief as this Court may deem just and proper.

Dated: New York, New York  
October 23, 2015

ZACHARY W. CARTER  
Corporation Counsel of the City of New York  
Attorney for Defendants THE CITY OF NEW  
YORK, THE CITY OF NEW YORK S/H/A  
7TH PCT. POLICE DEPT., P. O. VAHAGN  
KRMOYAN S/H/A KRMOYAN,  
100 Church Street, 4th Floor  
New York, New York 10007  
(212) 356-3975

By:   
Nicholas Schaefer, Assistant Corporation  
Counsel

**SUPREME COURT OF THE STATE OF NEW YORK  
NEW YORK COUNTY**

PRESENT: HON. JAMES E. d'AUGUSTE  
Justice

PART 62

Venner

INDEX NO. 100682/14

MOTION DATE \_\_\_\_\_

MOTION SEQ. NO. 001

New York City

The following papers, numbered 1 to \_\_\_\_\_, were read on this motion to/for \_\_\_\_\_

Notice of Motion/Order to Show Cause — Affidavits — Exhibits \_\_\_\_\_

No(s). 1

Answering Affidavits — Exhibits \_\_\_\_\_

No(s). 2

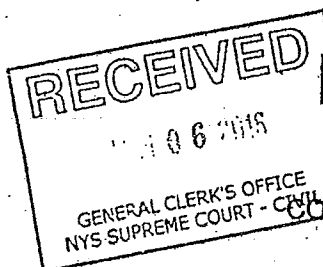
Replying Affidavits \_\_\_\_\_

No(s). 3

Upon the foregoing papers, it is ordered that this motion is

**DECIDED IN ACCORDANCE WITH  
ACCOMPANYING DECISION/ORDER**

MOTION/CASE IS RESPECTFULLY REFERRED TO JUSTICE  
FOR THE FOLLOWING REASON(S):



**FILED**

JAN 06 2016

GENERAL CLERK'S OFFICE  
NYS SUPREME COURT - CIVIL

COUNTY CLERK'S OFFICE  
NEW YORK

Dated: 12/24/15

J.S.C.

1. CHECK ONE: .....

☐ CASE DISPOSED

☒ NON-FINAL DISPOSITION

2. CHECK AS APPROPRIATE: ..... MOTION IS:

☒ GRANTED

☐ DENIED

☐ GRANTED IN PART

☐ OTHER

3. CHECK IF APPROPRIATE: .....

☐ SETTLE ORDER

☐ SUBMIT ORDER

☐ DO NOT POST

☐ FIDUCIARY APPOINTMENT

☐ REFERENCE

FA  
1176116  
E

# SUPREME COURT OF THE STATE OF NEW YORK NEW YORK COUNTY

PRESENT: HON. JAMES E. d'AUGUSTE  
Justice

PART 62

Venner

INDEX NO. 10068 2/14

MOTION DATE \_\_\_\_\_

MOTION SEQ. NO. 002

New York City

The following papers, numbered 1 to \_\_\_\_\_, were read on this motion to/for \_\_\_\_\_

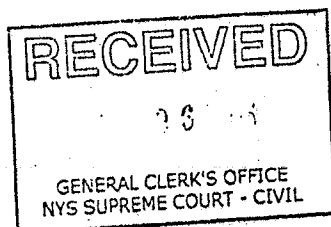
Notice of Motion/Order to Show Cause — Affidavits — Exhibits \_\_\_\_\_ No(s). 1

Answering Affidavits — Exhibits \_\_\_\_\_ No(s). 2

Replying Affidavits \_\_\_\_\_ No(s). \_\_\_\_\_

Upon the foregoing papers, It is ordered that this motion is denied. There is  
no merit to the application.

MOTION/CASE IS RESPECTFULLY REFERRED TO JUSTICE  
FOR THE FOLLOWING REASON(S):



**FILED**  
JAN 06 2016

COUNTY CLERK'S OFFICE  
NEW YORK

Dated: 12/24/15

1. CHECK ONE: ..... ☐ CASE DISPOSED ☒ NON-FINAL DISPOSITION
2. CHECK AS APPROPRIATE: ..... MOTION IS: ☐ GRANTED ☒ DENIED ☐ GRANTED IN PART ☐ OTHER
3. CHECK IF APPROPRIATE: ..... ☐ SETTLE ORDER ☐ SUBMIT ORDER
- ☐ DO NOT POST ☐ FIDUCIARY APPOINTMENT ☐ REFERENCE



Supreme Court of the State of New York  
County of New York

-----X  
Patricia Venner,

Plaintiff,

# DECISION AND ORDER

-against-

Index No. 100682/2014

New York City and 7th Pct. Police  
Department Officer Miller, Krmoyan,

Defendants.  
-----X

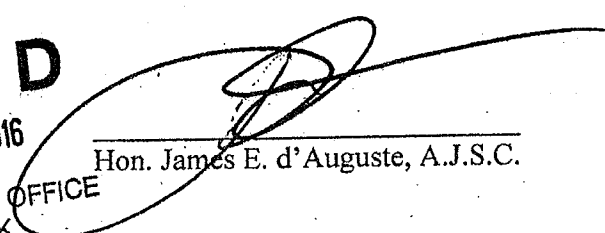
Hon. James E. d'Auguste

Defendants move for an order striking plaintiff's complaint for failure to comply with her discovery obligations or, in the alternative, for an order directing plaintiff to comply with outstanding discovery demands.<sup>1</sup> The motion is granted to the extent of directing plaintiff to properly respond to defendants' demand for a bill of particulars and provide the requested authorizations within 45 days of service of a copy of this order with notice of entry. Should plaintiff fail to properly respond as herein directed, defendants shall provide written notice to the Court and plaintiff, and then the instant action will be dismissed. In issuing this order, the Court notes that the plaintiff's responses regarding the demanded bill of particular is woefully inadequate. Moreover, with regard to the authorizations, plaintiff is deemed to have waived any confidentiality regarding said records by commencing the instant action and her refusal to produce the requested authorizations is itself a basis for dismissing the instant action.

Accordingly, the motion to dismiss or, in the alternative, to compel is granted to the extent set forth above. This constitutes the decision and order of this Court.

Dated: December 24, 2015

**FILED**  
JAN 06 2016  
COUNTY CLERK'S OFFICE  
NEW YORK

  
\_\_\_\_\_  
Hon. James E. d'Auguste, A.J.S.C.

<sup>1</sup> Plaintiff's so-called "motion for trial" (motion sequence no. 2) is denied per short-form order also dated December 24, 2015.

SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK

PATRICIA VENNER,

Plaintiff

-VS-

NEW YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER, MILLER, KRMOYAN,

Defendants

REPLY TO DECISION AND  
ORDER

Index. No. 100682/2014

RECEIVED

FEB 10 2016

PART 62

CITY OF N.Y. LAW SECT.  
OFFICE OF CORP. COUNSEL  
COMMUNICATIONS UNIT  
2016 FEB 10 PM 12:34

1. Pursuant to, PJI(1:77) all discovery obligations and fully answered bill of particulars was delivered to the defendant stamped at 100 Church street N.Y. on non accident Tort Claim.
2. There are no merit to the alligations to defendand's claims stating the plaintiff has other document in the Criminal Court files which relates materially to an issue in her case, the defendant has no evidence that, there is a document, when there was no answer from the defendant in the way of a deposition, as requested by plaintiff's attorney. The Criminal Court has seal all document that were filed. stamped Court's seal to each documents there within, gave copies of all Court sealed documents to plaintiff and placed the file in storage, copies of all seal documents are attached to defendant's request for discovery pursuant to, PJI(1:77).
3. The defendant has not demonstrate any merit that the Criminal Court, nor the plaintiff has other documents, PJI(1:77) Evidence-Failure to Produce Documents, The failure of plaintiff to produce documents cannot be used against him unless you are satisfied from the evidence in this case, first, that there is a document

in his possession the contents of which relate materially to an issue in this case. There was no response from the defendant who came into the apartment without a warrant then claimed, to look picked up the stick and took it with him (Miller), however plaintiff learned later that Miller, used it as false planted evidence against her to boost both officer "Report" a trouble senior who had a twelve (12") knife rised over her head as she looked angry eyes fixed on myself. plaintiff found it strange why neither officers never questioned her but, made a false "Report" against myself. instead. (CPLR §215(3))

4. The defendant has filed an unanswered "Bill Of Particulars" however, it was answered by plaintiff, she has filed a second copy (A) moreover, she has filed her own "Plaintiff Bill Of Particulars" (B)
5. The Criminal Court Seal Documents non remain, no "Deposition" was received from the defendant. (C). PJI(1:77), who failed to submit one.

Wherefore, plaintiff move for just award \$500,000 she seeks.

February 5 2016

THE CITY OF NEW YORK  
LAW DEPARTMENT  
100 Church street  
New York, New York 10007

*Patricia Venner*  
PATRICIA VENNER  
P.O. BOX 767  
New York, New York  
10002

SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK

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PATRICIA VENNER,

Plaintiff

-VS-

NEW YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER, MILLER, KRMOYAN,

Defendants

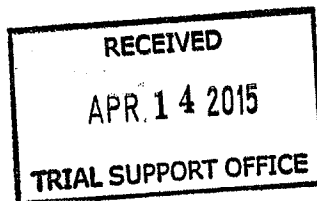
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AMENDED

REPLY TO REQUEST FOR  
DOCUMENTS

Index No.  
100682/2014

!. Plaintiff, Pro Se submitting the Court's REQUEST FOR  
DOCUMENTS, "BILL OF PARTICULARS" plaintiff has no e-mail address  
but, filed copies in person.



CITY OF N.Y. LAW DEPT.  
OFFICE OF CORP. COUNSEL  
COMMUNICATIONS UNIT  
2015 APR 14 PM 1:03

Respectfully,

*Patricia Venner*

Dated: April 13, 2015

CITY OF N.Y. LAW DEPT.  
OFFICE OF CORP. COUNSEL  
COMMUNICATIONS UNIT  
2015 APR -7 PM 12:09

Index #: 100682/2014

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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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PATRICIA VENNER,

Plaintiff(s),

- against -

NEW YORK CITY AND 7TH PCT. POLICE DEPT. OFFICER MILLER,  
KRMOYAN,

Defendant(s).

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**COMBINED DEMAND FOR  
BILL OF PARTICULARS & DISCOVERY**

---

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF NEW  
YORK S/H/A 7TH PCT. POLICE DEPT., P. O. VAHAGN KRMOYAN S/H/A  
KRMOYAN, 100 Church Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)  
(212) 356-2680/2683

All Other Matters (by county of venue)  
(718) 590-3487 (EBT's-3971) (Bronx)  
(718) 222-2000 (EBT's-2069) (Kings)  
(212) 788-0646 (EBT's-0628) (New York)  
(718) 206-4731 (EBT's (718) 206-4703) (Queens)  
(718) 447-5983 (EBT's-5985) (Richmond)  
(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #:

2014-023906

and indicate the County in which the action is pending in all papers,  
correspondence and other communications with respect thereto.

2015 APR 14 PM 1:03  
CITY OF N.Y. LAW DEPT.  
OFFICE OF CORP. COUNSEL  
COMMUNICATIONS UNIT

2015 APR -7 PM 12:09  
CITY OF N.Y. LAW DEPT.  
OFFICE OF CORP. COUNSEL  
COMMUNICATIONS UNIT

exhibit A

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

----- X  
PATRICIA VENNER,

Plaintiff(s),

**COMBINED DEMAND FOR  
VERIFIED BILL OF  
PARTICULARS & DISCOVERY**

-against-

NEW YORK CITY AND 7TH PCT. POLICE DEPT. OFFICER  
MILLER, KRMOYAN,

Defendant(s).  
----- X

**DEMAND FOR VERIFIED BILL OF PARTICULARS**

PLEASE TAKE NOTICE that pursuant to CPLR 3041, plaintiff(s) is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. The exact date and time of the act or occurrence. 9-14-13
2. The specific location of the act or occurrence with reference to addresses, landmarks, or other identifying points of reference, including the direction and distance therefrom. If the occurrence took place inside a premise, state specifically the location within the premise and also include the block and lot of the premises. 81 COLUMBIA ST NEW YORK NY 10002
3. State the injuries claimed, if any. INTENTIONAL PERSONAL INJURIES
4. State those injuries claimed to be permanent. MENTAL SUFFERING
5. If applicable, set forth the length of time it is alleged the plaintiff(s) was confined to:
  - (a) Hospital(s); N/A
  - (b) Bed; N/A
  - (c) House. 3 DAYS
6. If applicable, set forth the amount claimed as special damages for:
  - (a) Physician(s) services; N/A
  - (b) Nurses services; N/A
  - (c) Hospital expenses; N/A
  - (d) Drugs and medical supplies; N/A
  - (e) X-rays and diagnostic tests. N/A

For each of the foregoing elements of damages please state the name and address(es) of the provider(s) and the dates of treatment. If any of the foregoing elements of damages have been repaid to the plaintiff(s) or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff(s). N/A

7. If applicable, state the total amount of all other special damages not specified in items above; and please state the N/A

- (a) name and address of each service provider; N/A
- (b) each date of the service; N/A



- (c) amount of the expense for each provider; **N/A**
- (d) amount of any expense paid by a third-party (including any payment made to reimburse plaintiff); **N/A**
- (e) name and address of the third-party paying any expense; and **N/A**
- (f) amount of any unreimbursed expense paid by plaintiff(s) personally to each provider. **N/A**

8. State the occupation of plaintiff(s) at the time of the incident; and please state the:

- (a) name and address of any employer for 5 years prior to alleged incident and up to the time of trial; **N/A**
- (b) length of time totally disabled from work; **N/A**
- (c) length of time partially disabled from work; **N/A**
- (d) amount claimed for lost earnings, if any; **N/A**
  - i. if a loss of earnings claim is alleged, please state the yearly gross earnings for each year during 5 years prior to alleged incident and up to the time of trial; and **N/A**
- (e) number of days absent from work as a result of injuries sustained from the incident. **N/A**

9. State the (a) name and address of any school attended by plaintiff(s) for 5 years prior to alleged incident and up to the time of trial; and (b) the number of days lost from school as a result of injuries sustained from incident. **N/A**

10. State the home address of plaintiff(s) for a period of 5 years prior to the alleged incident to the present. **81 COLUMBIA ST NEW YORK NY 10002**

11. State any other name used by plaintiff(s) and the time period when the name was used. **N/A**

**12/29/48** 12. State the date of birth and social security number of plaintiff(s) (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to determine whether plaintiff(s) is (are) Medicaid recipient(s) for purposes of determining whether a Medicaid lien may attach to any judgment or settlement obtained against the defendant(s). **N/A**

13. State whether plaintiff(s) is (are) Medicare recipient(s). If plaintiff is or was a Medicare recipient please provide their Medicare identification number and social security number (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to verify that plaintiff(s) is (are) Medicare recipient(s) for purposes of defendant(s) meeting its (their) Medicare reporting obligations. **N/A**

14. If plaintiff(s) has ever been convicted of a crime (including any guilty plea), please state (a) the NYSID number of plaintiff; (b) the dates of every conviction; (c) whether the conviction was state or federal; and (d) the county where each conviction occurred. **NONE**

15. If the complaint alleges loss of services, set forth the pecuniary loss, if any, alleged in the complaint. Enumerate the damages for: **AUXILIARY POLICE**

- (a) Loss of services; **10/3/13**
- (b) Consortium; **N/A**
- (c) Other expenses. **N/A**

16. State those injuries arising from the use or operation of a motor vehicle which are claimed to be serious, as defined in Insurance Law § 5102 (d), if any. **N/A**

17. If property damage is claimed, please state (a) all property damaged; (b) the fair market value of each item at the time it was damaged; (c) the cost of repairing each item; (d) the cost of replacing each item; (e) the date each item was acquired; (f) the purchase cost of each item; (g) the amount(s) provided by a third-party to reimburse damage; (h) the name and address of any third-party which reimbursed damage; and (i) amount of any unreimbursed payment made by plaintiff(s) to replace or repair a damaged item.

18. State the manner in which it is claimed the accident occurred. **N/A**

19. State separately the acts or omissions constituting the alleged negligence of each of the answering defendant(s), if any. **WRITING FALSE REPORT, PLANTING FALSE ALLEGED EVIDENCE INTENTIONALLY DESTROYING HER REPUTATION**

20. State separately the acts of each of the answering defendant(s) constituting the intentional wrongs claimed, if any. **FALSE WRITTEN WORD IN REPORT, PLANTING FALSE EVIDENCE.** 21. State the names of the employee(s) or agents of the answering defendant(s) who are alleged to have committed the acts set forth in the items above. **OFFICERS, VAHAGN KRMLOYAN, MILLER.**

22. Describe any alleged dangerous and defective condition and or the object or instrumentality complained of, as well as the nature of the condition alleged. **NO CLEAN WATER, OR FOOD, SLEEP ON BENCH** 23. State whether any repairs were made prior to the happening of the alleged accident.

24. If it is alleged that repairs were made prior to the happening of the accident, state when, where, and by whom, the repairs were made. **N/A**

25. State whether actual or constructive notice is claimed or whether it is alleged that defendant created the condition complained of. **N/A**

26. If actual notice is claimed, then set forth the following: **N/A**

(a) The names of the employees, agents and/or servants of the defendant(s) to whom it will be alleged said actual notice was given; **N/A**

(b) By whom will it be claimed that said actual notice was given on each occasion aforesaid; **N/A**

(c) The date or dates of each said notice; **N/A**

(d) The place said actual notice was given.

27. If constructive notice is claimed, state the length of time said condition is alleged to have existed prior to the happening of the alleged occurrence. **N/A**

28. If prior written notice is claimed, specify the nature of such notice. **N/A**

29. If prior written notice is claimed, then set forth the following: **N/A**

(a) The name(s) of the entity, agency, employees, agents and/or servants of the defendant(s) to whom it will be alleged said prior written notice was given; **N/A**

(b) By whom will it be claimed that said prior written notice was given on each occasion aforesaid; **N/A**

(c) The date or dates of each said notice;

(d) The place said notice was given.

30. In any action where plaintiff(s) claim the violation of any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes, ordinances, rules or regulations alleged to have been violated by the answering defendant(s). **PENAL LAW SEC. 210.45**

31. If applicable, describe in what respects defendant(s) failed to provide plaintiff(s) with a safe place to work. **N/A**

32. If applicable, state whether plaintiff(s) will allege that this defendant(s) was a party to a contract. If yes; **N/A**

(a) State the parties to the contract;

(b) State the contract number.

**N/A** 33. If applicable, set forth each and every item of construction, excavation or demolition work which the plaintiff(s) will allege was not so constructed, shored, equipped, guarded, arranged, operated and conducted as to provide reasonable and adequate safety; setting forth the manner in which the construction, shoring, equipping, guarding, arranging, operating and/or conducting of the construction, excavating, or demolition work is alleged to have caused the plaintiff(s) alleged injury.

34. If applicable, state whether the plaintiff(s) will allege that this defendant(s) exercised control over the work being performed at the job site. If yes, state the nature and extent of the control allegedly exercised and the exact manner in which said control was exercised.

35. If applicable, state those injuries claimed to be "grave", as defined in the Workers' Compensation Law § 11.

### ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges defamation, the following items are additionally demanded:

36. Whether the alleged defamatory statement was communicated orally or in a writing. **YES.**
37. With respect to each of the answering defendant(s), the particular words complained of and allegedly communicated. **PLAINTIFF FIRST ASSULTED OTHER PERSON WITH A PUNCH**
38. The name(s) and address(es) of any person(s) it is alleged heard or received the defamatory statement(s). **BRENDA SPENCER 81 COLUMBIA ST. NEW YORK**
39. If it is alleged that the defamatory statement(s) were communicated in a writing, set forth the date(s), nature, and content of the writing. **POLICE REPORT. STATEMENTS TO PLAINTIFF**
40. If it is alleged that any defamatory statement was published, set forth the date(s), nature and name of the media or publication and each republication of the alleged defamatory statement. **9/14/15, 2013**
41. The circumstances, acts, and/or omissions which evince defendant(s) knowledge of the falsity, or reckless disregard of the truth, or malice, with respect to the statement(s) allegedly made. **MELLER, BAND ON APARTMENT DOOR THAT WAS CLOSED ASKING SISTER FOR A "STICK."**

### ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges police misconduct, the following items are additionally demanded:

42. State the criminal court file and docket number of the criminal proceeding. **UK.**
43. State the (a) the specific charges; (b) the disposition of each charge; and (c) the date of said disposition. **MISDEMEANOR 12, 20, 13**
44. State the date and time taken into custody. **9/14/13, 10:15 PM**
45. State the date of arraignment. **9/16/13 12:00 AM**
46. State the date and time released from incarceration.
47. State the name, address, and phone number of attorney(s) who represented plaintiff(s) in the criminal proceedings. **N/A**
48. State the amount claimed for legal fees, if any. **500.**
49. State the NYSID number of plaintiff(s). **N/A**
50. For each criminal proceeding, including arraignment, please state the (a) the type of proceeding; (b) the date(s) of the proceeding; (c) the name of reporter who transcribed the proceeding; and (d) the name of Judge who presided over the proceeding. **N/A**  
**JUDGE JOHNSON, CRIMINAL COURT OF THE CITY OF NEW YORK, MISDEMEANOR 9/16/13, 10/13/13, 12/20/13**

### ALLEGED EXPOSURE TO LEAD-BASED PAINT

**N/A** Where applicable, in addition to the foregoing, if plaintiff(s) allege damages as a result of exposure to lead-based paint, the following items are additionally demanded:

51. The day, month, and year of initial exposure;
52. The day, month and year when exposure terminated;
53. The address(es), including apartment numbers, of every premises where it is alleged that plaintiff(s) were exposed to lead-based paint;
54. The highest recorded blood lead level for plaintiff(s) and the date of the diagnosis;
55. The date of the initial diagnosis;
56. Whether it is claimed that plaintiff(s) sustained any cognitive injuries or learning disabilities as a result of any alleged exposure and if so, state the nature of the disability, when any such disability was diagnosed, the school and current grade level of plaintiff(s) and whether plaintiff(s) have been placed in any special classes.

### ALLEGED ACTION FOR WRONGFUL DEATH

**N/A** Where applicable, in addition to the foregoing, if plaintiff(s) allege wrongful death, the following items are additionally demanded:

57. State the amount claimed as pecuniary loss, specifying the loss of parental guidance by each person dependant upon support of the decedent.
58. State the names, addresses, ages, and relationships to the decedent of all persons to whose support it is claimed the decedent contributed.
59. State the nature and purpose of the support contributed as to each person supported, including how and when support was given.
60. State the date, place and cause of death.
61. State the length of time the decedent remained conscious of the injuries sustained.
62. State the total amounts claimed as special damages for:
  - (a) Funeral and burial expenses;
  - (b) Administration expenses;
  - (c) Any other damages claimed.

**N/A ALLEGED NEGLIGENT EMERGENCY MEDICAL RESPONSE**

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent emergency medical response, the following items are additionally demanded:

63. The exact dates and times of the claimed acts or occurrences.
- N/A** 64. The specific locations of the claimed acts and/or occurrences with reference to addresses, landmarks, or other identifying points of reference. If the claimed acts and/or occurrences took place inside a premise, state specifically the location within the premise and/or the department(s), as applicable, of said premises.
65. The specific time when the need for medical attention was first noticed by the plaintiff in distress, or by another person.
66. If a call for emergency assistance was made, indicate:
  - (a) the time at which the call was placed.
  - N/A** (b) the person who placed the call and, if other than the patient, his or her relationship to the patient.
  - (c) the description or report of injury or emergency given.
  - (d) if more than one call was made to 911.
  - (e) what the caller was told by the operator.
67. If more than one call was made to 911, indicate:
  - (a) the total number of calls made to 911.
  - N/A** (b) the time of each respective subsequent call,
  - (c) the person or people who made each respective subsequent call (if different from the first call).
  - (d) if the description of the injury or emergency changed after the first call to 911, indicate what the change was, why the description changed, when the change in condition was first noticed prior to it being reported to 911, and when the change was reported to 911
  - (e) what the caller was told by the operator during each respective call.
68. Indicate if 911 had been contacted earlier in the day of the incident for the same or similar condition. If so, indicate the person or persons who made the call, and when they made it. Describe what the person or persons were told by the operator.  
**N/A**
69. Indicate what time emergency personnel first arrived. Also indicate, if known, the respective names and ranks of emergency personnel who arrived on the scene. If known, indicate if the personnel were from the FDNY or the NYPD. If the

personnel were not from either of those two agencies, identify, if known, the agency or hospital the personnel were from.

70. Indicate, if known, what time any additional and/or subsequent emergency personnel arrived after the initial emergency personnel. Indicate if such additional personnel were from the FDNY or the NYPD. If the additional personnel were not from those two agencies, identify the agency or agencies the personnel were from. Indicate the names and ranks of any additional emergency personnel who arrived. Describe any actions taken, and treatment provided by additional emergency personnel on-scene, or, if applicable, en route to a hospital.

N/A

71. State whether a claim is made that the answering defendant ignored or misdiagnosed complaints, signs, or symptoms of the patient plaintiff.

(a) If such a claim is made, state specifically by name or description all complaints, signs, and symptoms that the answering defendant(s) ignored or misdiagnosed.

N/A

(b) State what injury is claimed as the result of the answering defendant ignoring or misdiagnosing the complaints, signs, and symptoms.

(c) State specifically at what point during treatment the complaints, signs, and symptoms were ignored or misdiagnosed.

(d) State what the misdiagnosis of the complaints, signs, and symptoms was.

N/A

72. Describe the treatment, if any, provided by each of the arriving emergency personnel. Indicate, with specific time(s) and location(s):

(a) if the patient was intubated.

(i) If it is claimed that intubation was improper, describe how and why the intubation was improper, and the affect such alleged improper intubation had on the patient's condition, illness, or injury.

(ii) If it is claimed that the patient should have been, but was not intubated, describe the affect such alleged lack of intubation had on the patient's condition, illness, or injury.

(iii) If it is claimed that there was a delay in the patient being intubated, state the length of the delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.

(b) if an intravenous line was started.

N/A

(i) If it is claimed that an intravenous line was improper, describe how and why the intravenous line was improper,



and the affect such alleged improper use had on the patient's condition, illness, or injury.

(c) if a defibrillator was required or used.

(i) If it is claimed that a defibrillator was improperly used, describe how and why the use was improper, and the affect such alleged improper use had on the patient's condition, illness, or injury.

N/A (ii) If it is claimed that a defibrillator should have been, but was not used, explain the affect such alleged lack of use had on the patient's condition, illness, or injury.

(iii) If it is claimed that there was a delay in using a defibrillator, state the length of delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.

(d) if oxygen was required or given.

(i) if it is claimed that oxygen should have been given and was not, explain why oxygenation was required, as well as the affect that the alleged lack of oxygenation had on the patient's condition, illness, or injury.

N/A (ii) if it is claimed that oxygenation was improper, explain how it was improper, and the affect that such alleged improper oxygenation had on the patient's condition, illness, or injury.

(iii) if it is claimed that there was a delay in oxygenation of the patient, state the length of delay, and the affect such alleged delay had on the patient's condition, illness, or injury.

(e) if any medication was improperly administered, contraindicated, administered in an improper dosage or improper manner.

N/A (i) State the name and description of each drug or medication improperly administered. Describe the manner in which the drug or medication was improperly administered. State the injury claimed as a result of the improperly administered drug or medication. State specifically at what point the drugs were administered improperly.

(ii) State the name and description of each drug or medication administered in an improper dosage. Indicate what the improper dosage was. State the injury claimed as a result of the improper dosage. State specifically at what point during treatment the drugs were administered in an improper dosage.



- (iii) State the name and description of each drug or medication claimed to be contraindicated. State in what way it is claimed that each such drug or medication was contraindicated. State the injuries claimed as a result of the administering of the contraindicated drug or medication. State specifically at what point during treatment the contraindicated drug or medication was administered.

N/A

73. Indicate if the plaintiff was transported to a hospital. Specify who transported the plaintiff to the hospital. Indicate if the plaintiff requested to be taken to a specific hospital. Identify the hospital to which the plaintiff was taken. Indicate what time the plaintiff was transported from the scene to the hospital and with whom if anyone she was accompanied by.

N/A

74. If it is claimed that emergency personnel lacked equipment to adequately provide aid, describe the equipment alleged to have been missing, and why such equipment is believed to have been missing. Describe how the alleged lack of equipment affected the patient's condition, injury, or illness.

75. State whether a claim is made as to defective equipment.

- (a) If such a claim is made, identify the equipment and state the nature of the defect.

N/A

- (b) If notice of such a defect is a prerequisite to liability, state whether actual or constructive notice is claimed.

- (c) If constructive notice is claimed, state how long the condition existed.

76. State separately the acts or omissions constituting the alleged negligence and/or medical malpractice of each of the named defendants.

77. ~~State the manner in which it is claimed the alleged injury arose.~~ INTENTIONAL MAKING FALSE REPORT, FALSE EVIDENCE

78. ~~State separately the acts of each of the named defendants constituting the intentional wrongs claimed, if any.~~ PLANTING FALSE ALLEGED EVIDENCE TO ARREST

79. ~~State the names of the employee(s) or agents of the answering defendant who are alleged to have committed the acts set forth in the paragraphs above.~~ KNOWING COMMITTING WRONGFUL FALSE ACTS

80. ~~If it is claimed that the answering defendant violated any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes ordinances, rules or regulations alleged to have been violated by the answering defendant, as well as any statute, ordinance, rule, order, requirement or regulation claimed to have been violated by each of the named defendants.~~ KRMOYAN AND MILLER 7<sup>th</sup> PCT. POLICE DEPT.

PENAL LAW SEC. 210.45, U.S. CONSTITUTION

ARTICLE I (1), PENAL LAW 500-d, OFFICERS HAD NO WARRANT FOR SEIZURE OF A STICK TO PLANT, CONSTITUTION ARTICLE I (7)

81. State all injuries claimed as the result of the alleged negligence of the answering defendant herein, and state specifically which of the above injuries are claimed to be permanent in nature. **HARASSMENT, DEHYDRATION, HELD 26**

**HOURS, FALSELY ACCUSED WITH PLANTED ALLEGED EVIDENCE**  
82. For actions other than for wrongful death, state the length of time the plaintiff was confined to each of the following by virtue of the acts or omissions of the answering defendant(s) herein. **OVER (26) TWENTY SIX HOURS**

(a) Hospital, listing separately each period of hospitalization with the name and address of each hospital.

**N/A** (b) Home.

(c) Bed.

83. Set forth the amount claimed as special damages for:

- (a) Physician(s) services;
- (b) Nurses services;
- (c) Hospital expenses;
- (d) Drugs and medical supplies and/or equipment;
- (e) X-rays and diagnostic tests;
- (f) Rehabilitative and/or therapy services;
- (g) Home health services;
- (h) Any other expenses claimed.

**N/A**

84. For each of the foregoing elements of damages please state the name and address(es) of the provider(s), pharmacies, the dates of treatment and/or dates of use and list of prescriptions/medications filled. If any of the foregoing elements of damages have been repaid to the plaintiff or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff.

85. Set forth:

**N/A**

(a) Occupation of plaintiff at the time of the occurrence;  
(b) Whether plaintiff was self-employed, and, if so, state the address of her place of employment and the nature of the business or occupation in which she was engaged immediately prior to the occurrence.

**N/A**

(c) Name and address of plaintiff's employer, if any;  
(d) Average weekly, monthly and/or annual gross earnings;  
(e) State separately, the length of time totally and/or partially disabled;  
(f) Amount claimed for lost earnings, if any;  
(g) Number of days lost from work;  
(h) Number of days lost from school;  
(i) Name and address of school attended by plaintiff at the time of the date of accident.

86. Provide plaintiff's present residence address and plaintiff's residence address at time of the occurrence.

87. List all other names used by plaintiff.

**N/A**

88. List plaintiff's date of birth and social security number.

## DEMAND FOR DISCOVERY & INSPECTION

**PLEASE TAKE FURTHER NOTICE** that within 30 days following service of this demand you are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

### GENERAL DEMANDS

7<sup>TH</sup> PCT

1. If the City of New York is a named defendant, please identify the agency(s) involved.
2. For each person you believe may have been a witness to the incident which caused an injury, state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties. **BRENDA SPENCE 81 COLUMBIA ST NY**
3. For each person you believe may have been a witness to the condition which allegedly caused an injury, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties. **SAME AS STATED # 1, 2**
4. For each person you believe may be a witness to an injury alleged in this lawsuit, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties. **UK.**
5. For each expert witness whom you expect to call at trial, please state the (a) name of the expert; (b) business address of the expert; (c) qualifications of the expert; (d) curriculum vitae of the expert; (e) subject matter in reasonable detail that the expert is expected to testify; (f) substance of the facts and opinions on which each expert is expected to testify; and (g) a summary of the grounds for each opinion.
6. If any sum has been paid or promised to plaintiff(s) by any person claimed to be liable (within the meaning of § 15-108, General Obligations Law) for any of the injuries (or damages) alleged in the complaint, please set forth the name(s) and address(es) of the person(s), corporation(s), insurance company(s), or other entity(s) making such payment or promise and state the amount(s) which have been, or will be, with reasonable certainty received by plaintiff(s). **N/A**
7. For each person you believe may have provided an oral or written statement about the incident, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties. **UK.**
8. Furnish a copy of each document you believe may have been prepared by the answering defendant(s) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation, including any statement made by any person identified in response to Item 6 above, and any note, memorandum or recording of any oral statement. **N/A**
9. Furnish the sum and substance of any unrecorded oral statement you believe may have been given by each defendant (or employee, or former employee, of a defendant) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation. **UK.**

N/A 10. Provide a copy of any (a) any insurance claim arising out of the incident alleged in this lawsuit; (b) any workers' compensation claim arising out of the incident alleged in this lawsuit; (c) any pension claim arising out of the incident alleged in this lawsuit; (d) any no-fault claim arising out of the incident alleged in this lawsuit; and (e) any other claim seeking redress for the incident alleged in the lawsuit.

N/A 11. Furnish a copy of any Freedom of Information Law request made to the answering defendant(s) and any response thereto, which you intend to use for any purpose in this litigation.

N/A 12. Furnish copies of any subpoenas served on any party, or any other individual or entity concerning this litigation.

N/A 13. Provide a copy of any transcript of testimony involving the incident alleged in the lawsuit (including (but not limited to) any examinations under oath, transcript or materials related to a Department of Motor Vehicle hearing, departmental hearing, and criminal proceeding).

N/A 14. Provide a signed copy of any hearing held pursuant to General Municipal Law § 50-h.

N/A 15. Please furnish a copy of each accident report, if any, made by, or on behalf of your client(s) concerning the occurrence of the injuries (or damages) alleged in the complaint.

N/A 16. Furnish a copy of any written notice, Big Apple Corporation map or other document giving notice of an allegedly defective or dangerous condition at the place where the injuries (or damages) alleged in the complaint occurred, prior to the occurrence thereof.

N/A 17. Furnish a reasonably clear copy of each photograph and or each video depicting the place where the injuries (or damages) alleged in the complaint occurred.

N/A 18. If plaintiff intends on utilizing any physical evidence at trial, please (a) provide a photograph of the physical evidence; and (b) make the physical evidence available for inspection.

N/A 19. In any action for injuries, including death, allegedly sustained by a spouse, child or other family member of a plaintiff, please furnish a copy of each marriage, birth and death certificate, as applicable.

N/A 20. In any representative action, please furnish a copy of the court order appointing the representative.

N/A 21. With respect to any earnings (or profits) claimed to have been lost as a result of the injuries (or damages) alleged in the complaint, please furnish a copy of each state and each federal income tax return including any W-2 statements, together with attachments, filed by, or on behalf of, plaintiff(s) for the year in which the said injuries (or damages) occurred and for each of the two preceding years, and for all years in which continuing losses are claimed.

N/A 22. In any action for wrongful death, please furnish a copy of the federal estate tax return filed for decedent's estate, and a copy of each state and each federal income tax return, including W-2 statements, filed by, or on behalf of the decedent for each of the two years before death.

N/A 23. Furnish a copy of each medical provider's report and medical bills, including pharmaceutical bills and bills for durable medical goods, with ICD-codes, referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **after** the occurrence of the injuries alleged in the complaint, or any treatment reasonably related thereto.

N/A 24. Furnish a copy of each medical provider's report referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **before** the occurrence of the injuries alleged in the complaint and reasonably related thereto.

N/A 25. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to (a) obtain each document referring to any treatment of plaintiff(s) (including psychological treatment) for any injury alleged in this lawsuit; and (b) speak with any medical provider which provided any treatment to plaintiff(s). This demand includes treatment which is reasonably related to any injury alleged in this lawsuit. Please utilize form located New York State Unified Court System webpage located at [www.nycourts.gov](http://www.nycourts.gov).

N/A 26. In any action by or on behalf of a student, please furnish duly executed authorizations permitting the Office of the Corporation Counsel to examine and copy the school, attendance and health records of the plaintiff(s) on file at the school(s) attended at the time of the occurrence and thereafter.

N/A 27. If plaintiff received workers' compensation benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the workers' compensation file; and (b) a copy of the worker's compensation file.

N/A 28. If plaintiff received no fault benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the no fault file; (b) a copy of the no fault file.

N/A 29. If plaintiff alleges economic loss, please provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records on file at the last employer.

N/A 30. State whether plaintiff is currently receiving, has applied for or is eligible for Social Security Disability payments. If plaintiff is currently receiving Social Security Disability payments, please identify when eligibility began and identify his/her SSDI number and the medical condition on which basis coverage was awarded. If plaintiff has received Social Security Disability payments at any point in the past, please identify the period or periods of time when plaintiff was eligible and identify his/her SSDI number and medical condition on which basis coverage was awarded.

N/A 31. If, in your response to the prior request, you indicated plaintiff has ever applied for or been eligible for Social Security Disability payments, please provide (a) copies of all social security disability records, including any determination and decision; and (b) a duly executed authorization (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain Social Security disability records from the Social Security Administration.

N/A 32. Identify all health care benefits, including but not limited to private health insurance carriers and public health care programs (e.g., Medicaid), plaintiff has received or which plaintiff will become eligible to receive as a result of injuries allegedly related to the subject accident/incident and provide copies of plaintiff's identification cards for all identified health care programs.

N/A 33. State whether plaintiff is or has ever been a Medicare recipient and, if so, provide plaintiff's Medicare Health Insurance Claim Number ("HICN") and a copy of his/her HICN card. If no card is available, please provide the date eligibility began. If plaintiff has received Medicare coverage at some point in the past and no HICN card is available, please identify the period or periods of time when plaintiff was eligible.

N/A 34. Furnish the name and address of the attorney(s) who have appeared in this action.

N/A 35. Furnish the names of the parties, the court, and the index number of each other action, if any, commenced by or on behalf of plaintiff(s) concerning any of the injuries (or damages) alleged in the complaint.

#### DEMANDS FOR COLLATERAL SOURCE INFORMATION

N/A 36. Entities that have provided payments for medical treatment. Identify by name, address and policy number, any source that has provided payments to plaintiff, or to plaintiff's spouse, domestic partner, or parent for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

N/A 37. Entities that have provided payments on account of disability. Identify by name, address and policy number, any source that has provided payments to plaintiff, by reason of plaintiff's partial or total inability to work. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

38. Entities from which plaintiff is eligible to receive medical coverage. Identify by name, address and policy number, any source from which plaintiff is eligible to receive medical coverage for the



injuries received in this accident whether or not plaintiff has actually applied for such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

39. Entities from which plaintiff is eligible to receive disability benefits. Identify any source by name, address and policy number, any source from which plaintiff would be eligible to receive payments in the event of plaintiff's partial or total inability to work, whether or not plaintiff has applied for or received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

40. Entities to which plaintiff has applied for medical benefits. Identify any source by name, address and policy number, any source to which plaintiff, or plaintiff's spouse, domestic partner, or parent, has submitted claims or applied for benefits for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident whether or not such benefits were received. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

41. Entities to which an application for disability benefits has been made. Identify any source by name, address and policy number, any entity to which an application has been made for payments by reason of partial or total inability to work, whether or not plaintiff has received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

42. Entities to which plaintiff has paid premiums to obtain medical or disability coverage. Identify any entity by name, address and policy number to which plaintiff, or plaintiff's spouse, domestic partner, or parent paid premiums to obtain medical or disability coverage for two years prior to the incident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for proof of such payment of premiums.

#### ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) allege police misconduct, the following items are additionally demanded:

43. Provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records pertaining to all criminal proceedings related to the incident alleged in this lawsuit. Please provide a separate authorization for each entity which maintains these records (including (but not limited to) the Office of the District Attorney, the New York City Police Department, and criminal court).

44. Provide copies of records pertaining to all criminal proceedings related to the incident alleged in the lawsuit, including (but not limited to) transcripts, certificates of disposition, police records, criminal records, District Attorney records, and photographs, including copies of any photographs of the plaintiff(s) taken by the defendant(s) at the time of the arrest.

45. If entitlement to reimbursement for legal fees is claimed, please provide copies of any bills incurred.

46. Provide the name, address, and phone number of any attorney representing plaintiff(s) concerning the criminal charges related to the incident alleged in this lawsuit.

#### ALLEGED PROPERTY DAMAGE

Where applicable, in addition to the foregoing, if plaintiff(s) allege property damage, the following items are additionally demanded:

47. For each item of property damaged:

(a) Photograph(s) and or videotapes depicting the items alleged to have been damaged, prior to damage;

(b) Photograph(s) and or videotapes depicting items alleged to have been damaged, subsequent to damage;

(c) Original purchase receipts, cancelled checks, and/or charge slips for items alleged to have been damaged;



N/A (d) Appraisals, warranties, etc. pertaining to the items alleged to have been damaged.

48. True and accurate copies of any and all insurance agreements held by plaintiff on day of said incident and pertaining to property damage and/or loss.

49. True and accurate copies of any and all notices of loss or claims made on the above policies pertaining to the damage alleged in the complaint.

#### ALLEGED NEGLIGENT SUPERVISION

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent supervision, the following items are additionally demanded:

N/A 50. For every individual who allegedly failed to provide adequate supervision, please state (a) the name of the individual; (b) the address and phone number of the individual; (c) the name of the entity who employs the individual; (d) the title of the individual; (e) the date that the individual failed to provide adequate supervision; and (f) the time that the individual failed to provide adequate supervision. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each individual. This demand includes all individuals, even if employed by any of the parties.

51. Identify the name or names of the person(s) it is alleged received inadequate supervision.

N/A 52. Provide the name(s) of any person(s) plaintiff will claim assaulted him/her with reference to the claim being asserted against the answering defendant(s).

53. If the person(s) identified in above have not yet appeared in this action, please provide copies of all documents, including but not limited to, affidavits of service and correspondence, which reflect any attempt to obtain jurisdiction over the individual(s).

N/A 54. Provide copies of any documents filed with or against any governmental agency(s) concerning the actions of any person(s) whom plaintiff(s) alleges caused the damages alleged in the complaint, including any criminal complaints filed and the disposition thereof.

N/A 55. For each individual you believe may have provided an oral or written statement concerning the supervision of any person involved in the incident, state (a) the name of any individual who provided a statement; and (b) the address and phone number of any individual who provided a statement. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have provided a statement. This demand includes all individuals, even if employed by any of the parties.

#### ALLEGED PREMISES LIABILITY

N/A Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) failed to properly maintain a premises, the following items are additionally demanded:

N/A 56. If it is alleged that the answering defendant owned the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) ownership of the premises.

N/A 57. If it is alleged that the answering defendant(s) leased the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) tenancy.

58. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

N/A 59. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

#### MOTOR VEHICLE ACCIDENTS

N/A Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

- N/A
60. Provide a copy of the title for the vehicle being operated by plaintiff.
61. Provide a copy of plaintiff's drivers license.
62. Provide a copy of the registration for the vehicle in which plaintiff(s) was located when the incident occurred.
63. Provide a copy of any (a) repair record (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident; and (b) maintenance records (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident.
64. Provide a copy of any recall notice received regarding the vehicle in which plaintiff(s) was located when the incident occurred.
65. Provide photographs taken of the vehicle(s) involved in the accident taken:
- (a) Before the accident;
  - (b) After the accident.
- N/A
66. Provide any estimates to repair the vehicle involved in this accident.
67. Provide any records or receipts for towing of the vehicle involved in this accident.
68. Provide a copy of the MV-104 filed by, or on behalf of, the plaintiff as a result of this accident.
69. Provide a copy of any accident report provided to any insurance company regarding this accident.
70. Provide any notes or memorandum describing this accident.
71. Provide a copy of any transcript of any Department of Motor Vehicle hearing taken with respect to this accident.
72. Provide the date, location, name of defendant or respondent, and name of Judicial Hearing Officer who presided over, any Department of Motor Vehicle hearing taken with respect to this accident.
73. Provide a copy of any insurance policy (including any umbrella or excess policy) covering the vehicle in which plaintiff(s) was located at the time of the incident.
74. Provide a copy of the no-fault file pertaining to plaintiff(s).

#### ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) defamed plaintiff(s), the following items are additionally demanded:

75. Provide a copy of any writing, publication (including any re-publications), and broadcast containing the alleged defamatory statement(s). **SEALED BY JUDGE JOHNSON**
76. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate the untruthfulness of the alleged defamatory statement(s). **SEALED**
77. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate defendant(s) malice or reckless disregard for the truth. **SEALED**
78. Provide the name of any individual who you believe has information concerning the untruthfulness of the alleged defamatory statement(s) or whether the statements were made with malice or reckless disregard for the truth, stating (a) the name of the individual(s); and (b) the address and phone number of the individuals. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person. This demand includes all individuals, even if employed by any of the parties. **7<sup>TH</sup> PCT. POLICE DEPT.**
79. Provide copies of any documents, bills, invoices or writings which plaintiff(s) intend to use to prove any alleged special damages.

**DOCUMENTS SEALED BY JUDGE JOHNSON  
CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK**

**ALLEGED LEAD-BASED PAINT**

**N/A** Where applicable, in addition to the foregoing, if plaintiff(s) alleges injuries as a result of exposure to lead-based paint, the following items are additionally demanded:

80. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain birth and prenatal records of plaintiff(s); the authorization must include the name and address of the hospital or facility where plaintiff(s) was born and the date of birth of plaintiff(s).

81. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of any medical provider who provided prenatal care; the authorization must include the name and addresses of each medical provider and the dates of treatment.

82. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of all (a) health providers who have rendered pediatric care (including treatment for any of the injuries currently alleged) to plaintiff(s); and (b) health care providers that screened blood of plaintiff(s). The authorizations must contain the name and address of each medical provider as well as the dates of treatment or testing.

83. Provide duly executed authorizations enabling defendant(s) to obtain the records of any and all schools, and/or day care centers attended by the plaintiff(s) to date; the authorizations must include the name(s) and address(es) of the schools and the dates of attendance.

84. Provide the name and address of the academic institution most recently attended by the infant plaintiff's natural mother and a duly executed authorization allowing that institution to release its records to the defendant(s). If the infant plaintiff's mother is not the custodial parent, please provide the same information with respect to any adult acting as the infant plaintiff's guardian or caretaker.

85. If the infant plaintiff has any siblings, please provide the following for each such sibling:

(a) Name, date of birth and current address;

(b) Names and addresses of any and all schools, pre-schools or day-care centers attended, and duly executed authorizations allowing those institutions to release their records to the defendant(s).

86. For each infant plaintiff, provide the name, date of birth and last known address of the biological father.

87. Provide copies of any photographs, movies, or videotapes depicting the premises.

88. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

89. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

**DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S))**

**PLEASE TAKE FURTHER NOTICE** that within 30 days following service of this demand, all other parties (excluding plaintiff(s)) are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

**GENERAL DEMANDS TO PARTIES (EXCLUDING PLAINTIFF(S))**

- N/A 1. Provide copies of complete contents of insurance policies in effect on the date of occurrence, including all endorsements, terms, and conditions, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.
- N/A 2. Provide copies of all excess and umbrella insurance policies in effect on date of occurrence, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.
- N/A 3. Provide copies of all certificates of insurance in effect on the date of occurrence, including but not limited to, any which name this defendant, or any of its agencies, as an insured or as an additionally insured.
- N/A 4. Copies of all contracts, sub-contracts, leases, franchises, and indemnification agreements in effect on date of occurrence.
- N/A 5. Provide copies of any documents, records or photographs relating to any repairs made to the location, premises or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.
- N/A 6. Provide copies of any documents, records or logs relating to any maintenance (including cleaning, altering, and shoveling) performed at, or to, the location, premises, or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.
- N/A 7. Copies of all accident reports kept in the regular course of business regarding the occurrence complained of in plaintiff's complaint.
- N/A 8. Provide a copy of plaintiff(s) Bill of Particulars and any discovery items previously exchanged, (including but not limited to; deposition transcripts and reports of physical examinations conducted of the plaintiff), and served upon or by defendant(s) or third-party defendant(s).

**DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING ALLEGED ROADWAY, SIDEWALK, AND CONSTRUCTION ACCIDENTS**

N/A Where applicable, in addition to the foregoing, in any action alleging defective roadway, sidewalk, or construction, the following items are additionally demanded:

9. Provide copies of all applications for permits, cut forms, opening tickets, work tickets, and paving orders.
10. Provide copies of all drawings, schematics, blueprints, strip maps, diagrams of underground facilities and of street hardware, including manhole covers, castings, and gratings.
11. Provide copies of all daily, weekly, and/or monthly progress reports, job progress photographs, and photographs of roadway color coding for entire period of construction.
12. Provide copies of all maintenance, inspection and repair records for the entire period of construction.

**DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING MOTOR VEHICLE ACCIDENTS**

N/A Where applicable, in addition to the foregoing, in any action in which it is alleged that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

13. Provide a copy of the title for any vehicle involved in the incident.
14. Provide a copy of the driver's license for the applicable driver involved in the incident.
15. Provide a copy of the registration for the applicable vehicle involved in the incident.
16. Provide the following records for the applicable vehicle involved in the incident for a two-year period prior to the alleged incident: (a) repair records (including logs, bills, and receipts); and (b) maintenance records (including logs, bills, and receipts).

17. Provide a copy of any recall notice received regarding any vehicle involved in the incident.

18. Provide photographs of the vehicle involved in the accident taken:

- (a) before the accident;
- (b) after the accident.

N/A

19. Provide any estimates to repair the vehicle involved in this accident.

20. Provide any records or receipts for towing of the vehicle involved in this accident.

21. Provide a copy of any MV-104 related to the incident.

22. Provide a copy of any Department of Motor Vehicle hearing related to the incident; and provide (a) the date, location, name of the parties, and name of Judicial Hearing Officer who presided over any Department of Motor Vehicle hearing.

23. Provide a copy of any accident report provided to any insurance company regarding this accident.

N/A

24. Provide any notes or memorandum describing this accident.

25. Provide a copy of any insurance policy, including any umbrella or excess policies, covering the vehicle defendant or third-party plaintiff was operating at the time of this accident.

26. Provide a copy of any no-fault file pertaining to plaintiff(s) related to the incident.

**ADDITIONAL DEMANDS TO ANY THIRD-PARTY PLAINTIFF WHO HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

N/A

**PLEASE TAKE FURTHER NOTICE** that within 30 days following service of this demand, any third party-plaintiff who has an action against a party represented by the Corporation Counsel, it is requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

N/A

27. Provide a copy of any document (with all attachments) previously exchanged by the parties (including pleadings, bills of particulars, deposition transcripts, medical records, correspondence, motions, discovery responses, etc.).

28. Provide a copy of all court orders and stipulations issued in the litigation.

**DEMAND FOR VERIFIED BILL OF PARTICULARS TO ANY THIRD-PARTY PLAINTIFF WHO HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

N/A

**PLEASE TAKE NOTICE** that pursuant to CPLR 3041, any third party-plaintiff who has an action against a party represented by the Corporation Counsel is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. State separately the alleged negligence of any party represented by the Corporation Counsel, if applicable.

2. State separately the alleged intentional wrongs committed by any party represented by the Corporation Counsel, if applicable.

3. State the name of any employee or agent of any party represented by the Corporation Counsel alleged to have committed any act which contributed to an injury.



N/A 4. State (a) whether any repair was made to the accident location prior to the happening of the alleged accident; (b) when any repair was made; (c) where any repair was made; (d) who made any repair; and (e) what repairs were made.

N/A 5. State (a) whether any party represented by the Corporation Counsel had notice of an alleged defective condition which contributed to an injury; (b) which party had notice; (c) whether the party had actual notice of a condition; (d) whether the party had constructive notice of a condition; and (e) whether it is alleged that the party created the condition.

N/A 6. If actual notice is claimed, please state (a) the name of any individual(s) who had actual notice; (b) the job title of any individual(s) who had actual notice; (c) the employer of any individual(s) who had actual notice; and (d) the address and phone number of any individual(s) who had actual notice. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have had actual notice. This demand includes all individuals, even if employed by any of the parties.

N/A 7. If constructive notice of a condition is claimed, please state the alleged condition and the length of time said condition is alleged to have existed prior to the happening of the alleged incident.

8. If third-party plaintiff(s) claims the violation of any statute, ordinance, rule, order, regulation, or directive, please state separately all such statutes, ordinances, rules, regulations, and directives alleged to have been violated by any party represented by the Corporation Counsel.

N/A 9. If applicable, please state whether any party represented by the Corporation Counsel was a party to a contract; and please state the:

(c) parties to the contract;

(d) contract number.

N/A 10. If applicable, please state any item of construction, excavation, and demolition work which was not so constructed, shored, equipped, guarded, arranged, operated, and conducted as to provide reasonable and adequate safety; and please state (a) the manner in which the work caused an alleged injury; and (b) if applicable, the control exercised by any party represented by the Corporation Counsel and the exact manner in which said control was exercised.

Dated: New York, New York  
October \_\_\_\_, 2014

Yours, etc.

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW  
YORK, THE CITY OF NEW YORK S/H/A 7TH  
PCT. POLICE DEPT., P. O. VAHAGN  
KRMOYAN S/H/A KRMOYAN,  
100 Church Street  
New York, New York 10007

TO:

PATRICIA VENNER  
Plaintiff Pro Se  
81 COLUMBIA STREET, APT. 2A  
NEW YORK, NY 10002



BILL OF PARTICULARS

Case No. 100682/2014

SUPREME COURT OF THE NEW YORK  
COUNTY OF NEW YORK

Part: 62

PATRICIA VENNER V. NEW YORK CITY AND 7th PCT. POLICE DEPT.  
OFFICER MILLER, KRMOYAN.

1. Non Accident Claim, a Personal Injury Claim as a result of defendant's plant plot of false evidence, locked in a cell about 26 hours, was finger printed, photograph, without clean water after requesting water when felt dehydrated, was told by correction that there was no clean water only water to drink was from a dirty sink used to wash hand after use of toilet and cold cell.

2. The defendant intentionally planted a stick as false evidence to boost the false report for the arrest, made against plaintiff, knowingly caused injuries to plaintiff harassment, suffering (all day without water, no food only a hard cheese sandwich no one finished, with an small apple) she was put under much stress. to this day it is hard to think about being falsely and wrongful accused, on false charges.

3. The defendant held plaintiff until she was one of the last person name to be call when others came after she was taken to same holding cell, was let go in shorter time then plaintiff.

4. The two defendants did not allowed plaintiff to get her coat, that cold night when she was arrested on planted false evidence alligations that, she used a stick on a senior, there are no merit to this false alligation and plaintiff lefted to suffer in the cold cell for hours using her short sleeve top as a blanket.

Exhibit B

DATE: FEBRUARY 5 2016

PATRICIA VENNER

PATRICIA VENNER

P.O. 767

NEW YORK NEW YORK  
10002

PLAINTIFF CERTIFICATE

I declare under penalty of perjury that the foregoing is true  
and correct

I certify that i delivered acompleted copy of this BILL OF  
PARTICULARS to the clark of this court and the defendant.

*Patricia Venner*  
*Patricia Venner*

Exhibit C

CRIMINAL COURT OF THE CITY OF NEW YORK  
RECORD OF COURT ACTION

|                                                |                                                                                                                                                                                                                       |  |  |                                                |                                                                                                                                                                                                                                                                                                                                               |                                                                                   |                                                                                   |
|------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|
| Date                                           | HOLD <u>CA relieved</u><br><u>XD SID</u>                                                                                                                                                                              |  |  |                                                | Present<br><input type="checkbox"/> Defendant<br><input checked="" type="checkbox"/> Attorney                                                                                                                                                                                                                                                 | Absent<br><input type="checkbox"/> Defendant<br><input type="checkbox"/> Attorney | Readiness<br><input type="checkbox"/> ready<br><input type="checkbox"/> not ready |
| Part                                           | PART 10-23-13<br>CT RPTA GRANT<br>HON. BOYAR                                                                                                                                                                          |  |  |                                                | Reason for Adjournment<br><input type="checkbox"/> S/D<br><input type="checkbox"/> OFD/Discovery<br><input type="checkbox"/> Possible Disposition<br><input type="checkbox"/> Decision<br><input type="checkbox"/> Hearing<br><input type="checkbox"/> Bench Trial<br><input type="checkbox"/> Jury Trial<br><input type="checkbox"/> Program |                                                                                   |                                                                                   |
| Judge                                          | 12/20 A SD/ 30.30                                                                                                                                                                                                     |  |  |                                                |                                                                                                                                                                                                                                                                                                                                               |                                                                                   |                                                                                   |
| Reporter                                       | TOP <u>DP</u><br>Bail Condition                                                                                                                                                                                       |  |  |                                                | Notify<br><input type="checkbox"/> Charged<br><input type="checkbox"/> Excluded<br><input type="checkbox"/> Defendant<br><input type="checkbox"/> Attorney                                                                                                                                                                                    |                                                                                   |                                                                                   |
| Date                                           | HOLD                                                                                                                                                                                                                  |  |  |                                                | Present<br><input type="checkbox"/> Defendant<br><input type="checkbox"/> Attorney                                                                                                                                                                                                                                                            | Absent<br><input type="checkbox"/> Defendant<br><input type="checkbox"/> Attorney | Readiness<br><input type="checkbox"/> ready<br><input type="checkbox"/> not ready |
| Part                                           | PART 12-20-13<br>CT RPTA BENT<br>HON. PETERSON                                                                                                                                                                        |  |  |                                                | Reason for Adjournment<br><input type="checkbox"/> S/D<br><input type="checkbox"/> OFD/Discovery<br><input type="checkbox"/> Possible Disposition<br><input type="checkbox"/> Decision<br><input type="checkbox"/> Hearing<br><input type="checkbox"/> Bench Trial<br><input type="checkbox"/> Jury Trial<br><input type="checkbox"/> Program |                                                                                   |                                                                                   |
| Reporter                                       | TOP <u>WP</u><br>Bail Condition                                                                                                                                                                                       |  |  |                                                | Notify<br><input type="checkbox"/> Charged<br><input type="checkbox"/> Excluded<br><input type="checkbox"/> Defendant<br><input type="checkbox"/> Attorney                                                                                                                                                                                    |                                                                                   |                                                                                   |
| Date                                           | HOLD                                                                                                                                                                                                                  |  |  |                                                | Present<br><input type="checkbox"/> Defendant<br><input type="checkbox"/> Attorney                                                                                                                                                                                                                                                            | Absent<br><input type="checkbox"/> Defendant<br><input type="checkbox"/> Attorney | Readiness<br><input type="checkbox"/> ready<br><input type="checkbox"/> not ready |
| Part                                           | Criminal Court of the City of New York<br>County of <u>New York</u> Date <u>9-23-2013</u><br>I hereby certify that the within is a true<br>Copy of the Record on file at this Court<br><u>[Signature]</u> Court Clerk |  |  |                                                | Reason for Adjournment<br><input type="checkbox"/> S/D<br><input type="checkbox"/> OFD/Discovery<br><input type="checkbox"/> Possible Disposition<br><input type="checkbox"/> Decision<br><input type="checkbox"/> Hearing<br><input type="checkbox"/> Bench Trial<br><input type="checkbox"/> Jury Trial<br><input type="checkbox"/> Program |                                                                                   |                                                                                   |
| Judge                                          | TOP                                                                                                                                                                                                                   |  |  |                                                |                                                                                                                                                                                                                                                                                                                                               |                                                                                   |                                                                                   |
| Reporter                                       | TOP                                                                                                                                                                                                                   |  |  |                                                | Notify<br><input type="checkbox"/> Charged<br><input type="checkbox"/> Excluded<br><input type="checkbox"/> Defendant<br><input type="checkbox"/> Attorney                                                                                                                                                                                    |                                                                                   |                                                                                   |
| TEMPORARY ORDER OF PROTECTION IN EFFECT UNTIL: |                                                                                                                                                                                                                       |  |  | TEMPORARY ORDER OF PROTECTION IN EFFECT UNTIL: |                                                                                                                                                                                                                                                                                                                                               |                                                                                   |                                                                                   |



**DISPATCH**

**PRISONER MOVEMENT SLIP**

**Arresting Officer**

**M13681385N**  
Date/Time: 2013-09-15 01:53:00

A/O Name: KRMOYAN

Arrest PCT: 7TH PRECINCT

Possible DATE: ☐ YES ☐ NO

CELL #:

Fax #:

M0053188

Defendant:

**VENNER, PATRICIA**

Sex: FEMALE Race: BLACK

DOB:

Age:

Major Charges:

PL 120.00(1): ASLT W/INT CAUSES PHYS INJURY

PL 120.00(3): MENACING-3RD

Co-Defendants: ☐ YES ☐ NO

Preferred Name:

*Criminal Court of the City of New York*

*County of New York Date 9-25-2015*

*I hereby certify that the within is a true*

*Copy of the Record on file at this Court*

*Court Clerk*

commonwealth, territory or possession of the United States, if the person against whom the order has been or will be afforded reasonable notice and opportunity to be heard in accordance with section 2266).

**It is a federal crime to:**

- cross state lines to violate this order or to stalk, harass or commit domestic violence against an individual;
- buy, possess or transfer a handgun, rifle, shotgun or other firearm or ammunition while the individual is under the protection of this order;
- military or law enforcement officers but only while they are on duty); and
- buy, possess or transfer a handgun, rifle, shotgun or other firearm or ammunition after a court order has been entered prohibiting the individual from possessing or using a deadly weapon or attempting use of physical force or a deadly weapon against an intimate partner or family member.

§§922(g)(8), 922(g)(9), 2261, 2261A, 2262).

Use this form for non-family offense orders of protection, issued pursuant to CPL §90.10(1)(b). Do not use this form for family and household members and are not entered onto statewide protection orders.

530.12(1).



NY0300331  
NYSID No: 12418860V  
CJTN No:

At a term of the Criminal Court, County of New York,  
at the Courthouse at 100 Centre Street, State of New York

ORDER OF PROTECTION  
Non - Family Offense - C.P.L. §530.13<sup>1</sup>  
(Not involving victims of domestic violence)  
☒ Youthful Offender (check if applicable)

Part A-3 Index/Docket No 2013NYCF1198  
Charges 120.00

(Check one): ☐ Ex parte ☒ Defendant Present in court

Present: Hon JANSON

THE PEOPLE OF THE STATE OF NEW YORK

-against-

Patricia Venner,

Defendant.

Date of Birth \_\_\_\_\_

NOTICE: YOUR FAILURE TO OBEY THIS ORDER MAY SUBJECT YOU TO MANDATORY ARREST AND CRIMINAL PROSECUTION, WHICH MAY RESULT IN YOUR INCARCERATION FOR UP TO SEVEN YEARS FOR CONTEMPT OF COURT. IF THIS IS A TEMPORARY ORDER OF PROTECTION AND YOU FAIL TO APPEAR IN COURT WHEN YOU ARE REQUIRED TO DO SO, THIS ORDER MAY BE EXTENDED IN YOUR ABSENCE AND THEN CONTINUES IN EFFECT UNTIL A NEW DATE SET BY THE COURT.

☒ **TEMPORARY ORDER OF PROTECTION.** Whereas good cause has been shown for the issuance of a temporary order of protection [as a condition of ☐ recognizance ☐ release on bail ☐ adjournment in contemplating of dismissal],

☒ **ORDER OF PROTECTION.** Whereas defendant has been convicted of [specify crime or violation]: \_\_\_\_\_

And the Court having made a determination in accordance with section 530.13 of the Criminal Procedure Law,

IT IS HEREBY ORDERED that the above-named defendant observe the following conditions of behavior: (Check applicable paragraphs and subparagraphs):

☒ Stay away from \_\_\_\_\_ [name(s) of protected person(s) or witness(es)] JACQUELINE REYES  
☒ home of JACQUELINE REYES

☒ school of JACQUELINE REYES  
☒ business of JACQUELINE REYES

☒ Place of employment of JACQUELINE REYES  
☐ other \_\_\_\_\_

☒ Refrain from communication or any other contact by mail, telephone, e-mail, voice-mail or other electronic or any other means with [specify protected person(s)]: JACQUELINE REYES

☒ Refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, disorderly conduct, criminal mischief, sexual abuse, sexual misconduct, forcible touching, intimidation, threats or any criminal offense or interference with the victim or victims of, or designated witnesses to the alleged offense and such members of the family or household of such victim(s) or witness(es) as shall be specifically named [specify]: JACQUELINE REYES

☒ Refrain from intentionally injuring or killing without justification the following companion animal(s) (pet(s)) [specify type(s) and, if available, name(s)]: \_\_\_\_\_

☒ Surrender any and all handguns, pistols, revolvers, rifles, shotguns and other firearms owned or possessed, including, but not limited to, the following: \_\_\_\_\_ at \_\_\_\_\_ and do not obtain any further guns or other firearms. Such surrender shall take place immediately, but no later than [specify date/time]: \_\_\_\_\_

☒ Specify other conditions defendant must observe for the purposes of protection: NO THIRD PARTY CONTACT

IT IS FURTHER ORDERED that the above-named Defendant's license to carry, possess, repair, sell or otherwise dispose of a firearm or firearms, if any pursuant to Penal Law §400.00, is hereby ☐ suspended or ☒ revoked (note: final order only), and/or ☐ the Defendant shall remain ineligible to receive a firearm license during the period of this order. (Check all applicable boxes). NOTE: If this paragraph is checked, a copy of this form must be sent to: New York State Police, Pistol Permit Section, State Campus Building #22, 1220 Washington Avenue, Albany, New York 12226-2252.

IT IS FURTHER ORDERED that this order of protection shall remain in force until and including [specify date]: 03/14/14

DATED: 9/15/13

☒ Defendant Advised in Court of issuance and contents of Order.

☒ Order personally served on Defendant in Court served in Court

(Defendant's signature)

☐ Order to be served by other means [specify]: \_\_\_\_\_

☐ Warrant issued for Defendant

☐ ADDITIONAL SERVICE INFORMATION: [specify]: \_\_\_\_\_

The Criminal Procedure Law provides that presentation of a copy of this order of protection to any police officer or peace officer acting pursuant to his or her special duties shall authorize, and in some situations may require, such officer to arrest a defendant who has violated its terms and to bring him or her before the Court to face penalties authorized by law.

Federal law requires that this order must be honored and enforced by state and tribal courts, including courts of a state, the District of Columbia, a commonwealth, territory or possession of the United States, if the person against whom the order is sought is an intimate partner of the protected party and has been or will be afforded reasonable notice and opportunity to be heard in accordance with state law sufficient to protect that person's rights (18 U.S.C. §§2265-2266).

It is a federal crime to:

•cross state lines to violate this order or to stalk, harass or commit domestic violence against an intimate partner or family member;

•buy, possess or transfer a handgun, rifle, shotgun or other firearm or ammunition while this Order remains in effect (Note: there is a limited exception for military or law enforcement officers but only while they are on duty); and

•buy, possess or transfer a handgun, rifle, shotgun or other firearm or ammunition after a conviction of a domestic violence-related crime involving the use of attempted use of physical force or a deadly weapon against an intimate partner or family member, even after this Order has expired. (18 U.S.C. after this Order (CPL §922(g)(8), 922(g)(9), 2261, 2261A, 2262).

Use this form for non-family offense orders of protection, issued pursuant to CPL §530.13, that are not issued to protected victims of family offense intimate partners and family and household members and are not entered onto statewide domestic violence registry. See Exec. L. §221-a(1); CPL §§530.11(1) 530.12(1).



Criminal Court of the City of New York  
County of New York Date 9-25-2015

I hereby certify that the within is a true

Copy of the Record on file at this Court

[Signature] Court Clerk

Sep. 15 2013 08:50am P001  
Page 1 of 2

CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

-against-

Patricia Vanner

Defendant.

MISDEMEANOR

2013NY071198



Police Officer Vahagn Krmoyan, Shield 21142 of the 7th Precinct, states as follows:

*The defendant is charged with:*

- 1 PL 120.00(1) Assault in the Third Degree  
(defendant #1: 1 count)
- 2 PL 120.00(2) Assault in the Third Degree  
(defendant #1: 1 count)
- 3 PL 120.15 Menacing in the Third Degree  
(defendant #1: 1 count)
- 4 PL 240.26(1) Harassment in the Second Degree  
(defendant #1: 1 count)

On or about September 14, 2013 at about 10:00 P.M., inside 81 Columbia Street in the County and State of New York, the defendant, with intent to cause physical injury to another person, caused such injury to another person; the defendant recklessly caused physical injury to another person; the defendant, by physical menace, intentionally placed and attempted to place another person in fear of death, imminent serious physical injury, and physical injury; the defendant, with intent to harass, annoy and alarm another, subjected that person to physical contact and attempted and threatened to do the same.

*The factual basis for these charges are as follows:*

I am informed by Jacqueline Reyes, of an address known to the District Attorney's Office, that she observed the defendant strike her about the face approximately one time with a closed fist, causing a laceration and bleeding to her nose and bruising to her face.

I am further informed by Ms. Reyes that she observed the defendant advance toward her while waving a stick in her hand in a threatening manner. I heard the defendant state in substance, I thought she had a knife so I came at her with a stick and held it in my hand. I recovered a stick from the defendant's apartment.

Criminal Court of the City of New York  
County of NY Date 9.25.2015

I hereby certify that the within is a true

Copy of the Record on file at this Court

*[Signature]* Court Clerk

Sep 15 2013 08:50am P002

Page 2 of 2

Fax: \_\_\_\_\_

CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

-against-

MISDEMEANOR

Patricia Vennet

Defendant.

False statements made in this written instrument are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes.

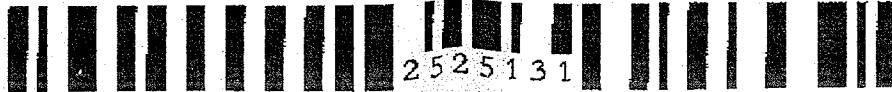
*[Signature]*  
Police Officer Vahagn Kirmoyan

9/15/2013

Date

Time

0845



Criminal Court of the City of New York  
County of New York Date 9-25-2015

I hereby certify that the within is a true

Copy of the Record on file at this Court

Court Clerk

*[Signature]*

CRIMINAL COURT OF THE CITY OF NEW YORK

Docket Number

Arraignment Date

Arraignment Judge

You are to appear in Court on OCTOBER 23  
Street, New York, N.Y. 10013.

by 9:30 A.M. at Part A

located at 100 Centre

Your bail has been fixed at

\$ 200

Insurance Company Bail Bond.

or

Cash Bail.

If you are released and you fail to appear at the time, date, and place indicated above,  
A Warrant for your Arrest will be issued.  
Your Bail, if any, will be forfeited.  
You may be charged with the crime of Bail Jumping.

If you are committed:

You have the right to communicate with relatives or friends by letter or telephone free of charge.  
You have the right to the aid of counsel at every stage of the proceedings.

If you desire counsel and are financially unable to obtain counsel, counsel shall be assigned to you.

**PLEASE BRING THIS NOTICE WITH YOU WHENEVER YOU APPEAR IN COURT.**

CRC 3019 (8/92)

(over) (sigue)

CRIMINAL COURT OF THE CITY OF NEW YORK

CERTIFICATE OF DISPOSITION

**FEE \$10.00**

**No. 588397**

Docket Number

20347 07/1/98 Year 2013

THE PEOPLE OF THE STATE OF NEW YORK

vs.

Vernon L. Brown

Date of Birth/Age

07/17/1977

Zip

City/State

Q-14-13

Date of Offense

PC 120.20, PC 120.15, PC 120.46

Original Offense(s)

Final Offense(s)

Dismissed 30 days later  
160.50

Date of Sentence

12/20/73

Date of Disposition

A 14

Judge

County

ISSUED BY:

CCO 07

Date

County

Part

CERTIFICATE OF DISPOSITION

I hereby certify that this is a true except of the record on file in this Court.

CA